

F. R - 13024/21

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

PRESENTATION FORM

W.P. No. 15813 / 2021

Advocate Sri

SRI GURUDEVA GACHCHINAMATH

Advocate High Court

No. 559-563/32, 4th Block, 6th Main Road,

Rajajinagar, Bengaluru - 560 010

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Dharwad District

Between

Revanasiddappa
and others

And

State of Karnataka
etc and others

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Date 22/8/2021

Bengaluru

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. _____

FR No _____/2021

Between:

K.M.Revamasoddappa and others

..... Petitioner

And:

The State of Karnataka and
others

..... Respondents.

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Bengaluru

Date:

Advocate for Petitioner

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1

(1)

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P. No. _____/2021 (PIL)

Between:

K.M. Revanasiddappa and others.

..petitioners

And:

The State of Karnataka

And others.

..Respondents.

BRIEF SYNOPSIS

Sl. NO.	Date	Event
1	22-8-1989	The land bearing Sy. No. 2 measuring 23 Acres 34 Guntas situated at Kenchammanahalli village of Anegodu Hobli of Davangere District is a gomal land meant for grazing the cattle for Kenchammanahalli and other surrounding villages. But some of the miscreants tried to unlawfully and illegally occupy the same and therefore the villagers of the village have filed suit O.S. No. 434/1989 seeking the restraint orders before the Principal Munsiff, Davangere.
2	2-12-1994	The said suit O.S. No. 434/1989 was decreed. The Defendants or any person claiming under them were restrained by way of permanent injunction from causing mischief by cutting the trees of the bund of Gokatte and from interfering with the plaintiffs and all the villagers in grazing of the cattle in the suit property till the suit schedule property continues to be the Gomal land.
3	1995	Challenging the Judgement and Decree made in O.S. NO. 434/1989, the Defendants preferred R.A. No. 61/1995 before the Civil Judge, Davangere.
4	18-6-1996	The said Regular Appeal is dismissed. There is no further Appeal preferred and the Judgement pronounced in O.S. No. 434/1989 and R.A. No. 61/1995 has attained its finality.

5	1997	Though there was an injunction, but still the unlawful occupation and illegal cultivation over the land in question continued and the Revenue authorities did not take any action in the matter and therefore the villagers had approached this Hon'ble court by filing Writ petition No. 29312/1993.
6	16-12-1997	This Hon'ble court in the said Writ petition No. 29312/1993 was pleased to pass the following order, "This is one such case where hardly an extent of 23 Acres of gomal land is available for free pasturage and the Respondents cannot destroy the character of this land by granting it for agricultural purpose. Therefore the Respondents are prohibited from granting/regularizing any land in Re-Survey No. 2 of Kenchammanahalli village in Anegod Hobli of Davangere Taluka and the Respondents are further directed to reserve this land specifically for the purpose for which it is assigned."
7	2005 and 2006	Two writ petitions bearing W.P. No. 9277/2006 and W.P. No. 13580/2005 were filed before this Hon'ble court seeking the Review of the order made 29312/1993 on the ground that they were not parties to the proceedings of writ petition No. 29312/1993.
8	12-2-2003	This Hon'ble court was pleased to pass a common order clubbing both Writ petition No. 9277/2006 and Writ petition No. 13580/2005 and was pleased to pass the following order. "Consequently, I am of the view that before considering the Application of the petitioners for grant of land, the concerned authorities shall take into consideration, - The order passed by this Court in W.P. No. 29312/1993 on 16-12-1997. - The Judgement and Decree passed by the Civil Court in O.S. No. 434/1989 and R.A. No. 61/1995. - Report of Tahasildar sent to the Deputy Commissioner regarding the nature and status of the land The Deputy Commissioner shall consider the Application of the petitioners for regularization after notice to the residents of village".

9	20-8-2009	The Government has issued the guidelines as to when the Application seeking for regularization of the gomal land can be considered for regularizing it for cultivation.
10	June 2016	The learned Deputy Commissioner in gross violation of the orders passed by this Hon'ble court and contrary to the guidelines laid down by the State Government has referred the matter to Tahasildar for placing the matter before the Bagar Hukum Committee. Hence this petition.

It is submitted that the present petition is preferred in the nature of Public Interest Litigation. The Respondent – authorities have failed to preserve the gomal land of Kenchammanahalli village and the cattle of the said village are suffering without pasture. Though the authorities are bound to take action against the illegal encroachers no action is being taken. Hence this petition.

Bengaluru

Date:

Advocate for petitioners

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)

W.P. No. 15813 /2021 (PIL)

Between:

1. K. M. Revanasiddappa
S/O Mallappa, aged 61
Years, Occ: Agriculture.
2. Sri. K.P. Rudrappa S/O
Parvathappa, aged 55
Years, Occ: Agriculture.
3. K.G. Chandrappa S/O
K.G. Siddaveerappa,
Aged about 45 years,
Occ: Agriculture.
4. Sri. C. Ramesh
S/O Chandrappa,
Aged about 45 years,
Occ: Agriculture.
5. Sri. R. Gangadhar
S/O Revanasiddappa
Aged about 44 years
Occ: Agriculture.

All are residents of
Kenchammanahalli village
Anegodu Hobli,
Tq & Dist: Davangere.

Petitioners NO. 2 to 5 are
Represented by their PA
Holder
K. M. Revanasiddappa
S/O Mallappa, aged 61
Years, Occ: Agriculture
R/O Kenchammanahalli
Village, Anegodu Hobli,
Tq & Dist: Davangere.

..petitioners

And:

✓ The State of Karnataka
by its Secretary to
Revenue Department,
Vidhana Veedhi,
Bengaluru-1.

2. The Deputy Commissioner,
Davangere District.
Davangere.
3. The Assistant Commissioner
Davangere,
Dist: Davanagere.
4. The Tahasildar,
Davangere District,
Davangere.
5. The Bhagar Hukum
Committee,
Davangere District
Davangere.

..Respondents

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES
226 AND 227 OF THE CONSTITUTION OF INDIA.**

The Petitioners above named begs to state as follows:

1. It is submitted that the petitioners are permanent residents of Kenchammanahalli village. The said Kenchammanahalli village is in Davangere District. The other nearby villages are Anagodu, Hulikatte, Nerlige, Naraganahalli, Anaji etc.,. The petitioners are all agriculturists and are dependent upon the agricultural activities to eke out their livelihood. The petitioners are law abiding citizens of India.
2. It is submitted that the present petition is filed by the petitioners as *pro bono publico* i.e., in the interest of the villagers of Kenchammanahalli village. The petitioners have no personal interest in the litigation and the petition is not guided by self-gain or for a gain of any other

person/institution/body and that there is no motive other than of public interest in filing the present writ petition. The petition if allowed, would benefit the general public of Kenchammanahalli village and other surrounding villages and brazen violation of law by the Respondents can be stopped by the orders of this Hon'ble Court alone.

3. It is submitted that the land bearing No. 2 measuring 23 Acres 34 Guntas is a Gomal land. The Gomal land is the land which would be kept open and meant for grazing the cattle of the village. The Cattle like cow, bull, buffalo, goat, sheep, hen, cock, Ox etc., are integral part of the agriculturists in order to carry out their activities. This being the situation this land measuring 23 Acres 34 Guntas alone is available for grazing the Cattle of Kenchammanahalli and other surrounding villages. Even the extent of land that is now available is insufficient for the number of cattle of Kenchammanahalli village and other surrounding villages. The fact that the land in question is a Gomal land is an undisputed aspect and the Record of Rights even till date reflect the land as Gomal land. The true copy of the Record of Rights are herewith produced as Annexure-A.

4. It is submitted that this being the position, the Government Veterinary officer has issued the chart reflecting the cattle population of Kenchammanahalli village. The true copy of

the Certificate is herewith produced as Annexure-B. There are 201 cow, 10 buffalos, 97 Sheet, 9 goats and totally the cattle population dependent upon grazing of pasture is 317.

5. It is submitted that the main concern of the petitioners is that the land earmarked for a specific purpose in the revenue records should be continued to be used as such to maintain ecological balance. The deprivation of the utilization of this land for Gomal would amount to violation of the fundamental rights guaranteed under Articles 14 and 21 of the Constitution of India.
6. It is submitted that the Government has also made the expenditure in order to improve this land and have constructed the Gokatte by spending public money. Inspite of some certain miscreants of the village have always been trying to encroach upon the land and have been illegally and unlawfully trying to cultivate the land. Some miscreants have illegally encroached upon this property and are unlawfully cultivating the land. Hence certain villagers way back in the year 1994 have filed the suit OS. No. 434/1989 in the Representative capacity praying for a Decree of permanent Injunction restraining the said miscreants from cultivating the Gomal land or by causing mischief to cut the trees and the bund of Gokatte. After contest the said suit O.S. No. 434/1989 is decreed restraining the Defendants therein by decree of permanent

injunction from causing mischief by cutting standing trees or the bund of the Gokatte and from interfering the plaintiffs and all villages from grazing of the cattle till the suit schedule property continues to be Gomal Land. The true copy of the Judgement made in O.S. No. 434/1989 is herewith produced as Annexure-C.

7. It is submitted that being aggrieved by the impugned Judgement and Decree made in O.S. No. 434/1989, a Regular Appeal No. 61/1995 was filed before the Civil Judge, Davangere. The said R.A. was also dismissed. The true copy of the Judgement made in R.A. No. 61/1995 is herewith produced as Annexure-D. Thereafter there is no Appeal preferred and the Judgements made in O.S. No. 434/1989 and R.A. No. 61/1995 have attained their finality.

8. It is submitted that since there was observation that the injunction granted would operate till the suit schedule property continues to be Gomal Land the Respondent - authorities in active collusion with certain persons with vested interest commenced the process for granting the Gomal land and therefore certain villagers of Kenchammanahalli village have filed Writ petition No. 29912/1993 before this Hon'ble court praying to prohibit the Respondents from granting any portion of the Gomal Land of Re-Sy. NO. 2 to the extent of 23 Acres 34 Guntas

to any person either by regularizing or any such method and a direction was also sought to preserve the Gokatte for the benefit of cattle and in order to facilitate the grazing.

9. It is submitted that this Hon'ble court after hearing all the parties was pleased to pass the following order,

"This is one such case where hardly an extent of 23 Acres of Gomal land is available for free pasturage and the Respondents cannot destroy the character of this land by granting it for agricultural purpose. Therefore the Respondents prohibited from granting/regularizing any land in Re-Survey No. 2 of Kenchammanahalli village in Anegod Hobli, Davangere Taluka and the Respondents are further directed to reserve this land specifically for the purpose for which it is assigned." The true copy of the order made in W.P. No. 29312/1993 is herewith produced as Annexure-E. This being the observation made by this Hon'ble court, yet the efforts were made to allot/grant the land, but since there was clear direction prohibiting the grant and therefore the Respondents who were working hand in glove with certain miscreants, provoked them to file a petition seeking to Review the order made in W.P. No. 29312/1993. Accordingly after lapse of 10 years, two Writ petitions bearing W.P. No. 9277/2006 and W.P. No. 13580/2005 were filed. Both the petitions were clubbed

together and a common order was passed on 12-2-2008 was passed as follows:

"Consequently I am of the view that before considering the Applications of the petitioners for grant of land, the concerned authorities shall take into consideration,

- a. The order passed by this Court in W.P. No. 29313/1993 on 16-12-1997.
- b. The Judgement and Decree passed by the Court in O.S. No. 434/1989 and R.A. No. 61/1995
- c. Report of the Tahasildar sent to the Deputy Commissioner regarding the nature and status of the land

The Deputy Commissioner shall consider the Applications of the petitioners for regularizations after notice to the residents of the village." The true copy of the order made in the said W.P. No. 9277/2006 C/W W.P. No. 13580/2005 is herewith produced as Annexure-F.

10. It is submitted that though the said petitions bearing W.P. No. 9277/2006 C/W W.P. No. 13580/2005 were filed seeking for review of the order made in W.P. No. 29312/1993, nevertheless the order made in W.P. No. 29312/1993 was not reviewed instead there was a direction to the Deputy Commissioner to take the order made in W.P. No. 29312/1993 into account if there are any Applications for grant. Hence this Hon'ble court has twice

affirmed and have issued positive directions to retain the land as Gomal land.

11. It is submitted that this being the position the learned Deputy Commissioner has passed an order in the month of June 2016 and has opined that the Applications filed seeking for Regularization must be considered by Bhagar Hukum Committee and accordingly has directed the Tahasildar to send the Records to Bhagar Hukum Committee for deciding the issue in question. The certified copy of the impugned order is herewith produced as Annexure-G. This is yet another example as to how the learned Deputy Commissioner inspite of specific directions issued by this Hon'ble court and the Hon'ble Civil court to maintain the land as Gomal land has passed the order referring the matter to Bhagar Hukum committee only to over reach the orders of this Hon'ble court and the Hon'ble Civil court and allow the miscreants to encroach and illegally cultivate the land.

12. It is submitted that the Government has issued the guidelines as to when the matter requires to be referred to the Bhagar Hukum committee for grant of Gomal land and one such condition is that the Deputy Commissioner has to assess as to whether there is any excess land available and only when the excess/surplus land is available only then the matter needs to be referred to Bhagar Hukum

committee for considering the Application for regularization. In the instant case the total extent of land available is insufficient to the cattle population of Kenchammanahalli village. Under such circumstances the Government guidelines are clear that such lands cannot be referred to Bhagur Hukum Committee. In the instant case the Deputy Commissioner has unlawfully referred the matter to Bhagar Hukum committee contrary to the Government guidelines and in gross violation of the orders of this Hon'ble court made in writ petition No. 9277/2006 C/W W.P. No. 13580/2006. The true copy of the Government circular reflecting the guidelines is herewith produced as Annexure-H

13. It is submitted that the Respondent No. 2 - Deputy Commissioner who is vested with the responsibility of safeguarding the Gomal land himself is adopting the delaying tactics and therefore there is no true intention on the part of the Respondents to implement the orders of this Hon'ble court made in earlier writ petitions in its real spirit.

14. It is submitted that the petitioners have not filed any previous Writ Petition before this Hon'ble Court on the same cause of action. No other proceedings concerning the same subject matter are pending before any Court or authority or forum.

15. Under these circumstances the petitioners have no other alternative and efficacious remedy except to approach this Hon'ble Court under Articles 226 and 227 of the Constitution of India for appropriate relief on the following among other grounds.

SALIENT GROUNDS

16. It is submitted that it is undisputed fact that the land in question is a Gomal land and there is no other place for grazing the cattle in respect of Kenchammanahalli and other surrounding villages. Hence any illegal encroachments need to be cleared and further the land needs to be protected as Gomal land.

17. It is submitted that Rule 97 of the Karnataka Land Revenue Rules provides that the Government land shall be set apart for free pasturage for the cattle of each village at the rate of 12 hectares for every hundred heads of cattle. In the village of Kenchammanahalli the cattle population is determined at 317 and accordingly 90 Acres of land on an average is required for grazing and pasturage. But the land that is now available is only 23 Acres 34 Guntas which is not even $1/3^{\text{rd}}$ of the requirement and therefore by no stretch of imagination the land can be permitted to be encroached upon nor can be considered for grant. Hence the learned Deputy Commissioner outrightly ought to have rejected any such Applications pending if any seeking for

regularization and further ought to have taken measures for protecting the land for grazing and maintaining the same. Instead the learned Deputy Commissioner has committed an error in referring the matter to Bhagur Hukum committee which is the erroneous.

18. It is submitted that the Government has issued the guidelines/circular as to when the matter needs to be referred to Bhagur Hukum committee for regularization. As per the circular the Deputy Commissioner has to undertake the exercise of verifying as to whether there is sufficient land available for grazing and only if there is excess/surplus land available the reference to Bhagar Hukum committee can be made to that extent alone. In the instant case there is no such exercise carried out by the Deputy Commissioner. Instead the Deputy commissioner illegally refers the matter to the Bhagur Hukum Committee and the Bhagar Hukum Committee to whom the matter stands referred does not take any action. In this way the illegal encroachers continue to encroach upon the grazing Gomal land and no action is taken till date. Hence the kind interference at the hands of this Hon'ble court is utmost essential.

19. It is submitted that it is not disputed that the land bearing Re-Survey No. 2 measuring 23 Acres 34 Guntas are reserved as gomal lands. Gomal land is meant for grazing

of cattle in the villages. The present land in question being a Gomal land (grazing land) is specifically reserved from time immemorial for the purpose of grazing of the cattle in the village. The main avocation of Kenchammanahalli villagers is grazing of cows, buffaloes, sheep, goats, poultry, etc. The cattle in India is treated as a wealth of the society. It is also a fact that shepherds purely survive on sheep and goat rearing and they are continuing this occupation since time immemorial. Therefore, grazing lands are essential for a village. Further, as provided in Article 51-A (g) of the Constitution, the conditions for better living of the creatures is one of the essential ingredients of fundamental rights read with Articles 41 and 48-A of the Constitution. Therefore, grazing lands reserved are essential for village life. It is to be noticed that by providing greenery as part of grazing land, it will not only provide fodder to the cattle, but also provides good environmental atmosphere in the village and surrounding areas. The right to pollution-free environment is a fundamental right. Therefore, there is requirement that every village must have abundant area to be cultivated or area reserved as grazing land to maintain ecological equilibrium resulting in unpolluted air and water, which is the cardinal requirement of human life and other lives on the earth. The Respondents are acting contrary to these cardinal principles and are not protecting

the grazing land from illegal encroachers and unlawful cultivation and therefore the same requires the interference at the hands of this Hon'ble court.

20. It is submitted that the Hon'ble Supreme Court has strengthened Article 21 in two ways. First, it required laws affecting personal liberty also to pass the tests of Article 14 and Article 19 of the Constitution, thereby ensuring that the procedure depriving a person of his or her personal liberty be reasonable, fair and just. Second, the Court recognized several unarticulated liberties that were implied by Article 21. By adopting the second method, the Supreme Court interpreted the right to life and personal liberty to include the right to a wholesome environment. Article 48 provides that the State shall endeavour to organize agriculture and animal husbandry on modern and scientific lines and take steps to improving and preserving the breeds. Article 48-A delegates the State to protect and preserve the environment and to safeguard the forests and wildlife of the country. It is necessary here to note that living creatures include cattle, sheep, goats, poultry and other animals in the villages and their protection by giving sufficient amount of pasture stands related to Constitutional provisions and therefore the maintenance of grazing land/Gomal land is utmost essential and in the instant case the Respondents are acting contrary to the

principles embodied in the Constitution of India, which requires the kind interference at the hands of this Hon'ble court.

21. It is submitted that the Karnataka Land Revenue Act which governs about the land revenue in the State provides that a gomal land cannot be changed for any other purpose, except with prior permission of the authority concerned. Under Section 71 of the KLR Act, power is given to the Deputy Commissioner to reduce or increase the gomal land (grazing land) according to the exigencies of requirement. In the instant case there is no exigency for referring the matter to Bhagar Hukum committee and therefore the impugned order of the learned Deputy Commissioner does not stand the test of law.

22. It is submitted that Section 47 of the Karnataka Land Revenue Act provides the over riding effect on the Land Revenue Act. Hence viewed from any angle the impugned order of the learned Deputy Commissioner is totally illegal and unlawful.

23. It is submitted that this Hon'ble court while disposing of the W.P. No. 9277/2006 C/W W.P. No. 13580/2005 has observed that the learned Deputy Commissioner shall consider the Applications for regularization after notice to the residents of the village. Hence in all fairness the learned Deputy Commissioner ought to have issued public

notice through paper publication and ought to have brought it to the notice of the villagers before passing the impugned order. The learned Deputy Commissioner has not taken any such measure and has passed the impugned order in gross violations of the directions of this Hon'ble court. Since there was not such procedure followed by the learned Deputy commissioner the petitioners could not know about the order passed by the Deputy Commissioner and also because of the pandemic situation and frequent lock downs the petitioners were prevented from filing the present petition. Very recently in the month of March 2021 there was news in the village that the Bhagar Hukum committee would grant the land in favour of certain persons and therefore the petitioners verified the same and secured all the records and after arranging for certain expenses have preferred the present petition and therefore the delay if any may kindly be condoned. The petitioners are agitating the matter for public interest. Hence this petition.

GROUNDS FOR INTERIM PRAYER

24. It is submitted that by virtue of the impugned order passed by the learned Deputy Commissioner directing the Tahasildar to refer the matter to Bhagar Hukum committee and the Bhagar hukum committee is now trying to consider the Applications and grant the land. Neither the learned

Deputy Commissioner had any authority to refer the matter to Bhagar Hukum committee nor the Bhagar Hukum committee would get any jurisdiction to deal with the matter. The directions were issued to Deputy Commissioner and therefore the Deputy Commissioner cannot delegate the directions issued to him to some other authority. The land is being encroached by certain miscreants and the cattle of village are suffering the insufficiency of fodder. The villagers of Kenchammanahalli village are constrained to purchase the fodder at higher costs and the illegal encroachments over the land in question is leading to serious cascading effects on the cattle of the villagers. Under these circumstances if the impugned order passed by the Deputy Commissioner is not stayed and further if the authorities are directed not to make any grant and further if the authorities are not directed to protect the Gomal land from encroachers, the villagers of kenchammanahalli village will be put to great injustice and hardships. On the other hand if the Interim order as prayed for is granted no harm or prejudice will be caused to any person. Hence the Interim relief is very much essential.

P R A Y E R

25. WHEREFORE for the reasons stated above the petitioners most humbly pray that this Hon'ble court may be pleased to

- a. Quash the impugned order dated Nil-6-2016 bearing No. LND/CR/110/2006-07 produced as Annexure-G passed by the Respondent No. 2 by issue of writ of certiorari or any other suitable writ or order or directions.
- b. Issue a writ of mandamus directing the Respondents to take action and remove the unlawful and illegal encroachments over the land bearing Re-Survey No. 2 measuring 23 Acres 34 Guntas situated at Kenchammanahalli village, Tq & Dist: Davangere.
- c. Issue a writ of mandamus directing the Respondents to maintain and preserve the land bearing Re-Survey No. 2 measuring 23 Acres 34 Guntas situated at Kenchammanahalli village, Tq & Dist: Davangere as Gomal land and facilitate for pasturage to the cattle of Kenchammanahalli village.
- d. Grant such other reliefs as this Hon'ble court deems fit under the circumstances of the present case in the interest of justice and equity.

INTERIM PRAYER

- e. Pending disposal of the above writ petition an Interim order may kindly be granted staying the impugned order dated Nil-6-2016 bearing No. LND/CR/110/2006-07 produced as Annexure-G passed by the Respondent No. 2 and further to maintain

the land as Gomal land preventing the unlawful cultivation over the said land in the interest of justice and equity.

Place: Bangalore

Advocate for Petitioners.

Date:

Address for Service:

Sri. Gurudev. I. Gachchinamath,
Smt. Sumangala Gachchinamath,
Advocates High Court,
Sri. Shiva Sai Nivas,
No. 559-569/92, 4th Block,
6th Main, Rajajinagar, Bengaluru-10.

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P. No. _____/2021 (PIL)

Between:K. M. Revanasiddappa
S/O Mallappa and others.

..petitioners

And:The State of Karnataka
And others.

..Respondents

AFFIDAVIT VERIFYING THE WRIT PETITION

I, K.M. Revanasiddappa, aged about 61 years, Occ; Agriculture, R/O Kenchannamanahalli village, Tq & Dist: Davangere, now at Bengaluru do hereby solemnly affirm and state as follows:

1. I am the petitioner No. 1 in the top noted petition and I know the facts of the case. The contents of the Affidavit have been read over, explained to me in Kannada and I have understood the same. I am swearing to this Affidavit on my behalf and on behalf of the other petitioners as we share the common interest and they have authorized me to swear to this Affidavit. Hence I am swearing to this Affidavit.
2. I state that the statements made in paragraphs 1 to 25 of the Writ petition, accompanying this Affidavit are true to the best of my knowledge, belief and information.
3. I state that Annexures-A to 14 produced herewith are the true copies of the originals.

Bengaluru

Date:
Identified by me

DEPONENT

Advocate
No. of corrections:

1-4F 322B6E63013

ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೋಲಿ ಮತ್ತು ಪಾಪಲ್ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.01

Print Page No: 1/1
Valid from 07/12/2001 00:00:00 To Till Date

2011.09.16. 10:45

TABLE 1.

ಗ್ರಾಂಡ್‌ನಿರಿ

Case 2

entirely

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શ્રીગણેશાય નમઃ

ವ್ಯಾಪ್ತಿ ವ್ಯಾಪ್ತಿ ಸಂದರ್ಭ,

[illegible]

RTC DIGITALLY SIGNED BY : Darshan Kumar B ON 7/6/2020 1

RTC UniqueNumber: 1134F123B6E65013

ಕರ್ನಾಟಕ ರಾಜ್ಯದ ಸಂವಿಧಾನ 1986 ರ ಅನುಚಿತ 40, 42, 58 ಮತ್ತು 73

ದಿವಾಂಶ: 29/07/2021 13:17 ಪುಟ: 15

மிகுந்த அபிமானம், நம்பிக்கை.

ಜನರನ್ನು ಸ್ವೀಕರಿಸುವುದು <http://landrecords.karnataka.gov.in/tcverification> ಬಳಿ ಸೈಬೆಸೈಟಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಬೈಲಿ ಮಾಹಿತಿ 161 ಗೆ ಸೂಚನೆ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದು
 Citizens may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

* : 1997 අගෝස්තු සැසි 11 වන දින, 1997 අගෝස්තු 12 වන දින

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Translated copy of Annexure-A

Village Account Form No.2

RECORDS OF RIGHTS, TENANCY AND CROP DETAILS (Form No.16)

Taluk: Davanagere Hobli: Anagodu Village: Kenchammanahalli Page No. As on 07/12/2001

1. Survey Number 12	3. Khatewar	Acre/Gunta		4. Revenue	Rs. Ps.	9. Name of the occupant or possessor, father's name and address Shendikhara bu	Extent A-G	Khata No.	10. Nature of occupation or acquisition Misc	11. Other rights and encumbrances	
2. Hissa	Total extent	14.27.00.00		a) Land revenue						Rights	Encumbrances
	Phut Karab (A)	0.00.00.00		b) Jodi							
5. Nature of soil Red	Phut Karab (B)	0.00.00.00		c) Cesses			14.27.00	101			
6. Pattar: Govt.	Balance	14.27.00.00		d) Water charges							
	7. Number of trees			8. Extent of irrigated land as per Khetavar							
	Name	Number	Sl. No.	Basis of irrigation	Pre-Monsoon	Post-Monsoon	Garden	Total			
12. Cultivation and tenancy details						13. Land use and details of crops					

Year and season	Name of the cultivator and place of residence	Nature of Cultivation	Details of tenancy		Land use		Dry, wet, garden	Name of the crop	Extent of crop			Basis of Irrigation	Yield of crop per acre	Total of mixed crop	
			Extent A - G	Lease A - G	Class	Extent			Unmixed	Mixed	Total			Name of the mixture	Extent A - G
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
2021-2022 Pre-monsoon	Shendi Khara b		-						0.00.0 0.00	0.00 .00. 00	0. 00 .0 0. 00			0.00	

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ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗಣನೆ ಮತ್ತು ವಹವೆ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.೧೬

Print Page No: 1/2
Valid from 19/01/2019 17:25:00 To Till Date

ಪ್ರಸಿದ್ಧ ಕೃಷಿ ನಿರ್ದೇಶಕರು

[illegible]

RTG DIGITALLY SIGNED BY : Darshan Kumar B ON 7/8/2020 1

RTC UniqueNumber: 1134F323B6EA941C

ബാഗ്ഗേജ് പ്രകാരം 1988 ന് ഫീസ് 40, 42, 58 രൂപ, 70

23,175 and 231, 750,000.

ಜನರ ಅರಿವಿನಲ್ಲಿ ತರಬೇತಿ
ಜನರನ್ನು ಸ್ವ.ಜನರನ್ನು <http://landrecords.karnataka.gov.in/verification> ಮೇಲೆ ಸ್ವ.ಜನರನ್ನು ಅಥವಾ KA BHOOMI <RTC Unique Number> ಮೇಲೆ ಮಾನ್ಯ 161 ಗೆ ಸಂಪರ್ಕಿಸಿ ತಿಳಿಸುವುದು
ಅಥವಾ SMS ಸಂಖ್ಯೆ ಮತ್ತು ಮೊಬೈಲ್ ನಂ. www.landrecords.karnataka.gov.in ಗೆ SMS ಸೇರಿಸಿ ತಿಳಿಸುವುದು

* : ೪೪ ಸಮೀಕ್ಷೆ ಮಾಡಿ ೨೨ (ಪುರುಷ) ಪಾಠ್ಯ, ೨೨ (ಮಹಿಳೆ) ಪಾಠ್ಯವಿಧವು

4/29/2021

ದಿನಾಂಕ:20/07/2021 13:21 ಬೆಳಿಗ್ಗೆ: 15

ENCLOSURE (ATTACHED TO THE FOLLOWING PAGES) 40, 42, 51, 52, 70

Translated copy of Annexure-

Village Account Form No.2

RECORDS OF RIGHTS, TENANCY AND CROP DETAILS (Form No.16)

Taluk: Davanagere Hobli:Anagodu Village:Kenchammanahalli Page No. As on 19/01/2019

1.Survey Number	3. Khatewar	Acre/Gunta	4. Revenue	Rs.Ps.	9.Name of the occupant or possessor,	Extent A-G	Khata No	10. Nature of occupation	11. Other rights and encumbrances
29	Total extent	5.01.00.0	a) Land revenue	0.00	father's name and address				Rights
2.Hissa	Phut Karab (A)	0.00.00.0	b) Jodi	0.00	Grassland	2.31	10	acquisition	Encumbrances
5.Nature of soil	Phut Karab (B)	0.00.00.0	c) Cesses	0.00	kharab	.00.	3		
Red		0	d) Water charges		Graveyard	00	0		
6.Patta: Govt.	Balance	5.01.00.0	Total	0.00	For establishin	0.10			
		0			g Primary Health Center	.00.		Misc. MR.H8 /2012 -13	As per order No.LND .CR.82 /12-13 dated 30/03/2013
	7. Number of trees		8. Extent of irrigated land as per Khetavar				12	28/05 /2013	Condit ions: The said land shall be used
	Name	Numbe	Sl.N	Basis of	Pre-	Post-	Garde	Tota	

29

		r	o.	irrigation	Monsoon	Monsoon	n	l		-19 19/01 /2019	of the Assist ant Commis sioner , Davana gere, 0-10 guntas of land is reserv ed for mortua ry. RTC create d as per order No.LND .CR.91	for the purpos e for which it is grante d and shall not be used for any other purpos e and aliena ted, transf erred, mortga ged withou t
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30

													/18-19 dt.03/ 09/201 8	permis sion of the Revenu e Depart ment.	
12. Cultivation and tenancy details								13. Land use and details of crops							
Year and season	Name of the cultiva tor and place of residen ce	Natu re of Cult ivat ion	Details of tenancy		Land use		Dry , wet , gar den	Name of the crop	Extent of crop			Basis of Irrigation	Yie ld of cro p per acr e	Total of mixed crop	
			Exte nt A - G	Leas e A - G	Clas s	Ex te nt			Unmixed	Mixed	Total			Name of the mixt ure	Exte nt A - G
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
2021- 2022 Pre- monsoon	Grass land kharab Mortuar y For establi				0				0.00.00 .00	0.00. 00.00	0.00. 00.00			0.00	
									0.00.00 .00	0.00. 00.00	0.00. 00.00				
									0.00.00	0.00.	0.00.				

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	shment of Primary Health Center	Own			0				.00	00.00	00.00				
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ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗಣನೆ ಮತ್ತು ಪಾವತಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.೧೬

Print Page No: 1/1

Valid from 07/12/2001 00:00:00 To Till Date

ಗ್ರಾಮ ಪಂಚಾಯತ್ 2

ಪಾಲಿಕೆ, ತಾಲೂಕು

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ಪಾಲಿಕೆ

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11. ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ

1. ರೇಕಾರ್ಡ್ ನಂ.	2. ಪಾಲಿಕೆ	3. ಪಾಲಿಕೆ	4. ಪಾಲಿಕೆ	5. ಪಾಲಿಕೆ	6. ಪಾಲಿಕೆ	7. ಪಾಲಿಕೆ	8. ಪಾಲಿಕೆ	9. ಪಾಲಿಕೆ	10. ಪಾಲಿಕೆ	11. ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ
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RTC DIGITALLY SIGNED BY : Darshan Kumar B ON 7/6/2020 1

RTC UniqueNumber : 1134F3236E49E05

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

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ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ 1988 ರ ನಂತರ 40, 42, 56 ಮತ್ತು 70

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ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ

ಇತರೆ ವಿವರಣೆ ಮತ್ತು ವಿವರಣೆ <http://landrecords.karnataka.gov.in/rtcverification> ರಲ್ಲಿ ಸ್ವೀಕೃತ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಟೈಪ್ ಮಾಡಿ 161 ಗೆ ಸಂದೇಶ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದು
 Citizen may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

• ಈ ಸಂದೇಶವು ಮಾಹಿತಿ ಸ್ವೀಕೃತವಾಗಿರುತ್ತದೆ, ಈ ಮಾಹಿತಿ ಸಮಾಚಾರವಾಗಿದೆ
 • ಈ ಸಂದೇಶವು ಮಾಹಿತಿ ಸ್ವೀಕೃತವಾಗಿರುತ್ತದೆ, ಈ ಮಾಹಿತಿ ಸಮಾಚಾರವಾಗಿದೆ



134F32386EE042

ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.01

Print Page No: 1/4

Valid from 27/11/2020 To Till Date

ಇತರ ಕ್ರಮ ನೋಡಿ:

1. ಸರ್ಕಾರಿ ಭೂಮಿ		2. ದೇವಸ್ಥಾನ		3. ಕುಟುಂಬ		4. ಇತರ		5. ಇತರ		6. ಇತರ		7. ಇತರ		8. ಇತರ		9. ಇತರ		10. ಇತರ		11. ಇತರ	
ಕ್ರ. ಸಂ.	ವಿವರ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	ಮೊತ್ತ	
35	1. ಸರ್ಕಾರಿ ಭೂಮಿ 2. ದೇವಸ್ಥಾನ 3. ಕುಟುಂಬ 4. ಇತರ	37.03.00.00 0.30.00.00 0.00.00.00 36.13.00.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	
36	1. ಸರ್ಕಾರಿ ಭೂಮಿ 2. ದೇವಸ್ಥಾನ 3. ಕುಟುಂಬ 4. ಇತರ	37.03.00.00 0.30.00.00 0.00.00.00 36.13.00.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00		

RTO DIGITALLY SIGNED BY : D A VENKATESHA ON 3/25/2021

RTC UniqueNumber: 134F32386EE042

ಇತರ ಕ್ರಮ ನೋಡಿ: 1988 ರ ನಂತರ 40, 42, 58 ಮತ್ತು 70

ಇತರ ಕ್ರಮ ನೋಡಿ:

ಜನರನ್ನು ನೋಡಲು <http://landrecords.karnataka.gov.in/verification> ಲಿಂಕ್ ಸೈಟ್‌ನಲ್ಲಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಲಿಂಕ್ ಮೇಲೆ 161 ಗೆ ಸಂದೇಶ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದುCitizen may register their AADHAAR number and mobile number at www.landrecords.karnataka.gov.in to get SMS alerts about mutations on agricultural lands

* : ಈ ಸಂದೇಶ ಕಳುಹಿಸಿ ಸ್ವೀಕೃತವಾಗಿಲ್ಲದಿದ್ದರೆ, ಈ ಸಂದೇಶ ಕಳುಹಿಸಿಲ್ಲದಿದ್ದರೆ

214

ರೇಷನ್ ಆಫ್ ಕೆಬ್ಬೆ, ಗೋಡೆ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC) ಘಾತಂ ನಂ.೧೩

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Valid from 27/11/2020 To Till Date

ಗ್ರಾಮ ಸಮೀಕ್ಷೆ 2

ಪ್ರಾ.ಸಂ.ಸಂ. ಸಂಖ್ಯೆ

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ಪ್ರಾ.ಸಂ.ಸಂ. ಸಂಖ್ಯೆ

1. ಸರ್ಕಾರಿ ಪಂಚಾಯತ್	2. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	3. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	4. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	5. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	6. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	7. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	8. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	9. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	10. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	11. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	12. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	13. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	14. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	15. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ	16. ಪಂಚಾಯತ್ ಸಂಖ್ಯೆ
35	10/05/2020 ರ ಅಧಿಕಾರದ ಅಡಿಯಲ್ಲಿ ಬರೆಯಲ್ಪಟ್ಟಿದೆ														
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ಪ್ರಾ.ಸಂ.ಸಂ. ಸಂಖ್ಯೆ

ಪ್ರಾ.ಸಂ.ಸಂ. ಸಂಖ್ಯೆ 1986 ರ ಸಂಖ್ಯೆ 40, 42, 58 ಮತ್ತು 70

ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇನು ಮತ್ತು ಪವನ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.೧೬

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ಅಭಿಮಾನಿಗಳಿಗೆ ಸಂತೋಷವಾಗಿದೆ.

பக்கம் 2

ಪಿಂಚು, ಕುಂ, ವೀಣೆಗಳು.

उद्देश्य : वाचनशक्ति

15:00:00

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35	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
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62	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
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68	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
69	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
70	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
71	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
72	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
73	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
74	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
75	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
76	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
77	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
78	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
79	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
80	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
81	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
82	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
83	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
84	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
85	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
86	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
87	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
88	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
89	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
90	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
91	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
92	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
93	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
94	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
95	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
96	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
97	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
98	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
99	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															
100	ಸೇವಾ ವಿಭಾಗ (ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)			(ಅ) ಸೇವಾ ವಿಭಾಗ (ಆ) ಸೇವಾ ವಿಭಾಗ (ಇ) ಸೇವಾ ವಿಭಾಗ (ಈ) ಸೇವಾ ವಿಭಾಗ (ಉ)															

ದಿನಾಂಕ:29/07/2021 13:26 ರೀತ: ರೂ. 15

 $\Delta_{\text{H}_2\text{O}}$ and $\Delta_{\text{H}_2\text{O}}$ needed.

Manuscript received September 1996; revised March 1997; accepted April 1997.

ಗ್ರಾಮ ಪಂಚಾಯತ್ ೨
ಹಾಳೂರು ಮೊಳು

ತುಂಬು ೫೦

കുറിപ്പ്:

ಗಾಂವು :

పుట్టడ తమ సంతతి

1. ಪರ್ವ ಕೆಂಬರು	3. ಖೇತವಾರು ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ ಪೂರ್ವ ಖರೀದಿ (ಅ) ಪೂರ್ವ ಖರೀದಿ (ಬ) ಉಳಿದಿದ್ದು	ಎಕರೆ ಗುಂಪಿ ಅ	4. ಕೆಂಬಾಯಿ (ಅ) ಭೂ ಕೆಂಬಾಯಿ (ಬ) ಜೋಡಿ (ಕ) ಸಮಗುಳು (ಡ) ನೀರಿನ ಪರ	ಬಿ. ಎ. ಎ.	9. ಕಟ್ಟಡ ಇರುವುದು/ನೀರಿನಿಂದ ಕೆಲವು ಕೆಂಬಾಯಿ ಮತ್ತು ವಿಳಾಸ	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ	ಖಾತೆ ನಂ.	10. ಕಟ್ಟಡ ಇರುವುದು/ನೀರಿನಿಂದ ಕೆಲವು ಕೆಂಬಾಯಿ ಮತ್ತು ವಿಳಾಸ	11. ಇತರೆ ಪಕ್ಕಗಳು ಮತ್ತು ಕುಳಿಗಳು ಪಕ್ಕಗಳು: ಮುಖಗಳು:						
2. ಹಿಡ್ಡು			ಒಟ್ಟು												
5. ಮುಕ್ತ ಸಮೀಪ	7. ಮರಗಳ ಬೆಂಚ್	8. ಖೇತವಾರ ಪ್ರಕಾರ ನೀಡುವುದು ವಿಸ್ತೀರ್ಣ													
	ಕೆಂಬಾಯಿ	ಕೆಂಬಾಯಿ	ಕ್ರ. ನ.	ನೀಡುವುದು ಮೂಲ	ಮುಂಗಾಲು	ಹಿಂಗಾಲು	ಬಾಗಾಪು	ಒಟ್ಟು							
	ಕೆಂಬಾಯಿ	3													
	ಹಿಂಗಾಲು	4													
8. ಪಕ್ಕ	ಹಿಂಗಾಲು	5													
ಸಮೀಪ															
12. ಬಾಗಿಲಿನ ಮತ್ತು ಗೋಡೆಯ ವಿವರಗಳು					13. ಭೂಮಿಯ ಉಪಯೋಗ ಮತ್ತು ಬೆಳೆಗಳ ವಿವರ										
ಪರ್ವ ಮತ್ತು ಕಾಲ	ವ್ಯವಸಾಯಗಾರರ ಕೆಂಬಾಯಿ ಮತ್ತು ಬಾಗಾಪು	ಬಾಗಿಲಿನ ಪಕ್ಕ 3	ಗೋಡೆಯ ವಿವರ		ಭೂಮಿಯ ಉಪಯೋಗ		ಮುಕ್ತ, ತರಿ, ಬಾಗಾಪು	ಬೆಳೆಯ ಕೆಂಬಾಯಿ	ಬೆಳೆಯ ವಿಸ್ತೀರ್ಣ			ನೀಡುವುದು ಮೂಲ	ಎಕರೆಗೆ ಉತ್ಪಾದನೆ	ಮಿಶ್ರ ಬೆಳೆಗಳ ಒಟ್ಟು	
1	2	3	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ	ಗುಟ್ಟಿ 5	ಪರ್ವ 6	ವಿಸ್ತೀರ್ಣ ಎ ಗುಂ	8	9	10	11	12	13	14	15	16 ಗುಂ
2016-2017 ಮುಂಗಾಲು 2016-2017 ಹಿಂಗಾಲು	ಗೋಡೆಯ ಗೋಡೆಯ	ಸ್ವಂತ ಸ್ವಂತ			3	23.34.0.0	ಖಾರ್	ಬೀಳು				3-X			

St. Mary's B.

ಶೃಂಗೇರಿ

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ದಿನಗಳಿಗೆ ೧|| ೫|| ಯ ಕೊಡುಮೊಡ್ಡು ಪ್ರಾಯ
ಪ್ರಾಥಮಿಕ, ಪ್ರೌಢಶಾಲೆಯ ದಾಖಲೆಗಳ ಸಂಗ್ರಹ - ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಮುನ್ 2021 ರಲ್ಲಿ ಕೊಡುಮೊಡ್ಡು ಪ್ರಾಯಗಳ ಜನವರಿ ಸಂಖ್ಯೆ
ಈ ಕೈಪಿಡಿಗಳಿಂದ ಎಂಬ ಕಾರಣದಿಂದ ದೃಢೀಕರಿಸಿದೆ

ಕ್ರಮ	ಪ್ರಾಥಮಿಕ ಶಾಲೆ	ಜನವರಿ ಸಂಖ್ಯೆ			ಕೊಡುಮೊಡ್ಡು	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ
		ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ				
1	ಕೊಡುಮೊಡ್ಡು	201	10	211	97	9	106	

ಸ್ಥಳ: ದಾಖಲೆ

ದಿನಾಂಕ 10/6/2024


ದಿನಾಂಕ 10/6/2024
ಪ್ರಾಥಮಿಕ ಶಾಲೆಗಳ ಸಂಖ್ಯೆ
ಕೊಡುಮೊಡ್ಡು (ಸಂಖ್ಯೆ: 8)


ಪ್ರಾಥಮಿಕ ಶಾಲೆಗಳ ಸಂಖ್ಯೆ
ಕೊಡುಮೊಡ್ಡು (ಸಂಖ್ಯೆ: 8)

ದಾವಣಗೆರೆ ತಾ|| ಜಿ|| ಯ ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ಗ್ರಾಮವು ಪ್ರಾಥಮಿಕ ಪಶು
ಚಿಕಿತ್ಸಾಲಯ ಹಾಲುವರ್ತಿಗೆ ಸೇರಿದ್ದು ಜೂನ್ 2021 ರಲ್ಲಿ ಕೆಂಚಮ್ಮನಹಳ್ಳಿ
ಗ್ರಾಮದಲ್ಲಿ ಜಾನುವಾರುಗಳ ಸಂಖ್ಯೆ ಈ ಕೆಳಕಂಡಂತಿದೆ ಎಂದು ಈ ಮೂಲಕ
ದೃಢೀಕರಿಸಿದೆ.

ಗ್ರಾಮದ ಹೆಸರು	ಜಾನುವಾರುಗಳ ಸಂಖ್ಯೆ					
	ದನ	ಎಮ್ಮೆ	ಒಟ್ಟು	ಕುರಿ	ಮೇಕೆ	ಒಟ್ಟು
ಕೆಂಚಮ್ಮನಹಳ್ಳಿ	201	10	211	97	9	106

ಸ್ಥಳ ಹಾಲುವರ್ತಿ
ದಿನಾಂಕ: 10/6/2021

ಸಹಿ
ಹಿರಿಯ ಪಶು ವೈದ್ಯಕೀಯ
ಪ್ರಾಥಮಿಕ ಪಶು ಚಿಕಿತ್ಸಾ ಕೇಂದ್ರ
ಹಾಲುವರ್ತಿ, ದಾವಣಗೆರೆ ತಾ

ಪಶು ವೈದ್ಯಾಧಿಕಾರಿಗಳು
ಪಶು ಚಿಕಿತ್ಸಾಲಯ,
ಹೆಬ್ಬಾಳು, ದಾವಣಗೆರೆ ತಾ|| ಹ||

Translated copy of Annexure-CERTIFICATE

This is to certify that, Kenchammanahalli village, Davanagere taluk and district pertains to Primary Veterinary Hospital, Haluvarthi and the number of domestic animals at Kenchammanahalli village in June 2021 is as under:

<u>Name of the village</u>	<u>No. of domestic animals</u>					
	Ox	Buffal o	Tota l	Shee p	Goa t	Tota l
Kenchammanahalli	201	10	211	97	9	106

Place: Haluvarthi

Date: 10/06/2021

Sd/-

Veterinary Doctor,
Veterinary Hospital,
Hebbaalu, Davanagere
taluk & district

TITLE SHEET FOR JUDGMENTS IN SUITS.

IN THE COURT OF THE PRL. MUNSIFF

AT DAVANGERE

Sri.S.S.Sarangamath, B.Sc., LL.B. (Spl.),

Present

(Name of the Presiding Judge)

Suit No. O. S. 434/89 of 19

1) K.B. Basavarajappa, S/o Chamappa, aged about 55 yrs, 2) K.B. Basavarajappa, S/o Basappa, aged about 55 yrs 3) Kenchappa, S/o Hanumappa, 60 yrs, Plaintiff 4) K.M. Rudrappa, S/o Mallappa, aged about 52 yrs, Plaintiff 5) Chandrappa, S/o Rudrappa, aged about 45 yrs, 6) Krishnanaika S/o Halappa, aged about 55 yrs, Plaintiffs 1 to 5 are R/o Kenchammanahalli, Plaintiff No. 6 is a R/o Hosahallitandya, Davangere tq. (By Pleader Sri. A. Narayana-Murthy)

Vs.

1) Kenchappa, S/o Giriyappa, 40 yrs, 2) Basavarajappa, Defendant S/o Hanumappa, 22 yrs, 3) Ramappa, S/o Giriyappa, 30 yrs, Defendant 4) Durugappa, S/o Adi. Hanumappa, 32 yrs, 5) Thippanna, S/o Thimmappa, 35 yrs, 6) Rangappa, S/o Hanumappa, 60 yrs, 7) Pakkeerappa, S/o Durugappa, 45 yrs, 8) Marappa, S/o Hanumappa, 58 yrs, (By Pleader Sri. H. Prakash) 9) Marudrappa, S/o Giriyappa, 35 yrs, 10) Rudrappa, S/o Hanumappa, 34 yrs. **** PTO.

Date of institution of the suit

22-6-89

Nature of the suit (suit on promissory, suit for declaration and possession, suit for injunction, etc.)

Permanent injunction

Date of the commencement of the recording of the evidence.

21-11-94

Date on which the Judgment was pronounced

2-12-94

Total duration

Year/s
-5-Month/s
-5-Day/s
-10-

2-12-94

PRL. MUNSIFF, DAVANGERE.

The names and descriptions of all the plaintiffs and defendants as stated in the plaint should be mentioned.



11) Parmeswarappa, S/o Thippanna, 30 yrs.

12) Ningappa, S/o Ramappa, 35 yrs

All are residents of Kenchammanahalli village

13) Lachhanaika S/o Keerayanaika, 55 yrs

14) Keerayya Naika, S/o Takaya Naika, 60 yrs

15) Lachha naika, S/o Davajanaika, 50 yrs,

All are residents of Hosahalli village, Davangere tq.




Dist. Judge,
Davangere.

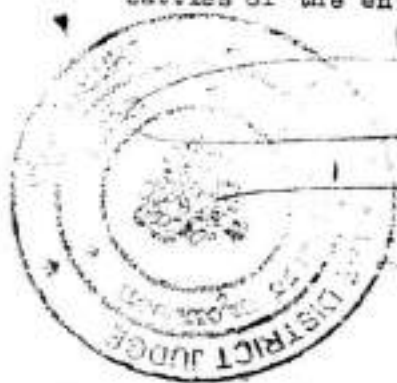
2-12-94

JUDGMENT

The plaintiffs have filed this suit, in the Representative capacity, praying for a decree of permanent injunction, restraining the defendants from cultivating the suit schedule Gomal land, or by causing mischief ^{by} ~~to~~ cut the trees and the bund of Go-katte found in the suit schedule property.

2. The brief averments of the plaint are as under:-

The plaintiffs are Agriculturists, residing at Kenchammanahalli village and Hosahally Tandya in Davangere tq, and they are Agriculturists. As per recent ^{by} ~~sengas~~, there are about 2258 cattle heads from both the villages. The suit land bearing S.No. 2, measuring 23 acres, 34 guntas situated at Kenchammanahalli village, is a Gomal Land. There is a Gokatte in the suit land. There are about 4-5 neem trees, tamarind trees and other trees. Considering the present number of cattle heads, the extent of land for grazing the cattles is not sufficient. Except the suit schedule Gomal land, there are no available places for grazing the cattles of both the villages. The defendants are politically powerful and on 7-6-89, the defendants trees passed into the suit schedule land and started cutting the standing trees. The villagers lodged a complaint to the ^{by} ~~Rafal~~ P.S. and also to the Tehasildar. Though the cases are Registered against the defendants, no action is taken. If the defendants are allowed to cultivate the suit land, the bund will be removed and cattles of the entire village will be deprived of the



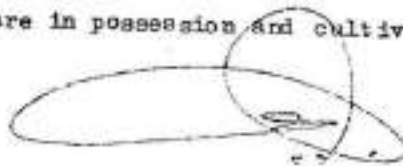
2.12.94

fodder. On the basis of the said grounds, requested to pass the decree, as prayed.

2. Originally, the suit was filed only against 12 defendants. After the direction given by the Court, to plaintiff, the plaintiff got the suit notice, published in the Local daily paper, calling the interested public to appear in this suit. Accordingly, defendants 13 to 15 appeared themselves voluntarily and they are impleaded as parties. Only the defendant No.1 has filed the written statement. The other defendants have adopted the same.

3. The averments of written statement in brief are as under:-

The averments of the plaint that, the plaintiffs are Agriculturists is admitted. The averments of the petition that, there are about more than 2000/- cattle heads from both the village is false and incorrect. The averments of the plaint that, the suit land is reserved as Gomal land is incorrect. ^{existence} The ~~existence~~ of Gokatte in the suit land is ^{due} to provide water facilities to the cattles. But the averments of the plaint that, there are standing trees to provide shade to the cattles is denied. The further ^{adequate} averments of the plaint that, the land available for grazing cattles is ~~infringed~~ is incorrect. The averments of the plaint that, the plaintiffs have filed this suit, in the larger interest of the public is incorrect. The defendants are not influential. But, they belong ^{to} to S.C. & S.T. and they are landless Agriculturists. The defendants are cultivating the suit land since long time and they are in possession and cultivation of suit land.



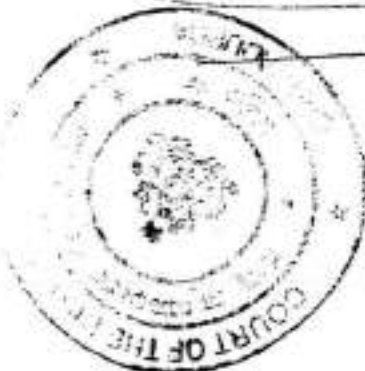
2-12-14



Hence, suit is not maintainable. The plaintiffs are trying to dis-possess the defendants from the suit schedule property. The State Government is the owner of suit schedule property. Hence, the suit is bad for non joinder of necessary parties. The defendants have given application to the Tahasildar, to grant the lands cultivated by them and their applications are still pending. If the decree of permanent injunction is granted, right of the defendants will be curtailed and they will be put to irreparable loss. The plaintiffs are using the suit schedule property ~~but contrary~~ to prepare the bricks from the mud of the suit land. Hence, they have filed this false suit. There are other Gomal lands in Kenchampanahalli village, bearing S.No. ^{measuring} 29, 23 acres and S.No. 12, measuring 19 acres and the land bearing S.No. 35, measuring 37 acres, situated at Hosahalli Thanda, is also a Gomal land and there is sufficient land available to graze the cattle of the village. The defendants have not at all cut and attempted to cut the alleged trees from the suit schedule property. On the basis of the said allegations, requested to dismiss the suit.

5. On the basis of the pleadings of the parties issues are recorded on 3-8-94. Out of the said issues, issue No. 10 ^{is} was directed to be tried as preliminary issue and it was settled, after hearing the parties, ^{is directed} issue No. 10, being the Court fee issue, in the Negative by an order, dtd. 22-10-94 and the parties were allowed to adduce their respective evidences, on the remaining issues.

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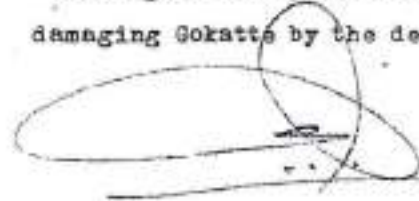
6. On behalf of the plaintiffs, plaintiff No.1 is examined as Pw.1 and an independent witness is examined as Pw.2 and got marked documents at Exs.P1 to P5 and closed the evidence.

7. On behalf of the defendants, Dw.1 is examined and documents at Exs.D1 to D3 are marked and closed the evidence.

8. Heard the arguments of Sri.A.M. Advocate for the plaintiff and Sri. H.P. Advocate for the defendants 1 to 7 and defendants 9 to 12. The defendant No.8, though, served with suit summons, remained absent and is placed ex parte and the defendants 13 to 15, though engaged their independent Advocate, they have not adduced any evidence and they have not advanced any arguments. Hence, posted for judgment.

9. For disposal of this suit, the following issues arise for my consideration:-

- 
- 1) Whether plaintiffs prove that, suit schedule land was continued as Gonal land, for the purpose of public cattle grazing as on the date of suit ?
 - 2) Whether plaintiffs prove that, all the villagers of Kenchammanahalli and Hosahalli Tenda including plaintiffs have legal right to graze their cattles in the suit land ?
 - 3) Whether plaintiffs prove the existence of trees, shrubs, Gokatte, bunds in the suit land ?
 - 4) Whether plaintiffs prove the act of alleged cutting of trees, shrubs and apprehension of damaging Gokatte by the defendants ?

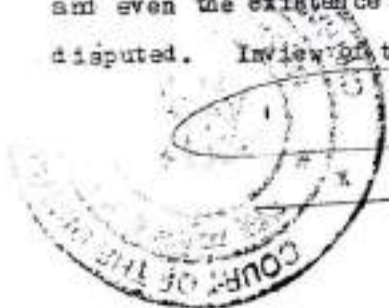

2-12-54

- 5) Whether defendants 1 to 12 caused obstruction to plaintiffs and others in the grazing of cattle in suit land ?
- 6) Whether defendants prove that, on the date of suit, the suit land was not at all a Gomal land ?
- 7) Whether defendants prove that, on the date of suit, they were in actual possession and cultivation of suit land ?
- 8) Whether defendants prove that, suit of plaintiffs is not maintainable in law ?
- 9) Whether suit is bad for non-joinder of the necessary parties ?
- 10) disposed off
- 11) What order or decree ?

10. My findings on issue No.1 to 5, in the Affirmative, on issue No.6 to 9 in the Negative, on issue No.11, as per final order, for the following,

REASONS

11. Issues 1 to 7:- The defendants though admitted that, the suit land is the land owned by the State Government and was earmarked for the purpose of Gomal that is for grazing the cattle. But, they have specifically contended that, on the date of suit, it was not remained as Gomal land. So, denying the claim of the plaintiffs, to graze the cattle in the schedule property. and even the existence of the shrubs trees is also disputed. In view of the said pleadings, the initial



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burden on issue Nos. 1 to 5 is on the plaintiffs and to discharge the initial burden on issues 6 & 7 is on the defendants.

12. Coming to the oral evidence of Pw.1, in his evidence, he has stated that, they are the residents of Kenchammanshalli village and the plaintiff No.6 is the resident of Hosahalli Thanda, and the defendants ² are also the resident of his village and there are about 1200 to 1300 cattles and about 400² to 500 goats in his village, whereas there are about 600-700 cattles in Hosahalli thanda and about 300-400 goats. Suit land, bearing S.No. 2, measuring 23 acres, situated at Kenchammanshalli village is the land owned by the State Govt. earmarked as Gomal land and in the said suit land, there is a Grama Tana of about 3 acres and there is Gokatte in an extent of 1 acre and remaining portion is meant for grazing of the cattles ² and since from his forefathers. Even, as on the date of his evidence, all the villagers are using the suit schedule property, to graze the cattles. To substantiate that, the suit schedule property is the Gomal-land, even, as on the date of suit, the plaintiffs have produced Ex.P3, the RTC. record of the year 1988-89. The col.No. 9 & 12 of the said document reveals that, the suit land is Gomal land, even during the year 1988-89. Ex.P4 is the index of land. The said document also reveals that, even, as on the date of suit, entire, 23 acres 35 guntas in the land bearing S.No. 2 is the Gomal land. The plaintiffs have also produced Ex.P5, the certified copy of the mahazar,



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allegedly prepared by the Revenue official, which also reveals that, in the suit schedule property, the standing trees were found and were cut by the defendants. In his further testimony, he has stated that, the defendants, during the year 1989, attempted to cut the standing trees found in the suit schedule property and attempted to cut and attempted to cut the bund of Gokatte, thereby obstructing the entire villagers in grazing the cattles in the suit schedule property and he has further stated that, excepting the right of grazing the cattles in the suit schedule property, the defendants have no legal right at all to cultivate the suit land or to cut and remove the standing trees and the bund of Gokatte. Accordingly, requested to pass the decree, as prayed. In the cross examination of Pw.1, ~~the oral evidence~~ ^{of Pw.1} the defendants have not at all challenged the contents of Exs.P3 to P5 and even the oral evidence of Pw.1 that, right from the time of his ancestors, the suit land is earmarked as a Gomal land is not at all challenged by the defendants. In the cross examination, it is suggested to Pw.1, by the defendants that, right from the year, 1985, the defendants are cultivating the suit schedule land. But, it is denied by Pw.1. In the cross examination, it is also suggested to Pw.1 that, in addition to suit land, the land bearing S.No. 12 & 29 are also Gomal lands and it is also denied by Pw.1. It is also suggested to Pw.1, by defendants that, the defendants are unlawfully cultivating the suit land. The said suggestion is also denied by Pw.1. So, excepting the said suggestion, the defendants have also not at all impeached the evidence of Pw.1. So, the evidence of Pw.1 is consistent with the documents marked as Exs.P3 to P5. Because, ^{as in} the said documents ^{it is} shown that, even, as on the date of suit, the suit schedule property remained as Gomal land. The evidence of Pw.1 that,

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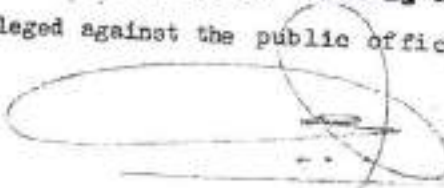
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since from his ancestors, suit land is a Gomal land and it is used for the said purpose, being quite natural and further evidence of Pw.1 that, there are standing trees in the suit schedule property, which provides shelter to the cattle shall have to be accepted as truthful and bonafide.

13. In addition to the oral testimony of Pw.1, the ~~defendants~~ ^{plaintiffs} have also examined Pw.2, an independent witness, who is aged about 62 years. He has also stated that, suit land is the Gomal land and there are about more than 1000 cattle in his village and suit land is the only Gomal land earmarked as Gomal land and he has also spoken about the interference by the defendants. In the cross examination, it is suggested to Pw.2 that, the defendants are cultivating the suit land, unauthorisedly and it is also denied by Pw.2. It is also suggested to Pw.2 that, in addition to suit land, there are two other Gomal lands, which is also denied by Pw.2. Hence, the evidence of Pw.2, being quite natural and probable, fully corroborates the oral evidence of Pw.1. So, through his oral evidence, the plaintiffs have discharged the initial burden on issues 1 to 5. The evidence of Pw.1 to the effect that, there are more than 2000 cattle from both the village, shall have to be accepted as truthful and bonafide because, it finds support from Ex.P1. Though, it is suggested by the defendants to Pw.1 that, Ex.P1 is the concocted document. But, it is issued by the public servant during the discharge of his official duty. ~~Without~~ any ulterior motive, is alleged against the public officer, there are no reasons

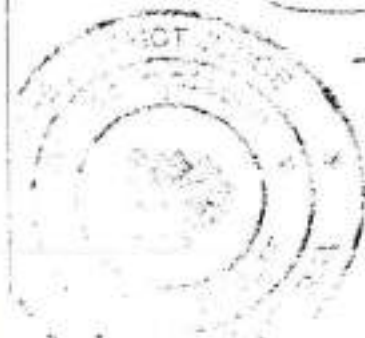


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to dis-believe the contents of Ex.P1.

14. Coming to the oral evidence of defendants, to rebut the evidence of the plaintiff, placed on issues Nos. 1 to 5 and to discharge the initial burden on issues 6 & 7, Dv.1 in his oral evidence has stated that, the suit schedule property ~~is~~ ^{is} the property, owned by the State Government. Himself and all the defendants are cultivating it, ~~Since defendants 8 to 9~~ ^{Since defendants 8 to 9} years and there are no trees in the suit schedule property. But, he has specifically admitted about the existence of Gomsal in the suit schedule property. The conduct of defendants is evident from this evidence because, in the written statement, the defendants have denied the existence of Gomsal, but ^{ultimately} the truth has come out through the evidence of Pw.1, in the chief examination itself. He has also stated that, there are two other kharab lands in his village for grazing of cattles in addition to the suit schedule property. To substantiate this evidence, plaintiffs have also produced Ex.D1, the RFC. of land bearing S.No. 29, which also shows that, 5 acres 1 guntas of the said land is kept as 'Hullabami Kharab'. So also the plaintiffs have also produced Ex.D2, the RFC. of the land, bearing S.No. 12, an extent of 14 acres, 27 guntas is shown as 'Sendhi Kharab'. The defendants have also produced Ex.D3, the certified copy of the proceedings, dtd. 5-7-93 of the committee, allegedly appointed by the State Government to consider the regularisation of un-authorized cultivation of Gomsal land. In Ex.D3, it is

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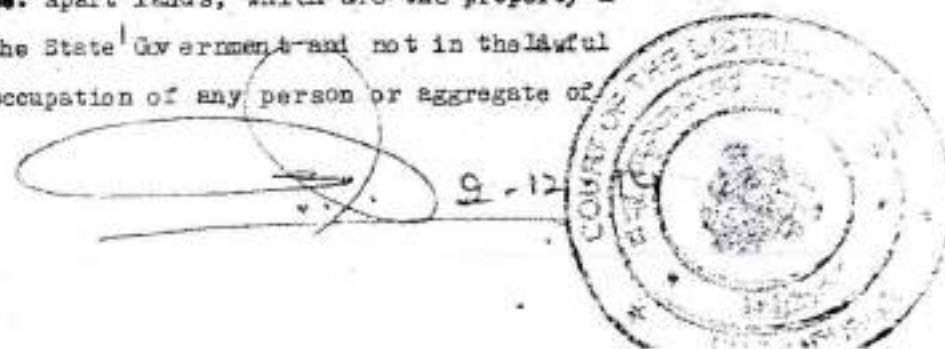
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and they have also failed to rebut the evidence lead by the plaintiff, on issue No.1 to 5. More over, the interference on the part of the defendants in the suit land, for grazing of cattle is also proved because, the defendants themselves through the evidence of Dw.1, contended that, they cultivated the suit land for the last 8 to 9 years, which is disputed. So, on the basis of the said evidence, adduced by the parties, it has to be held that, the suit land which was earmarked by the State Government as Gomal land and continued to be the Gomal land, even as on the date of suit and plaintiffs and defendants and other villagers have legal right to graze the cattle without interruption or obstruction and they have legal right to resist mischief of defendants in case damage to the ~~pasture~~ ^P found in the suit land and in case damage to the Gokatte and standing trees.

15. Apart from the evidence adduced by the parties, during the course of trial, even for the time being it is accepted that, there are other Kharab lands for the parties to graze the cattle as contended and proved by the defendants through Eas. D1 & D2 ~~whereas~~ ^{the} the defendants have legal right to use the Suit land for the any other purpose than ~~any~~ ^{use} as Gomal land, without authority by competent persons is the next point for my consideration. In this regard, it is relevant to refer to Sec. 71 of the Kar. Land Revenue Act.

- Land may be assigned for special purpose and when assigned shall not be otherwise used without sanction of Deputy Commissioner:- Subject to the general orders of the State Government. Survey officers, whilst survey operations are proceeding under this Act, any other time, the Deputy Commissioner may set apart lands, which are the property of the State Government and not in the lawful occupation of any person or aggregate of



persons in any village or portions of a village for free pasturage for forest reserves or for any other purpose; and land assigned specially for any such purpose shall not be otherwise used without the sanction of the Deputy Commissioner and in the disposal of lands under section 69 of due regard shall be had to all such special assignments.

16. So, the plain reading of above said section is quite clear that, the land is earmarked specially for the purpose of Gomal land, it ^{is} not to be used without sanction of the Deputy Commissioner, for any other purpose. So, ^{the} plaintiff, here in this case, for the time being it is accepted that, the defendants have cultivated the suit land, for 8 to 9 years, whether the plaintiffs have legal right to institute the suit and resist it is the next point for my consideration. Because, in view of this specific provision, the defendants have no legal right to use the suit land for cultivation without authority of the Deputy Commissioner. So, the contention of the defendants submitted by way of arguments, through Sri. H.P. Advocate that, the defendants are in cultivation of suit land and plaintiffs have no legal right to ^{graze} the ~~cattle~~ in the suit land is not at all sustainable. ^{Even} the defendants have got no dispute with respect to their alleged right, their duty is to approach the Deputy Commissioner, to get the dispute resolved which is ^{available} effect from Sec. 7 of the Karnataka Land Revenue Act. So, for the provision for providing free pasturage, for grazing of cattle is concerned, a relevant rule is provided U/R No. 97 of Kar. Land Revenue Rules. According to Rule 97



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of Karnataka Land Revenue Rules;

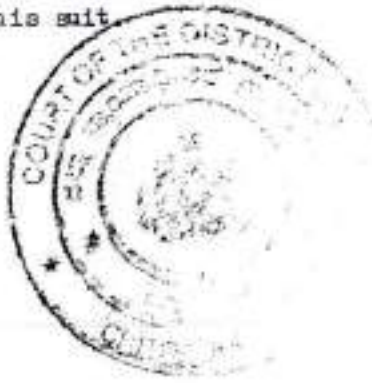
- * there shall be 12 ^{hectares} ~~acres~~ of land for every 100 cattles.

17. So, admittedly, the plaintiffs have proved that, there are more than 4000 cattles from the both villages. ^{if} ~~even~~ 12 ^{hectares} ~~acres~~ of land for 100 cattle is ^{calculated} ~~concerned~~, the available land as Gomal land is certainly inadequate for the entire village as stated by the plaintiffs. Rule 37(4) further provides

- * a provision authorising the Deputy Commissioner to fix a certain extent of land for free pasturage in the village as his authority to alienate the Gomal land for the purpose of ^{cultivation}, even ^{it is} found to be excess land.

18. So, until the Deputy Commissioner passes an order, authorising ^{the} ~~for~~ use of Gomal land for cultivation, the plaintiffs have legal right to graze, in view of Sec. 71 of the Kar. Land Revenue ^{Act} ~~Act~~ to use the suit land as Gomal land. So, the apprehension of the learned Advocate for the defendants that, the defendants have ~~proved~~ ^{not} application for grant of suit land, for cultivation and if decree of permanent injunction is passed, the legal right of the ^{sustainable} ~~defendants~~ will be infringed is not at all ~~correct~~, because, the plaintiffs have legal right to use the suit land, as Gomal land until, it is continued to be the Gomal land. If the competent authority under the Kar. Land Revenue Act passes a necessary order of permitting use of suit land for cultivation from that date, the plaintiffs will have no legal right to take benefit of this finding in this suit. With this finding, I hold that, the plaintiffs are

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entitled to a decree of permanent injunction, restraining the defendants from interfering the plaintiffs and other villagers, to ²graze the cattle and from causing mischief to the suit schedule property and Gokatte. Accordingly, issues 1 to 5 are answered in the Affirmative and issue Nos. 6 & 7 are answered in the Negative.

19. Issue Nos. 9 & 11:- The defendants have contended in the W/s. that, the suit is not maintainable in law. In this regard, it is necessary to refer to the law, rendered by our own High Court, reported in ILR. 1993 Kar. P. 149, Held:-
O.39 Rule 1 & 2 CPC.

" Addition of the words of any kind, after the words or other injury, in the present Rule makes it clear that, an injunction can be granted to less than any kind of legal injury, if the plaintiff has got a right and even by the action of the defendant injury is being caused to the plaintiff, then, the plaintiff can apply for presumption of that injury by recourse to Rule

20. Here in this case also, in view of Sec. 72 of the Karnataka Revenue Act, the plaintiff has shown that, all the plaintiffs and all the villagers of the Kenchammanahalli & Hpsally Tandiya have legal right to use the suit land as Gomal land and they have also proved that, the defendants have caused injury to their legal right by way of attempt to cultivate the suit land and by way of ²damage to cut of the trees and bund of the Gokatte. So, the plaintiffs have legal right to institute the suit. Hence, the present suit is maintainable and contrary contention raised by the defendants



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is not sustainable, under law. Accordingly, issue No.8 is answered in the Negative.

21. The defendants have also contended that, the State Govt. is a necessary party, and the suit is bad for non joinder of necessary party.

" Necessary party is one, in the absence of said party, an effective decree cannot be passed "

22. Here in this case, admittedly, the suit land is a Gomal land, and when the defendants have not proved that, the Gomal land is permitted to be used for other purpose by competent authority. When the documents produced by the plaintiffs are shown that, the suit land is a Gomal land, as on the date of suit, and when, it is not the case of the plaintiff that, the employees of the State Government are obstructing in the use of suit land as Gomal land, it is the case of the plaintiffs that, the defendants alone are obstructing and infringing the legal right of the plaintiffs. So, if a decree of permanent injunction is passed against the defendants, it can be effectively executed even, in the absence of the State Government, as a party. So, in my opinion, the contention raised by the defendants that the State Government is a necessary party and suit is bad for non joinder of necessary party is not sustainable. For the said reasons, issue No.9 is answered in the Negative.

23. In view of my findings, on the above said issues,



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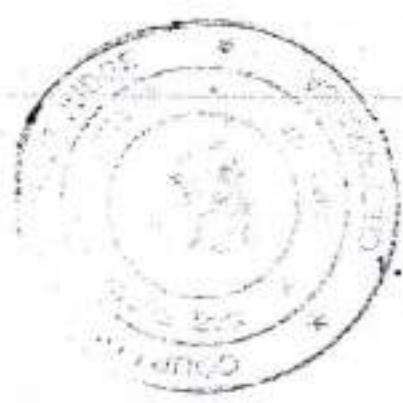
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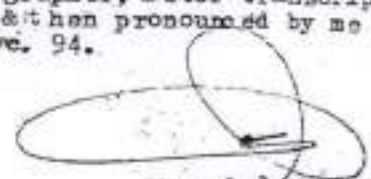
I proceed to pass the following,

ORDER

The suit of the plaintiffs is decreed with costs. The defendants, their men, agents, servants etc., are restrained by ~~an order~~ ^{of} decree of permanent injunction, from causing mis-chief by cutting standing trees or the bund of Gekatte and from interfering the plaintiffs in ^{and all villages} grazing of the cattle in the suit schedule property, till the suit schedule property continues to be the Gomal land.

Dictated to the stenographer, after transcription & typing, corrected, signed & then pronounced by me in open Court, this 2nd day of Dec. 94.




(S.S. SARAVARAMATH)
P.R. MUNSHIFF, DAVANGERE. 2.12-94

ANNEXURE

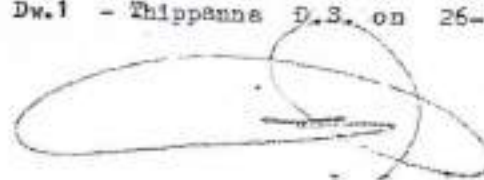
Witnesses examined for the plaintiff:-

Pw.1 - Basavarajappa, D.S. on 21-11-94

Pw.2 - Mallappa - do -

2. Witnesses examined for the defendants:-

Dw.1 - Thippanna D.S. on 26-11-94


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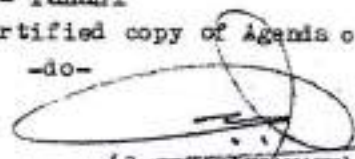
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3. Documents exhibited for the plaintiffs:-

- Ex.P1 - Cattle census Certificate
- Ex.P2 - Daily newspaper Janathavani
- Ex.P3 - RTC. extract
- Ex.P2(a) - Publication
- Ex.P4 - RTC. extract
- Ex.P5 - Mahazar of Tahasildar

4. Documents exhibited for the defendants:-

- Exs.D1 & 2 - Pahani
- Ex.D3 - Certified copy of Agenda of meeting
- Ex.D4 - -do-

 2.12.94

(S. S. SARANGAMATH)
PRL. KUNSIFF: DAVANGHER



TRUE COPY



EXAMINER

(79)

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

vs

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...

Dr. J. C. ...



- ⑫ Kuthappa of Panampet, aged about 22 yrs.
 @ Panampet, aged about 25 yrs.
 30 yrs.
- ⑬ Panappa of Panampet, aged about 25 yrs.
 He is the father of Kuthappa, Panampet - Taluk.
- ⑭ Mahalingam of Keeraga, aged about 50 years, Panampet.
- ⑮ Keeraga Nataraja of Keeraga, aged about 50 years, Panampet.
- ⑯ Lakshmi Nataraja of Durganagar, aged about 50 years, Panampet, Panampet - Taluk.

Subj. = The plaintiffs have filed this suit on 20.6.1989 for a perpetual injunction restraining the defendants, their men, agents, etc. on the one hand, from cutting and removing the trees and shrubs on the suit land, commit waste and nuisance, by cutting any part of land of the suit land situated in the suit land, and preventing the plaintiffs and their men from grazing their cattle in the suit land and for cattle.

The suit comes on this day, the first day of the 8th S.S. Sanyamathi
 1989 (S.S. Sanyamathi) in the

T-12-94.

Money returned at cost of Bail

Debit 45 Defendant's 13/11/15

Rs. 10 Rs. 10 Rs. 10

- ① Court fees 10/- 100-00
- ② " " 100-00 100-00
- ③ " " 8-00 2-00 6-00
- ④ Service of process 200-00
- ⑤ Pleasure for 100-00
- ⑥ Testimony etc 3-00 2-00 2-00



452 225 5200 9200

Subordinate

P.L. Srinivas
Deputy

7.12.92

27/9/15

Normal land bearing Syno. 2

Copy measuring areas as, just as 34 with 0 5/10/15
 Meas. of Kattolwina nallu village, 29/10/16

Examine: Pannasine Calicut, and bands 100 29/10/15

Examined: Survey and saddle land 100

Examined: Road leading to Holarashtu 100

Examined: 4th nallu n. 100
 Examined: Chidambaram, Siddaganga 100
 Examined: And measuring areas land 100

P.L. Srinivas 7.12.92

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C.R.P.67
Form No.9 (Civil)
Title sheet for
Judgment in suits
(R.P.91).

TITLE SHEET FOR JUDGMENTS IN SUITS.
IN THE COURT OF PRL.MUNSIFF AT DAVANGERE
SRI.S.S.SARANGAMATH B.Sc. LLB (SPL).,

Suit No.O.S.434/89

Plaintiffs :

1. K.G.Basavarajappa
S/o Channappa,
aged about 55 years,
2. K.B.Basavarajappa
S/o Basappa
aged about 55 years
3. Kenchappa,
S/o Hanumappa
60 years,
4. K.M.Rudrappa
S/o Mallappa,
aged about 52 years,
5. Chandrappa
S/o Rudrappa
aged about 49 years,
6. Krishnanaika
S/o Halappa
aged about 55 years

Plaintiffs 1 to 5 are R/o
Kenchammanahali,
Plaintiff No.6 is a R/o Hosshallitandya,
Davanagere Taluk

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By Pleader A.Narayana Murthy.

V/s-

Defendants :

1. Kenchappa,
S/o Giriappa 40 years,
2. Basavarajappa
S/o Hanumappa
22 years,
3. Ramappa
S/o Giriappa 30 years,
4. Durugappa
S/o Adi Hanumappa
52 years,
5. Thippanna
S/o Thimmappa
35 years,
6. Rangappa
S/o Hanumappa
60 years
7. Pakkeerappa
S/o Durugappa
45 years
8. Marappa
S/o Hanumappa
58 years,
9. Maharudrappa
S/o Giriappa,
35 years,
10. Rudrappa
S/o Hanumappa
34 years

11. Parameswarappa
S/o Thippanna 30 years

12. Ningappa
S/o Ramappa, 35 years

All are residents of Kenchammanahalli village.

13. Lachhanaika
S/o Keeryanaika 55 years

14. Keerayya Naika
S/o Takaya Naika 60 years

15. Lachha Naika
S/o Devajanaika 50 years

All are residents of Hosahalli village,
Davanagere taluk.

By pleader Sri.H.Prakash

Date of institution of the Suit : 22.6.89

Nature of the suit (suit on pro-note,
Suit for declaration and possession,
Suit for injunction etc)

Permanent injunction

Date of commencement of the
Recording of the evidence

21.11.1994.

Date of which the judgment
Was pronounced

02.12.1994.

Total duration

Year /s Month/s Day/s
5 5 10

Sd/-

Prl Munisff, Davanagere

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JUDGMENT

The plaintiff have filed this suit, in the representative capacity, praying for a decree of permanent injunction, restraining the defendant a from cultivating the suit schedule Gomal land, or by causing mischief to cut the trees and the bund of Go-katte found in the suit schedule property.

2. The brief averments of the plaint are as under :-

The plaintiffs are agriculturists residing at Kenchammanahalli village and Hosahally Thandya in Davanagere taluk and they are agriculturists. As per recent sengats, there are about 2258 cattle heads from both the villages. The suit land bearing S.No.2, measuring 23 acres, 34 guntas situated at Kenchamanahalli village, is a gomal land. There is a Gokatte in the suit land. There are about 4-5 Neem trees, tamarind trees and other trees. Considering the present number of cattle heads, the extent of land for grazing the cattles is not sufficient. Except the suit schedule gomal land, there are no available places for grazing the cattles of both the villages. The defendants are politically

powerful and on 7.06.89 the defendants tress passed into the suit schedule land and started cutting the standing trees. The villagers lodged a complaint to the rural P.S. and also to the Tahasildar. Though the cases are registered against the defendants, no action is taken. If the defendants are allowed to cultivate the suit land, the bund will be removed and cattles of the entire village will be deprived of the fodder. On the basis of the said grounds, requested to pass the decree, as prayed.

2. Originally, the suit was filed only against 12 defendants. After the direction given by the court, to plaintiff the plaintiff got the suit notice, published in the local daily paper, calling the interested public to appear in this suit. Accordingly, defendants 13 to 15 appeared themselves voluntarily and they are impleaded as parties. Only defendant No.1 has filed the written statement. The other defendants have adopted the same.

3. The averments of written statement in brief are as under :

The averments of the plaint that, the plaintiffs are agriculturists is admitted. The averments of the petition

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that, there are about more than 2000/- cattle heads from both the village is false and incorrect. The averments of the plaint that, the suit land is reserved as Gomal Land is incorrect. The existence of Gokatte in the suit land is due to provide water facilities to the cattles. But the averments of the plaint that, there are standing trees to provide shades to the cattles is denied. The further averments of the plaint that, the land available for grazing cattles is inadequate is incorrect. The averments of the plaint that, the plaintiffs have filed this suit, in the larger interest of the public is incorrect. The defendants are not influential. But, they belongs to SC & ST and they are landless agriculturists. The defendants are cultivating the suit land since long time defendants and they are in possession and cultivation of the suit land. Hence, Suit is not maintainable. The plaintiffs are trying to dis-posses the defendants from the suit schedule property. The State Government is the owner of suit schedule property. Hence, the suit is bad for non joinder of necessary parties. The defendants have given application to the Tahasildar, to grant the lands cultivated by them and their applications are still

pending. If the decree of permanent injunction is granted, right of the defendants will be curtailed and they will be put to irreparable loss. The plaintiffs are using the suit schedule property to prepare the bricks from the mud of the suit land. Hence, they have filed this false suit. There are other Gomal lands in Kenchammanahalli village bearing S No.29, measuring 23 acres and S No.12 measuring 19 acres and the land S No.35, measuring 37 acres, situated at Hosahalli Thanda, is also a Gomal land and there is sufficient lands available to graze the cattles of the village. The defendants have not at all cut and attempted to cut the alleged trees from the suit schedule property. On the basis of the said allegations, requested to dismiss the suit.

5. On the basis of the pleading of the parties issues are recorded on 03.08.1994. out of the said issues, issue No.10 was directed to be tried as preliminary issue and it was settled, after hearing the parties issue No.10, being the court fee issue is answered in the negative by an order dated 22.10.1994 and the parties were allowed to

adduce their respective evidence, on the remaining issues.

6. On behalf of the plaintiffs, plaintiff No.1 is examined as PW.1 and an independent witness is examined as PW 2 and got marked documents at Exs.P1 to P5 and closed the evidence.

7. On behalf of the defendants, DW1 is examined and documents at Exs.D1 to D5 are marked and closed the evidence.

8. Heard the arguments of Sri ANM advocate for the plaintiff and Sri HP Advocates for the defendants 1 to 7 and defendants 9 to 12. The defendants No.8 though served with suit summons, remained absent and is placed exparte and the defendants 13 to 15 , though engaged their independent advocate, they have not adduced any evidence and they have not advanced any arguments. Hence posted for judgment.

9. For disposal of this suit, the following issues arise for my consideration :-

1. Whether plaintiffs prove that, suit schedule land was continued as Gomal land, for the purpose of a public cattle grazing as on the date of suit ?
2. Whether plaintiffs prove that, all the villagers of Kenchammanahalli and Hosshalli Thanda including plaintiffs have legal rights to graze their cattles in the suit land ?
3. Whether plaintiffs prove the existence of trees, shrubs, Gokatte, bunds in the suit land ?
4. Whether plaintiffs prove the act of alleged cutting of trees, shrubs and apprehension of damaging Gokatte by the defendants ?
5. Whether defendants 1 to 12 caused obstruction to plaintiffs and others in the grazing of cattles in the suit land ?
6. Whether defendants prove that, on the date of suit, the suit land was not at all a Gomal land ?
7. Whether defendants prove that, on the date of suit, they were in actual possession and cultivation of suit land ?
8. Whether defendants prove that, suit of plaintiffs is not maintainable in law ?

9. Whether suit is bad for non-joinder of the necessary parties ?

10. disposed off

11. What order or decree ?

10. My findings on issue NO.1 to 5, in the Affirmative, on issue No.6 to 9 in the Negative, on issue No.11 as per final order for the following :-

REASONS

11. Issue 1 to 7 : - The defendants though admitted that, the suit land in the land owned by the state Government and was earmarked for the purpose of Gomal that is for grazing the cattles. But, they have specifically contended that, on the date of suit, it was not remained as Gomal land. So, denying the claim of the plaintiffs, to graze the cattles in the schedule properties and even the existence of the shrubs tress is also disputed. In view of the said pleadings, the initial burden on issue NOs.1 to 5 is on the plaintiffs and to discharges the initial burden on issues 6 & 7 is on the defendants.

12. Coming to the oral evidence of PW1, in his evidence, he has stated that, they are the residents of

Kenchammanahalli village and the plaintiff No.6 is the resident of Hosahalli Thanda, and the defendants are also the resident of his village and there are about 1200 to 1300 cattles and about 400 to 500 goats in his village, whereas there are about 600-700 cattles in Hosahalli thanda and about 300-400 goats. Suit land, bearing S No.2, measuring 23 acres, situated at Kenchammanahalli village is the land owned by the State Govt. earmarked as Gomal land and in the said suit land, there is a Gramatana of about 3 acres and there is Gokatte in an extent of 1 acre and remaining portion is ment for grazing of the cattles and since from his forefathers. Even, as on the date of his evidence, all the villagers are using the suit schedule property, to graze the cattles. To substantiate that, the suit schedule property is the Gomal land, even, as on the date of suit, the plaintiffs produced Exs.P3, the RTC, record of the y ear 1988-89. The col.No.9 and 12 of the said document reveals that, the sit land is Gomal land, even during the year 1988-89. Ex.P4 is the index of land. The said document also reveals that, even, as on the date of suit, entire, 23 acres 35 guntas in the land bearing S No.2 is the Gomal land.

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The plaintiff have also produced Ex.P5, the certified copy of the mahazar allegedly prepared by the Revenue officials, which also reveals that, in the suit schedule property, the standing trees were found and were cut by the defendants. In his further testimony, he has stated that, the defendants, during the year 1989, attempted to cut the standing trees found in the suit schedule property and attempted to cut and attempted to cut the bund of Gokatte, thereby obstructing the entire villagers is grazing his cattles in the suit schedule property and he has further stated that, excepting the right of grazing the cattles in the suit schedule property, the defendants have no legal right at all to cultivate the suit land or to cut remove the standing trees and the bund of Gokatte. Accordingly, requested to pass the decree, so prayed. In the cross examination of PW1 the defendants have not at all challenged the contents of Exs.P3 to P5 and even the oral evidence of PW.1 that, right from the time of his ancestors the suit land is earmarked as a Gomal land is not at all challenged by the defendants. In the cross examination, it is suggested to PW1 by the defendants that, right from this year 1985 the defendants are

cultivating the suit schedule land. But, it is denied by PW1. In the cross examination, it is also suggested to PW1 that, in addition to suit land the land bearing S No.12 & 29 are also Gomal lands and it is also denied by PW.1. It is also suggested to PW1 by defendants that, the defendants are unauthorisedly cultivating the suit land. The said suggestion is also denied by PW1. SO excepting the said suggestion, the defendants have also not at all impeached the evidence of PW1. So, the evidence of PW.1 is consistent with the documents marked as Exs.P3 to P5. Because in the said documents marked it is shown that even, as on the date of suit, the suit schedule property remained as Gomal land. The evidence of PW1 that, since from his ancestors, suit land is a Gomal land and it is used for the said purpose, being quite natural and further evidence of PW1 that, there are standing trees in the suit schedule property, which provides shelter to the cattles shall have to be accepted as truthful and bonafide.

13. In addition to the oral testimony of PW.1 the plaintiffs have also examined PW2 as independent witness, who is aged about 62 years. He has also stated

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that, suit land is the Gomal land and there are about more than 1000 cattles in his village and suit land is the only Gomal land earmarked as Gomal land and he has also spoken about the interference by the defendants. In the cross examination it is suggested to PW2 that, the defendants are cultivating the suit land, unauthorisedly and it is also denied by PW.2. It is also suggested to PW2 that, in addition to suit land, there are two other Gomal lands, which is also denied by PW2. Hence, the evidence of PW2 being quit natural and probable, fully corroborates the oral evidence of PW1. So, through his oral evidence, the plaintiffs have discharges the initial burden on issues 1 to 5. The evidence of PW 1 to the effect that, there are more than 2000 cattles from both the villages, shall have to be accepted as truthful and bonafide because, it finds support from Ex.P1. Though, it is suggested by the defendants to PW1 that, Ex.P1 is the concocted document. But, it is issued by the public servant during the discharge of this official duty. Without any ulterior motive, is alleged against the public officer, there are no reasons to disbelieve the contents of Ex.P1.

14. Coming to the oral evidence of defendants, to rebut the evidence of the plaintiff, placed an issue Nos.1 to 5 and to discharge the initial burden on issue 6 and 7 DW.1 in his oral evidence has stated that, the suit schedule property is the property owned by the State Government. Himself and all the defendants are cultivating it, since 9 years and there are no trees in the suit schedule property. But, he has specifically admitted about the existence of Gomal in the suit schedule property. The conduct of defendants is evident from this evidence because, in the written statement, the defendants have denied the existences of Gokatte. But ultimately the truth has come out through the evidence of PW1 in the chief examination itself. He has also stated that there are two other kharab lands in his village for grazing of cattles in addition to the suit schedule property. To substantiate this evidence, plaintiffs have also produced Ex.D.1 the RTC, of land bearing S No.29, which also shown that, 5 acres 1 gutnas of the said land is kept as "Hullubanni Kharab". So also the plaintiffs have also produced the Ex.D.2 the RTC of the land, bearing S No.12 an extent of 14 acres, 27 guntas is

shown as "Sendhi Kharab". The defendants have also produced Ex.D.3 the certified copy of the proceedings, dated 05.07.1993 of the committees, allegedly appointed by the state Government to consider the regularization of unauthorized cultivation of Gomal land. In Ex.D.3, it is specifically stated that, the land available in the village of Gomal land is very inadequate. It is also stated that "ಈ ಖಮೀನು ಸಾಗುವಳಿಯಿಲ್ಲ ಇರುವುದಿಲ್ಲ" So this document is marked as Ex.D.3 is a document dated 01.07.1993, which clearly goes to show that, when the said committees, allegedly visited the suit schedule property, it was not found in cultivation, though, said committee has recommended for grant of suit land and to defendants. So the oral evidence of DW1, relying upon the contents of Ex.D.3 , who has stated that even, as on the date of suit, himself and other defendants are cultivating the suit land has to be accepted as an improbable and unreliable evidence. in the cross examination of DW1, the plaintiffs have specifically denied the cultivation of suit land by the defendants, for the last 8 to 10 years, and it is also suggested to DW1 that DW 1 and other defendants attempted to cut off the standing trees and cause

damage to the Gokatte. Looking to the conduct of the DW1, the suggestion made by plaintiffs appears to be quite natural and bonafied. Though, DW1 has stated that, for the last 8-9 years, himself and other defendants are cultivating the suit land is different bits they have not produced any documentary evidence or corroborative oral evidence. on the other hand, in the cross examination of DW1 the plaintiffs have elicited that, himself and defendants have not paid the TT charges, for alleged unauthorized cultivation. So, this is also a strong circumstance, to disbelieve the oral evidence of DW1 about alleged cultivation of suit land by himself and other defendants. So through their own evidence, defendants have failed to discharge the initial burden on issues 6 & 7 and they have also failed to rebut the evidence lead by the plaintiff, on the issue NO.1 to 5. Moreover, the interference on the part of the defendants in the suit land, for grazing of cattles is also proved because, the defendants themselves through the evidence of DW1 contended that, they cultivated the suit land for the last 8 to 9 years, which is disputed. So, on the basis of the suit evidence, adduced by the parties, it has to be

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held that, the suit land which was earmarked by the state government as gomal land continued to be the Gomal land, even as on the date of suit and plaintiffs and defendants and other villages have legal right to graze the cattles without interruption or obstruction and they have legal rights to resist mischief of defendants in case damage to the pasturage found in the suit land and incase damages to the Gokatte and standing trees.

15. Apart from the evidence adduced by the parties, during the course of trial, even for the times being it is accepted that, there are other kharab lands for the parties to gaze the cattles as contended and proved by the defendants through Exs.D1 to D2 where the defendants have legal right to use the suit land for any other purpose that for use as Gomal land, without authority by competent persons is the next point for any consideration. In this regard, it is relevant to refer to sec.71 of the Kar. Land Revenue Act.

* Land maybe assigned for special purpose and when assigned shall not be otherwise used without sanction of Deputy Commissioner : - subject to the general orders of

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the state government. Survey officers, whilst survey operations are proceedings under this act, any other time, the Deputy commissioner may bet apart lands, which are the property of the State Government and not in the lawful occupation of any person or aggregate of persons in any village or portions of a village for free pasturage for forest reserves or for any other purpose; and land assigned specially for any such purpose shall not be otherwise used without the sanction of the Deputy commissioner and in the disposal of lands under section 69 of the due regard shall be had to all such special assignments.

16. So the plaint reading of above said section is quite clear that when the land is earmarked specially for the purpose of Gomal land it shall not be used without sanction of the Deputy Commissioner for any other purpose. So here in this case for the time being it is accepted that, the defendants have cultivated the suit land for 8 to 9 years whether the plaintiffs have legal right to institute the suit and resist it is the next point for any consideration. Because, in view of this specific

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provision, the defendants have no legal rights to use the suit land for cultivation without authority of the Deputy Commissioner. So, the contention of the defendants submitted by way of arguments, through Sr.H.P. Advocates that, the defendants are in cultivation of suit land and plaintiffs have no legal right to graze the cattles in the suit land is not at all sustainable. If the defendants have not got any dispute with respect to their alleged right, their duty is to approach the Deputy Commissioner, to get the dispute resolved which is available under Section 72 of the Karnataka Land Revenue act. So, for the provision for providing free pasturage , for grazing of cattles is concerned, a relevant rule is provided u/r No.97 of Kar. Land Revenue Rules, According to Rule 97 of Karnataka land revenue rules. "there shall be 12 hectares of land for every 100 cattles."

17. So, admittedly, the plaintiffs have proved that, there are more than 4000 cattles from both villages, so even 12 hectares of land for 100 cattle is calculated the available land as Gomal land is certainly adequate for the entire village as stated by the plaintiffs. Rule 97(4) further provides.

"a provision authorizing the Deputy commissioner to fix a certain extent of land for free pasturage in the village as his authority to alienate the Gomal land for the purpose of cultivation, even it is found to be excess land.

18. So, until the Deputy commissioner passes an order, authorizing use of Gomal land for cultivation the plaintiffs have legal rights to graze, in view of Sec.71 of the Kar.Land Revenue Act to use the suit land as Gomal land. So ,the apprehension of the learned advocate for the defendants that, the defendants have application for grant of suit land, for cultivation and if decree of permanent injunction is passed, the legal right of the defendants will be infringed is not at all sustainable because the plaintiffs have legal right to use the suit land as gomal land until, it is continued to be the Gomal land.

If the competent authority under the Kar.Land Revenue Act passes a necessary order of permitting use of suit land for cultivation from that date, the plaintiffs will have no legal right to take benefit of this finding in this suit with this finding, I hold that, the plaintiffs are entitled to a decree of permanent injunction, restraining the

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defendants from interfering the plaintiffs and other villagers, to graze the cattles and from causing mischief to the suit schedule property and Gokatte. Accordingly issues 1 to 5 are answered in the affirmative and issues No.6 & 7 are answered in the negative.

19. Issue No.8, 9 and 11 : The defendants have contented in the v/s that, the suit is not maintainable in law. In this regard it is necessary to refer to the law, rendered by our high court, reported in ILR, 1993 Kar P. 149 Held : O.39 Rule 1 & 2 CPC.

"Addition of the words of any kind, after the words or other injury, in the present rule makes it clear that, an injunction can be granted to less than any kind of legal injury, if the plaintiff has got a right and even by the action of the defendant injury is being caused to the plaintiff, then the plaintiff can apply for presumption of that injury by recourse of rule.

20. Here in this case also, in view of sec 71 of the Kar. Land Revenue act the plaintiffs have shown that, all the plaintiffs and all the villagers of the Kenchammanahalli and Hosahally Thandya have legal right to use the suit

land as Gomal land they have also proved that, the defendants have caused injury of their legal right by way of attempt to cultivate the suit land and by way of causing damage to the trees and bund of the Gokatte. So, the plaintiffs have legal right to institute the suit. Hence, the present suit is maintainable and contrary contention raised by the defendants is not sustainable under law. Accordingly issue No.8 is answered in the Negative.

21. The defendants have also contended that, the state Government is an necessary party, and the suit is bad for non joinder of necessary party.

"Necessary party is one, in the absence of the said party, effective decree cannot be passed"

22. Here in this case, admittedly the suit land is a gomal land, and when the defendants have not proved that, the Gomal land is permitted to be used for other purpose by competent authority. When the documents produced by the plaintiffs were shown that, the suit land is a Gomal land, as on the date of suit, and when, it is not the case of the plaintiff that, the employee of the State Government are obstructing in the use of suit land as

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Gomal land, it is the case of the plaintiffs that, the defendants alone are obstructing and infringing the legal right of plaintiffs. So if a decree of permanent injunction is passed against the defendants, it can be effectively executed even, in the absence of the state government, as a party. So in my opinion the contention raised by the defendants that the state government is a necessary party and suit is bad for non joinder of necessary party is not sustainable for the said reason, issue No.9 is answered in the Negative.

23. In view of my findings on the above said issues, I proceed to pass the following :

ORDER

The suit of the plaintiffs is decreed with cost, The defendants, their men, agents servants etc., are restrained by decree of permanent injunction from causing mischief by cutting standing trees or the bund of Gokatte and from interfering the plaintiffs and all villagers in grazing of the cattles in the suit schedule property till the suit schedule property continues to be the Gomal land.

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Dictated to the stenographer, after transcription and typing, corrected, signed and then pronounced by me in open court, this 2nd day of Dec 94.

Sd/-
(S.S.SARANGAMATH)
PRL.MUNSIFF DAVANAGERE.

ANNEXURE

1. Witness examined for the plaintiff :

PW.1 - Basavarajappa, D.S. on 21.11.94.

PW.2 - Mallappa -do-

2. Witnesses examined for the defendants :

DW1 - Thippanna D.S. on 26.11.1994.

3. Documents exhibited for the plaintiffs :

Ex.P.1 - Cattle senses certificate

Ex.P.2 - Daily newspaper Janathavani

Ex.P.3 - RTC Extract

Ex.P.2(a) - Publication

Ex.P.4 - RTC extract

Ex.P.5 - Mahazar of Tahasildar.

4. Documents exhibited for the defendants :-

Exs.D1 & 2 Pahani

Ex.D.3 - Certified copy of Agenda of meeting

Ex.D4 - -do-

Sd/-
(S.S.SARANGAMATH)
PRL.MUNSIFF DAVANAGERE.

89

Decree in
suit O 20 R 6, 7

IN THE COURT OF PRL.MUNSIFF AT DAVANGERE

O.S.434/89

Plaintiffs :

1. K.G.Basavarajappa
S/o Channappa,
aged about 55 years,
2. K.B.Basavarajappa
S/o Basappa
aged about 55 years
3. Kenchappa,
S/o Hanumappa
60 years,
4. K.M.Rudrappa
S/o Mallappa,
aged about 52 years,
5. Chandrappa
S/o Rudrappa
aged about 49 years,
6. Krishnanaika
S/o Halappa
aged abut 55 years

Plaintiffs 1 to 5 are R/o
Kenchammanahali,
Plaintiff No.6 is a R/o
Hosshallitandya,
Davanagere Taluk

Defendants :

- V/s-
1. Kenchappa,
S/o Giryappa 40 years,
 2. Basavarajappa
S/o Hanumappa

20

22 years,

3. Ramappa
S/o Giryappa 30 years,

4. Durugappa
S/o Adi Hanumappa
52 years,

5. Thippanna
S/o Thimmappa
35 years,

6. Rangappa
S/o Hanumappa
60 years

7. Pakkeerappa
S/o Durugappa
45 years

8. Marappa
S/o Hanumappa
58 years,

9. Maharudrappa
S/o Giryappa,
35 years,

10. Rudrappa
S/o Hanumappa
34 years

11. Parameswarappa
S/o Thippanna 30 years

12. Ningappa
S/o Ramappa, 35 years

All are residents of Kenchammanahalli village.

13. Lachhanaika
S/o Keeryanaika 55 years

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14. Keerayya Naika
S/o Takaya Naika 60 years

15. Lachha Naika
S/o Devajanaika 50 years

All are residents of Hosahalli village,
Davanagere taluk.

Suit claim : The plaintiff have filed this suit on 22/6/1989 for a perpetual injunction restraining the defendants their man, agents etc., in their behalf from cut and remove the trees and sherbs in the suit land commit waste and mischief by cutting any part of bund aof the go katte situated in the suit land and presenting the plaintiff and any villagers from grazing their cattle in the suit land and for costs.

This suit coming on this day, for final disposal before the S.S. Sarangamath B.Sc., LLB (Spl)

Presence of Sri. A. Narayana Masthry advocate for plaintiffs and Sri. K.G. Basavarajappa advocate for defendants 1 to 7 and 9, 10 and 12 defendant No. 8 exparte and Sri. B Veeanna advocate for defendants 13 to 15 by contest it is ordered and decreed that the defendants their men, agents, servants etc., are restrained by a decree as permanent injunction from causing mis chief by cutting standing trees on the bund of go katte and from interfering the plaintiff s and also villagers in grazing the cattles in the suit schedule property till the suit schedule property continues to be the gomal land. It is further ordered and decreed that

02
the defendants do pay to the plaintiffs the sum of Rs. 452-00 being the cost of the suit.

Given under my hand and the seal by the court this second day of December 1994

Decree signed on

7-12-94

sd/-

Prl. Munsiff

Davanagere

MEMORANDUM OF COSTS BY SUIT

	Plaintiffs	Defendant 1 to 12	Defendant 13 to 10
1. court fee on plaint	100		
2 court fee on power	1-00	1-00	1-00
3. court fee on IAs	8-00	2-00	6-00
4. service of process	240-00	-	-
5. pleaders fee fe filed	100-00	-	-
6. fee for copying	3-00	2-00	9-00

SCHEDULE

A Gomal land bearing Sy.No.2, measuring acres 23, guntas 34 , with a Gokatte of Kenchammanahalli Village, Davangere Taluk, and bounded as follows:-

East : Giriyappa and sidappa's land

West : Road leading to Halavarthi.

North : Gramathana.

South: Chidanandappa, siddaverappa and Basavarajappa's land.

sd/-

Prl. Munsiff

951
22/7/95
13
93.
IN THE COURT OF THE CIVIL JUDGE AT DAVANGERE.

DATED THIS THE 18TH DAY OF JUNE 1996.

PRESENT:- SRI. H. S. VVANI, B. A., LL. B.,
Civil Judge, Davangere.

H.A.No.61/95.

APPELLANTS:-

- 1) Kenchappa s/o Giriyappa, aged about 46 year
- 2) Basavarajappa s/o Hanumappa, - " 28 year
- 3) Ramappa s/o Giriyappa aged about 36 years,
- 4) Durugappa s/o Adi Hanumappa, - " 38 years,
- 5) Thiappa s/o Thiappa, aged about 41 year
- 6) Rangappa s/o Hanumappa, Aged about 66 years
- 7) Pakeerappa s/o Durugappa, aged about 41 year
- 8) Marappa s/o Hanumappa, aged about 63 years,
- 9) Maharudrapa s/o Giriyappa, - " 41 years,
- 10) Rudrappa s/o Hanumappa, aged about 40 years
- 11) Kingappa s/o Ramappa, aged about 41 years.

All are s/o Kenchamannahalli village,
Davangere Taluk.

(By Sri. H. Prakash, Advocate)

/Vs/

RESPONDENTS:-

- 1) K.G. Basavarajappa s/o Channappa, Major,
- 2) K.B. Basavarajappa s/o Basappa, Major,
- 3) Kenchappa s/o Hanumappa, Major,
- 4) K.R. Rudrappa s/o Mallappa, Major,
- 5) Chandrappa s/o Rudrappa, Major,
- 6) Krishna Naik, s/o Halappa, Major,

Respondents 1 to 5 are s/o Kenchamannahalli,
village, Davangere Taluk.

Respondent No. 6 is s/o Hanumannahalli Taluk,
Davangere Taluk.

(By Sri. A. Narayana Swamy, Advocate)

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16
16

and

This is an application filed by the appellants-
defendants under Sec.5 of the Limitation Act. The
appellants-defendants have prayed for condonation
-2xxxxThe
of delay of 37 days in filing this appeal.

2. The appellant.No.1. namely Kanchappa s/o Giri-
yappa, has filed his own affidavit stating that the
respondents-plaintiffs had filed the suit at O.S. No.
434/89 before the Principal Munsiff Court, Davangere,
for the relief of permanent injunction and that the
said suit came to be decreed on 2.12.1994; that they
filed an application for certified copy on 3.12.94
and were required to appear to receive copies on
20.2.95; that they have received copies on 13.2.95.
Further, it is averred that they are agriculturists
and not knowing worldly affairs and kept quiet for
all these days till 22.4.95 and later on came to meet
their counsel for further proceedings of the case and
then they came to know that there was already delay
in filing the appeal; that the delay is the mistake
due to lack of worldly knowledge; that the delay in
filing the appeal is not intentional or deliberate;
that no harm or injury will be caused to the respon-
dent; plaintiffs; if the delay is condoned. Thus,
he has prayed to condone the delay in filing the
appeal by allowing the application.

The respondents have been asked by the

respondents-plaintiffs contending to the following effect:-

That the reasons assigned in the affidavit for ~~en~~ condonation of delay are grossly insufficient in the eye of law; that the averments of the appellant that they lack worldly knowledge and therefore, there is delay etc., is not acceptable one; that in the suit they were represented by the counsel and were receiving the best legal advice from their counsel; that the appellants have contested the subject matter of the suit before the Tahasildar, grant committee and all possible ~~for~~ forums and the way in which they have fought the litigation is a clear indication of their worldly knowledge and shows the hallowness of their claim of ignorance; that the application is belated one and reasons assigned are not bonafide; such grounds have been made to cause harassment to the respondents-plaintiffs; that in view of the absence of sufficient reasons, delay cannot be ~~en~~ condoned. Thus, the respondents-plaintiffs have prayed for dismissal of I.A.No. 1.

4. In view of the above averments of the parties, the following points arise for my ~~xxx~~ consideration:-

- 1) Whether the appellants-defendants ~~have~~ have shown ~~shown~~ sufficient cause for condonation of the delay?

OR

Whether the appellants-defendants are entitled to the benefit of Sec. 5 of the Limitation Act.

- 2) What order?

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5. My findings are as under:-

Point No.1: Negative.

Point No.2:-As per final order.

Reasons

6. From the records, it appears that the parties have not adduced any oral evidence in support of their respective contentions.

7. Arguments of both the counsels were heard.

The learned counsel for the appellant Sri. H. Prakash argued and submitted that for the reasons stated in the affidavit the application at I.A.No.1 be allowed and delay be condoned.

In reply to this, the learned counsel for the respondents-plaintiffs Sri. A. Narayana Murthy argued and submitted that the delay has not been ^{Satisfactorily} seriously explained by the appellants-defendants; that the appellants-defendants were negligent in conducting the case; that the averments of the affidavit prove the same; that the negligence on the part of the appellants-defendants is not a good ground to condone the delay. Thus, he argued and submitted to dismiss the application at I.A.No.1.

8. Point No.3:- In view of the nature of averments, it appears to me that it is necessary to

A.A.61/95.

refer some of the material dates appearing on record. The suit at O.S.434/89 came to be disposed of on 2.12.94. The application for copy of the judgment and decree was filed on 3.12.94; Copy was delivered on 13.2.95; The present appeal is filed on 22.4.95.

9. Further, in view of the nature of averments, it appears to me that it is necessary to refer the principles laid down in some of the Rulings. In A.L.R. 1969 Supreme Court page 575, it is observed that,-

" Sec.5 of the Limitation Act -

Sec.5 gives the Court a discretion which in respect of jurisdiction is to be exercised upon principles; the word "sufficient cause" receiving a liberal construction so as to advance substantial justice when no negligence nor inaction nor want of bonafides is imputable to the appellant. If the appellant makes out sufficient cause for the delay, the Court may in its discretion condone the delay in filing the appeal".

It is observed in 1973(2) Mys.L.J. short note item No.40 (page 41) wherein it is observed that,-

" Sec. 5 Limitation Act -

If the case was one of the negligence on the part of the Advocate, the remedy of the client was against the Advocate and he could not ask the Court to condone the delay".

It is observed in A.I.R. 1973 Patna page 150 and A.I.R. 1976 Andhra Pradesh page 306, it is observed that,-

" The party availing the benefit of Sec.5 has to satisfy the Court that he had sufficient cause for not making the requisite application right up to the date on which the application is presented - each day delay has to be explained.

The party will have to show "sufficient cause" not only for not filing the application on the last day, but to explain the delay made there-after day by day - The party may be called upon to explain for the whole of the delay covered by the period between the last day prescribed for filing the appeal and the day on which the appeal is filed".

It is observed in A.I.R. 1984 Calcutta page 112 that,-

" Sec.5 Limitation Act - application for condonation of delay - petitioner has to prove that he was diligent and has to explain day to day delay from last day of limitation.

Before Court can exercise the discretion under Sec.5 of the Limitation Act in favour of the petitioner, Court has to be satisfied that the petitioner is not guilty of any laches or negligence

and has taken all reasonable steps in the matter, but has been prevented by some unforeseen circumstances beyond his control from taking out the application for setting aside the award in time".

10. I have gone through the averments of the parties and the provisions of Sec.5 of the Limitation Act. It is the case of the appellants that they are agriculturists and not knowing worldly affairs and therefore, they could not file the appeal within time. Further, it is the case of the appellants that later on they met their counsel and came to know that there was already delay of 37 days in filing the appeal. It is the case of the respondents-plaintiffs that there are no "sufficient grounds" to condone the delay and that due to gross negligence of the appellants, there is delay and that the application is not bonafide one.

11. As stated above, the parties have not adduced any oral evidence in support of their respective contentions. From the averments of the petition, it clearly appears that the appellants were aware of the date of disposal of the suit and that they had applied for certified copy of the judgment and decree within the date. It has been contended by the appellants that they were not knowing the worldly knowledge affairs and therefore, there is a delay in filing the appeal. The said aspect has been seriously disputed by the other side contending that throughout the appellants-defendants have fought out for the subject matter of the suit both before the Civil Court and Revenue Courts.

and therefore, the contention put forth by the appellant is not acceptable one. The averments of the parties and records clearly go to show that the appellants-defendants had contested the suit and were aware of the result of the suit. The other material appearing on record also goes to show that the contention put forth by the appellants-defendants, that they were ignorant of worldly affairs etc., is not acceptable one. Apart from this, it is a well settled principle of law that ignorance of law is not an excuse. Thus, from the nature of averments of the appellants, it clearly appears that there was negligence on the part of the appellants in prosecuting the case. No thing has been stated either in the application or in the affidavit filed in support of it, as to why the appellants did not file the appeal immediately, after obtaining the certified copy. As stated above, the appeal has been filed before this Court on 22.4.95. Thus, prima facie, it appears that even after taking copy, there is inordinate delay on the part of the appellants in conducting their contacting their counsel and filing an appeal.

12. It is clear from the commentary of Sec.5 of the Limitation Act that where the material on record leads the Court to only conclusion that the appellant did not act carefully and due to that reason there was delay in filing the appeal, the appeal is under Sec.5

of the Limitation Act cannot be given to the appellants. - Whether carelessness is proved, it cannot be said that there is "sufficient-cause" to condone the delay - delay cannot be condoned.

13. It is clear from the Ruling of the Supreme Court, that for the mistake of the counsel or his Clerk a party cannot be made to suffer when no negligence nor inaction nor want of bonafide was imputable to a party. So also, it is clear that the word "sufficient cause" should be construed liberally so as to advance substantial justice, when no negligence nor inaction nor want of bonafide is imputable to the party. If the averments of the application are looked into in the light of the observations made in some of the above Rulings, it cannot be said that there is no negligence on the part of the appellants. The averments of the petition prima facie go to show that there was some sort of negligence on the part of the appellants. The averments go to establish prima facie the gross negligence on the part of the appellants-defendants both in prosecuting the case and filing the appeal before this Court. It was urged by the respondents-plaintiffs' counsel that the averments are not supported by any evidence and therefore, it cannot be said that the appellants have shown "sufficient-cause" for condoning the delay in preferring the appeal. It was also urged by the respondents' counsel that there was gross negligence on the part of the appellants and that the

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application is not a bonafide one. As stated above, the averments clearly go to show that the appellants were not diligent in prosecuting the case. Looking to the nature of averments of the parties and the relief claimed in the suit, it cannot be said that the ~~apki~~ application is a bonafide one. The appellants-defendants have failed to state reasons as to why they failed to contact the counsel immediately after obtaining the copy. There appears a delay of more than one month even after obtaining of the certified copy of the Judgment and decree. From the dates referred, it clearly appears that there is a delay of more than one month in filing this appeal. From the material on record, it cannot be said that the appellants have explained the delay satisfactorily. If the facts and circumstances of the case are looked into in the light of the principles laid down in some of the above rulings, at no stretch of imagination, it can be said that the appellants-defendants have shown "sufficient cause" for condoning the delay in preferring the appeal. As stated above, the averments of the affidavit clearly go to show that there was gross negligence on the part of the appellants-defendants. The contention put forth by the appellants that they have ignorant of law or not aware of worldly affairs etc., is not acceptable one. Such contention put forth itself shows that the

appellants have not come to the Court with clean hands, and that the application at I.A.No.1. is not a bonafide one. Hence, having regard to the facts and circumstances and material on record, I am of the view that the appellants-defendants have ~~failed~~ failed to show "sufficient-cause" for condonation of the delay. The affidavit filed in support of I.A.No.1. does not explain the day to day delay either from the date of ^{judgment} admission or from the date of expiry of the appeal period till the date of filing of this appeal. The appellants -defendants have not chosen to examine this themselves before the Court in support of their contentions.

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14. Thus, from the material appearing on record, it clearly appears to me that the present application of the appellants-defendants under Sec.5 of the Limitation Act is not a bonafide one and that they have filed such an application with false averments with an intention to get the benefit of Sec.5 of the Limitation Act. If the facts and circumstances of the case are looked into in the light of the principles laid down in the above Rulings, it clearly appears that there is no any merit in the application at I.A.No.1. and that the same is liable to be rejected in the interest of justice.

15. From the records, it appears that keeping open the point of limitation, the appeal was admitted and numbered by this Court. In view of all the above, I am of the view, that the application at I.A.No.1. is not bonafide one. From the facts and circumstances of the case, at no stretch of imagination, it can be said that the appellants-defendants,

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have shown "sufficient cause" for condoning the delay, and that the delay is liable to be condoned. To the contrary, the material on record goes to show that the delay is due to the gross negligence of the appellants-defendants. Therefore, the appellants-defendants are not entitled to the benefit of Sec. 5 of the Limitation Act. Hence, the point under consideration is answered in the "negative".

16. Point No. 2:- In view of my finding on point No. 1. in the "negative", the application at I.A. No. 1. is liable to be rejected. So also, the appeal is liable to be dismissed as time barred. I pass the following:-

28-2-2001

Order

- 1) The application at I.A. No. 1. filed under Sec. 5 of the Limitation Act by the appellants-defendants is hereby rejected.
- 2) No order as to costs.

7-3-2001
28-2-2001
28-2-2001

(Dictated to the Stenographer, after his transcription, corrected, signed and then pronounced in the open Court this the 18th day of June 1996).

12-6-96
(H. S. EVANS)
Civil Judge, Davangere.

THE COURT OF CIVIL JUDGE

AT DAVANAGERE.

APPEAL No. R.A. 61/95 OF 199 - 199

1. Kenchappa S/o Giriyappa, aged about 46 years,
 2. Basavarajappa S/o Hanumappa, -do- 28 "
 3. Ramappa S/o Giriyappa, aged -do- 36 "
 4. Durugappa S/o Adi Hanumappa, -do- 38 "
 5. Thippanna S/o Thimmappa -do- 44 "
 6. Rangappa S/o Hanumappa, -do- 66 "
- Appellants
7. Pakeerappa S/o Durugappa, -do- 41 "
 8. Marappa S/o Hanumappa -do- 63 "
 9. Mahabudrappa S/o Giriyappa -do- 41 "
 10. Rudrappa S/o Hanumappa, aged -do- 40 "
 11. Hingappa S/o Ramappa, -do- 41 "

All are R/o Kenchammahalli Village,
Davanagere taluk.

Of 199

Appeal No. from the decree of the Court of P.R. Munsiff, Davanagere
dated the 2nd day of December 1994 in O.S. 434/89

1. K.C. Basavarajappa S/o Chann
2. K.P. Basavarajappa S/o Basappa
3. Kenchappa S/o Hanumappa,
4. K.M. Rudrappa S/o Mallappa.
5. Chandrappa S/o Rudrappa,
6. Krishna Naik S/o Halappa,

All are Majors, The respondent,
No. 1 to 5 are P/o Kenchammahalli
Village, Davanagere taluk.

The respondent No. 6 R/o Hosahalli
Tanda, Davanagere taluk.

MEMORANDUM OF APPEAL

K.C. Basavarajappa, & others. Plaintiff

Vs.

Kenchappa & others.

Defendant

Appellant

The above named appeals to the Civil Judge

Court

at Davanagere.

from the decree of P.R. Munsiff, Davanagere.

in Sud No. P.S. 434/89

dated the 2nd day of December 1994.

For the following reasons, namely: The trial Court has grossly erred in passing
the judgment and decree in favour of the plaintiff-appellants. Hence, the judg-
ment and decree is liable to be set aside, etc.

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This appeal coming on for hearing on the 10th day of June 1996
 before Sri. B. S. Evansi, B.A.L.S., Civil Judge, Bangalore in the presence of
 Sri. H. Prakash, Advocate for the appellant, and
 Sri. A. Narayana Murthy, Advocate for the Respondent

It is ordered and decreed that :

The application at I.A.No.1 filed under Sec. 5 of the Limitation Act by the appellant/defendants be and the same is hereby rejected.

It is further ordered and decreed that in view of the finding on I.A.No.1, the appeal stands dismissed as time barred.

No order as to costs.

The cost of this appeal, as detailed below amounting to Rs. - are to be paid by

The cost of the original suit are to be paid by

Given under my hand and the seal of this Court, this 10th day of June 1996.

Decree signed on: 22.6.96

Civil Judge,
Bangalore.

Judge.

MEMORANDUM OF COSTS INCURRED IN THIS APPEAL

20/107

By the Appellant

By the Respondent

Rs.

P.

Rs.

P.

Court Fee on Memo of Appeal

25-00

.. Application

1-00

1-00

.. Power of Attorney

1-00

1-00

.. Probesses

64-00

.. Copies of Decree and Judgement

16-00

Advocate's Fee *E.C. not filed*

Costs of Adjournment

Fees for Copying or Translation

Costs on Remand

Costs of Paper

Printing Charges

Total

107-

00

1-00

Advocate for Appellant

22/11/96
Civil Judge,
Devnagar
Advocate for Respondent

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CHENNAI

As per Decree in S.S. 434/89

A. Gomal land bearing Sy.No. 2, measuring 35 acres, 34 guntas, with a Gokatte of Kanchamangallu Village, Davanagere taluk, and bounded as follows:-

- East: Giryappa and Siddappa's land.
- West: Road leading to Halavathi.
- North: Gerasathu.
- South: Chidambappa, Siddaveerappa and Basavarajappa's land.

Civil Judge,
Davanagere.

LUK COYE

EXAMINED

28-2-2001

ORDERED TO BE

28-2-2001

28-2-2001

28-2-2001

28-2-2001

28-2-2001

IN THE COURT OF THE CIVIL JUDGE AT DAVANGERE

DATED THIS THE 18TH DAY OF JUNE 1996

**PRESENT: SRI.N.S.EVANI,B.A.,LL.B.,
CIVIL JUDGE,Davangaere**

R.A.NO.61/95

- APPELLANTS:-
- 1) Kenchappa,S/o Giriyappa,
Aged about 46 year
 - 2) Basavarajappa,S/o Hanumappa,
Aged about 28 year
 - 3) Ramappa, S/o Giriyappa,
Aged about 36 years.
 - 4) Durugappa,S/o Adi Hanumappa,
Aged about 38 years,
 - 5) Thippanna,S/o Thimmappa,
Aged about 41 years,
 - 6) Rangappa S/o Hanumappa,
Aged about 66 years,
 - 7) Pakeerappa,S/o Durugappa,
Aged about 41 years,
 - 8) Marappa,S/o Hanumappa,
Aged about 63 years,
 - 9) Maharudrappa,S/o Giriyappa,
Aged about 41 years,
 - 10) Rudrappa, S/o Hanumappa,
Aged about 40 years,
 - 11) Ningappa,S/o Ramappa,
Aged about 41 years,

All are R/a Kenchammanahalli Village,

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Davangere Taluk,

(By Sri.H.Prakash,Advocate)

/Vs/

RESPONDENT: 1) K.G.Basavarajappa,S/o Channappa,
Major,
2) K.B.Basavarajappa,S/o Basappa,
Major,
3) Kenchappa,S/o Hanumappa,
Major,
4) K.B.Rudrappa,S/o Mallappa,
Major,
5) Chandrappa,s/o Rudrappa,
Major,
6) Krishna Naik, S/o Halappa,
Major,

Respondents 1 to 5 are R/o Kenchanna
Halli Village,Davangere Taluk,

Respondent No.6 is R/o Hosahalli Tanda,
Davangere Taluk

(By Sri. Adinarayana Murthy,Advocate)

ORDER ON I.A.No.1

This is an application filed by the appellants:-
defendants under sec 5 of the Limitation Act. The
appellants - defendants have prayed for condonation of
delay of 37 days in filing this appeal.

2. The appellant No.1 namely Kenchappa S/o
Giriappa, has filed his own affidavit stating that the
respondents - plaintiffs had filed the suit at O.S.No.

438/89 before the Principal Munsiff Court, Davangere, for the relief of permanent injunction and that the said suit came to be decreed on 2.12.1994; that they filed an application for certified copy on 03.12.94 and were required to appear to receive copies on 20.2.95; that they have received copies on 13.2.95. Further, it is averred that they are agriculturists and not knowing worldly affairs and kept quiet for all these days till 22.4.95 and later on came to meet their counsel for further proceedings of the case and then they came to know that there was already delay in filing the appeal; that the delay is the mistake due to lack of worldly knowledge; that the delay in filing the appeal is not intentional or deliberate; that no harm or injury will be caused to the respondents plaintiffs if the delay is condoned. Thus, he has prayed to condone the delay in filing the appeal by allowing the application.

3. The respondent hand loan by the respondents plaintiffs contending to the following effect:-

That the reasons assigned in the affidavit for condonation of delay are grossly insufficient in the eye of law;

H.2 ✓

that the averments of the appellant that they lack worldly knowledge and therefore, there is delay etc., is not acceptable one; that in the suit they were represented by the counsel and were receiving the best legal advice from their counsel; that the appellants have contested the subject matter of the suit before the Tahasidar, grant committee and all possible forms and the way in which they have fought the litigation is a clear indication of their worldly knowledge and shows the allowances of their claim of ignorance; that the application is belated one and reasons assigned are not bona fide; such grounds have been made to cause harassment to the respondents plaintiffs; that in view of the absence of sufficient reasons, delay cannot be condoned. Thus, the respondents plaintiffs have prayed for dismissal of I.A.No.1.

4) In view of the above averments of the parties, the following points arise for my consideration:-

1) Whether the appellants - defendants have shown sufficient cause for condonation of the delay?

OR

Whether the appellants defendants are entitled to the benefit of sec.5 of the Limitation Act:

2) What order?

5) My findings are as under:-

Point No.1: Negative

Point No.2: As per final order.

REASONS

6. From the records, it appears that the parties have not adduced any order evidence in support of their respective contentions.

7. Arguments of both the counsels were heard.

The learned counsel for the appellant Sri.H.Prakash argued and submitted that for the reasons stated in the affidavit the application at I.A.No.1 be allowed and delay be condoned.

In reply to this, the learned counsel for the respondents - plaintiffs Sri.A.Narayana Murthy argued and submitted that the delay has not been satisfactorily explained by the appellants - defendants; that the appellants- defendants were negligent in conducting the case; that the averments of the affidavit prove the same;

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that the negligence on the part of the appellants defendants on the part of the appellants defendants is not a good ground to condone the delay. Thus he argued and submitted to dismiss the application at I.A.No.1.

8. **Point No.1:**In view of the nature of averments, it appears to me that it is necessary to refer some of the material dates appearing on record. The suit at O.S. No. 434/89 came to be disposed of on 2.12.94. The application for copy of the judgment and decree was filed on 3.12.94; copy was delivered on 13.2.95; The present appeal is filed on 22.4.95.

9. Further, in view of the nature of averments, it appears to me that it is necessary to refer the principles laid down in some of the Rulings. In A.I.R.1969 Supreme Court page 575, it is observed that,-

"Sec.5 of Limitation Act -
Sec.5 gives the Court a discretion which in respect of jurisdiction is to be exercised upon principles; the word "Sufficient cause" receiving a liberal construction so as to advance substantial justice when no negligence no in action nor want of bona fide is imputable to the appellant. If the appellant make out sufficient cause for the delay,

the court may in its discretion condone the delay in filling the appeal",

It is observed in 173(2)Mys.L.J.Short note item No.40 (Page 41) where in it is observed that,-

"Sec.5 of Limitation Act -
If the case was one of the negligence on the part of the Advocate, the remedy of the client was against the Advocate and he could not ask the court to condone the delay".

It is observed in A.I.R. 1973 Patna page 150 and A.I.R. 1976 Andhra Pradesh page 306, It is observed that,-

"The party availing the benefit of Sec.5 has to satisfy the court that he had sufficient cause for not making the requisite application right up to the date on which the application is presented - each day delay has to be explained.

The party will have to show "Sufficient cause" not only for not filing the application on the last day, but to explain the delay made thereafter day by day - The party may be called upon to explain for the whole of the delay

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covered by the period between the last day prescribed for filing the appeal and the day on which the appeal is filed".

It is observed in A.I.R. 1984 Calcutta page 118 that,

"Sec. 5 Limitation Act - application for condonation of delay - petitioner has to prove that he was diligent and has to explain day to day delay from last day of limitation.

Before Court can exercise the discretion under Sec.5 of the Limitation Act in favour of the petitioner, court has to be satisfied that the petitioner is not guilty of any lapses or negligence and taken all reasonable steps in the matter, but has been prevented by some unforeseen circumstances beyond his control from taking out the application for setting aside the award in time".

10. I have gone through the averments of the parties and the provisions of Sec.5 of the Limitation Act. IT is the case of appellants that they are agriculturist and not knowing worldly affairs and therefore, they could not file

the appeal within time. Further, it is the case of the appellants that later on they met their counsel and came to know that there was already delay of 37 days in filing the appeal. It is the case of the respondents - plaintiffs that there are no "sufficient grounds" to condone the delay and that due to gross negligence of the appellants, there is delay and that the application is not bona fide one.

11. As stated above, the parties have not adduced any oral evidence in support of their respective contentions. From the averments of the petition it clearly appears that the appellants were aware of the date of disposal of the suit and that they had applied for certified copy of the judgment and decree within the date. It has been contended by the appellants that they were not knowing the worldly affairs and therefore, there is a delay in filing the appeal. The said aspect has been seriously disputed by the other side contending that throughout the appellants defendants have fought out for the subject matter of the suit both before the civil court and revenue Courts and therefore, the contention put, forth by the

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appellant is not acceptable one. The averments of the parties and records clearly go to show that the appellant defendants had contested the suit and were aware of the result of the suit. The other material appearing on record also goes to show that the contention put forth by the appellants-defendants that they were ignorant of worldly affairs etc., is not acceptable one. Apart from this, it is a well settled principal of law that ignorance of law is not an excuse. Thus, from the nature of averments of the appellants, it clearly appears that there was negligence on the part of the appellants in prosecuting the case. Nothing has been stated either in the application or in the affidavit filed in support of it as to why the appellants did not file the appeal immediately, after obtaining the certified copy. As stated above, the appeal has been filed before this court on 22.4.95. Thus, prima facie, it appears that even after taking copy, there is inordinate delay on the part of the appellants in contacting their counsel and filling an appeal.

12. It is clear from the commentary of Sec. 5 of the Limitation Act that where the material on record leads

the court to only conclusion that the appellant did not act carefully and due to that reason there was delay in filing the appeal, the benefit under Sec. 5 of their Limitation act cannot be given to the appellants. Whether carelessness is proved, it cannot be said that there is "Sufficient cause" to condone the delay- delay cannot be condoned.

13. It is clear from the Ruling of the Supreme court, that for the mistake of the counsel or his clerk a party cannot be made to suffer when no negligence nor inaction nor want to bonafide was imputable to a party. So also. It is clear that the word "sufficient cause" should be constructed liberally so as to advance substantial justice when no negligence nor inaction nor want of bonafide is imputable to the party. If the averments of the application are looked into in the light of the observations made in some of the above rulings, it cannot be said that there is no negligence on the part of the appellants. The averments of the petition prima facie, go to show that there was some sort of negligence, on the part of the appellants. The averments go to establish prima facie

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negligence on the part of the appellants-defendants both in prosecuting the case and filing the appeal before this court. It was urged by their correspondents-plaintiffs counsel that the averments are not supported by any evidence and therefore, it cannot be said that the appellants have shown "sufficient cause" for condoning the delay in preferring the appeal. It was also urged by the respondents counsel that there was gross negligence on the part of the appellants and that the application is not a bonafide one. As stated above, the averments clearly go to show that the appellants were not diligent in prosecuting the case. Looking to the nature of averments of the parties and the relief claimed in the suit it cannot be said that the application is a bonafide one. The appellants defendants have failed to state reasons as to why they failed to contact the counsel immediately, after obtaining the copy. There appears a delay of more than one month even after obtaining of the certified copy of the judgment and decree. From the date referred, it clearly appears that there is a delay of more than one month in filing this appeal. From the material on record, it cannot be said that the appellants have explained the delay

satisfactorily. If the facts and circumstances of the case are looked into in the light of the principles laid down in some of the above Rulings, at no stretch of imagination, it can be said that the appellants defendants have shown "sufficient-cause" for condoning the delay in preferring the appeal. As stated above, the averments of the affidavit clearly go to show that there was gross negligence on the part of the appellants defendants. The contention put-forth by the appellants that they have ignorant of law or not aware of worldly affairs etc., is not acceptable one. Such contention put forth itself can be shown that the appellants have not come to the court with clean hands, and that the application at I.A.No.1. is not a bonafide one. Hence, having regard to the facts and circumstances and material on record, I am of the view that the appellants defendants have failed to show "sufficient-cause" condonation of the delay. The affidavit filed in support of I.A.No.1. does not explain the day to day delay either from the date of judgment or from the date of expiry of the appeal period till the date of filing of this appeal. The appellants-defendants have not chosen

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to examine themselves before the court in support of their contentions.

14. Thus, from the material appearing on record, it clearly appears to me that the present application of the appellants-defendants under Sec. 5 of the Limitation Act is not a bonafide one and that they have filed such an application with false averments with an intention to get the benefit of Sec. 5 of the Limitation Act. If the facts and circumstances of the case are looked into in the light of the principles laid down in the above Rulings, it clearly appears that there is no any merit in the application at I.A.No.1, and that the same is liable to be rejected in the interest of justice.

15. From the records, it appears that keeping-open the point of limitation, the appeal was admitted and numbered by this court. In view of all the above, I am of the view that the application at I.A.No.1. is not bonafide one. From the facts and circumstances of the case, at no stretch of imagination, it can be said that the appellants-defendants, have shown "sufficient-cause" for condoning the delay is liable to be condoned. To the contrary, the

material on record goes to show that the delay is due to the gross-negligence of the appellants-defendants. Therefore, the appellants-defendants are not entitled to the benefit of Sec. 5 of the limitation act. Hence, the point under consideration is answered in the "negative".

16. **Point No.2:-** In view of my finding on point No.1 in the "negative", the application at I.A.No.1. is liable to be rejected. So also, the appeal is liable to be dismissed as time barred. I pass the following:-

ORDER

1. The application at I.A.No.1 filed under Sec. 5 of the Limitation Act by the appellants-defendants is hereby rejected.
2. No order as to costs.

(Dictated to the Stenographer, after his transcription, corrected, signed and then pronounced in the open court this the 18th day of June 1996).

sd/-
(H.C. Evani)
Civil Judge, Davangere

IN THE COURT OF THE CIVIL JUDGE AT DAVANGERE**R.A.NO.61/95**

- APPELLANTS:-
- 1) Kenchappa, S/o Giriyappa,
Aged about 46 year
 - 2) Basavarajappa, S/o Hanumappa,
Aged about 28 year
 - 3) Ramappa, S/o Giriyappa,
Aged about 36 years.
 - 4) Durugappa, S/o Adi Hanumappa,
Aged about 38 years,
 - 5) Thippanna, S/o Thimmappa,
Aged about 41 years,
 - 6) Rangappa S/o Hanumappa,
Aged about 66 years,
 - 7) Pakeerappa, S/o Durugappa,
Aged about 41 years,
 - 8) Marappa, S/o Hanumappa,
Aged about 63 years,
 - 9) Maharudrappa, S/o Giriyappa,
Aged about 41 years,
 - 10) Rudrappa, S/o Hanumappa,
Aged about 40 years,
 - 11) Ningappa, S/o Ramappa,
Aged about 41 years,

All are R/a Kenchammanahalli Village,
Davangere Taluk,

/Vs/

It is ordered and decreed that:

The application at I.A.No.1 filed under Sec. 5 of the Limitation Act by the appellant/defendants beyond the same is hereby rejected.

It is further ordered and decreed that in view of the finding on I.A.No.1. the appeal stands dismissed as time barred.

No order as to costs.

The cost of this appeal as detailed below amounting to Rs—are to be paid by

The cost of the original suit are to be paid by-----
Given under my hand and the seal of this Court, this
18th day of June 1996.

Decree signed on: 22.6.96

Civil Judge
Davangere.

**MEMORANDUM OF COSTS INCURRED IN THIS
APPEAL**

	By the Appellant Rs	By the respondent Rs.
Court fee on memo of appeal	25-00	
Application	1-00	
Power	1-00	1-00
Probesses	64-00	
Copies of Decree and Judgment	16-00	
Advocate's Fee F.C. not filed		
Costs of Adjournment		
Fees for Copying or Translation		
Costs on Remand		
Costs of Paper		
Printing charges		
TOTAL	107-00	1-00

Civil Judge
Davangere.

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SCHEDULE

As per the copy of decree in O.S.No. 434/89

A Gomal land bearing Sy.No.2, measuring 23 acres. 34 guntas, with a Gokatte of Kenchammanahalli Village, Davangere Taluk, and bounded as follows:-

East : Giriyappa and sidappa's land

West : Road leading to Halavarthi.

North : Gramathana.

South: Chidanandappa, siddaverappa and Basavarajappa's land.

sd/-
Civil Judge
Davangere.

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Annexure 1
E E
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ANNEXURE

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 16TH DAY OF DECEMBER 1997

BEFORE

THE HON'BLE MR. JUSTICE M.N. NARAYAN

WRIT PETITION NO. 29312 of 1993

BETWEEN :

- 1) Sri.K.B.Rudrappa,
Major, son of
Basappa.
- 2) Sri.Malleshaappa,
Major, son of
Basappa.
- 3) Sri.Thipperudraswamy,
Major, son of
Basavarajappa
- 4) Sri.K.B.Basavarajappa,
Major, son of
Gurusiddappa.
- 5) Sri.K.G.Manjappa
son of Nanjappa,
Major.
- 6) Sri.H.D.Motla Naika,
Major, son of Deva
Naika, residing in
Hosahalli Tandya,
Anegodu Hobli, Davanagere
Taluk, Chitradurga Dist.

Petitioners 1 to 5 are
residing in Kenchammanahalli
village, Anegodu Hobli,
Davanagere Taluk,
Chitradurga Dist..

- Petitioners

(By Sri.Padubidri Raghavendra
Rao, Adv.,)

And :

- 1) State of Karnataka,
Rep. by the Secretary
to the Govt. of Karnataka
Revenue Department, Vidhana
Soudha, Bangalore-1.

- 2) Deputy Commissioner
Chitradurga, Dist.
Chitradurga.
- 3) Asst. Commissioner
Davanagere Sub-Division
Davanagere,
Chitradurga Dist.

- Respondents

This Writ petition filed under Articles 226 and 227 of the Constitution of India, praying to prohibit the respondents from granting any portion of the said gomal land bearing Re-S.No. 02, of the extent of 23 acres and 34 guntas situate in Kenchammahalli village, Anegodu Hobli, Davanagere Tq., Chitradurga Dist., to any person either by regularising the alleged wrongful possession or otherwise or any such portion and direct the preservation of the said gomal land with the Gokatte with the perennial water source, situate therein, for the benefit of the village cattle, and granting such other reliefs as this Hon'ble court may deem fit to grant.

This Writ petition coming on for preliminary hearing in 'B' Group this day, the Court made the following : -

ORDER

This petition is filed in public interest by the Villagers of Kenchammahalli village and Hosahalli Tandyas situated in Davanagere Taluk.

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They are agriculturists. Their grievance is that there is a gomal land in Re-S.No.2 to an extent of 23 acres and 34 guntas situated in Kenchammanahalli village, Anegodu Hobli, Davanagere Taluk, Chitradurga Dist. There is also a gokatte with perennial water source serving the needs of the cattle of the said two villages for grazing and drinking purposes. The same is recorded in the record of rights. It is a Government land reserved as a gomal for the purpose of grazing of the cattle by the said villagers, under the provisions of Section 71 of the Karnataka Land Revenue Act. There are 845 heads of cattle in Kenchammanahalli village and 310 heads of cattle in Hosahalli Tandya village as per the cattle census for 1993-94. Under Rule 91 of the Karnataka Land Revenue Rules, the land has to be set apart for free pasturage for the cattle of each village at the rate of twelve hectares or 264 acres for every hundred heads of cattle. Therefore, for the existing 1,155 heads of cattle, the total extent of the land required is insufficient. Some persons of the village with political backing have destroyed the very character of the gomal land. The revenue authorities have not taken action in preventing this unlawful encroachment. The land grant

committee has entertained their application for unauthorised cultivation. Number of petitions were made to the Deputy Commissioner and the Minister concerned and the Asst. Commissioner unsuccessfully and hence approached this court for a writ of prohibition or other appropriate writ prohibiting the respondents from granting gonai land in survey No.2 of Kenchamannahalli village, Davanagere Taluk.

2. Annexure-D is the resolution passed by the land grant committee dated 5-7-1993 recommending certain extent of land for regularisation.

3. This confirms the apprehension of the petitioners regarding unauthorised encroachment and the unnecessary interest shown by the land grant committee. Annexure-A is the extract of the R.T.C., which shows that resurvey No.2 of Kenchamannahalli village in Anegod Hobli is a gonai land. There are certain trees found on the said land. There is a gokatte. However, there is no mention of any encroachment or unauthorised occupation. The question of unauthorised occupation does not arise in the absence of any material.

4. Section 71 of the Karnataka Land Revenue Act of 1964 provides for assigning the Government

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land for special purposes and when assigned, shall not otherwise be used without the sanction of the Deputy Commissioner, Rule 108I of the Karnataka Land Revenue Rules, 1966 specifies certain lands which are not liable for grant. Section 198I reads as follows: "certain lands not to be granted - Notwithstanding anything contained in this Chapter, lands assigned for special purposes under Section 71 of the Act and lands described in revenue records as Devarakadu, Urduve, Gunduthop Tankbed, Phut Karab Kharab halla, datereserve, burial grounds and such lands which in the opinion of the Government is required for public purpose, shall not be granted" provided that the provisions of this rule shall not apply to lands set apart for free pasturage under Section 71 of the Act which will be governed by Rule 97.

5. Rule 97 of the said Rules specifies that the Government land shall be set apart for free pasturage for the cattle of each village at the rate of twelve hectares for every hundred heads of cattle. The Deputy Commissioner who is empowered under Section 71 of the said Act to determine the extent of goval land and the land to be set apart for free pasturage has to be taken into consideration, the strength of the village and other circumstances while releasing

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the land for grant. The question whether the Government and the Deputy Commissioner can exercise their powers under Section 71 of the said Act indiscriminately thereby destroying the very character of the rural life came up for consideration before this Court.

6. This court has dealt at length this very question in the case of S.Siddappa and others - Vs- State of Karnataka in W.P.28866 of 1993 dated 9-12-1997 and has come to the conclusion that in the interest of safeguarding the rural life, the lands set part for special purposes under Section 71, Rules 108I and 97 of the said Act and Rules, shall not be granted under any circumstances.

7. This is one such case where hardly an extent of 23 acres of gomal land is available for free pasturage and the respondents cannot destroy the character of this land by granting it for agricultural purpose. Therefore, the respondents are prohibited from granting/regularising any land in re-survey No.2 of Kanchamannahalli village in Anegod Hobli, Dvanagere Taluk and the respondents are further directed to reserve this land specifically for the purpose which it is assigned.

sd/-
J U D G E

// True Copy //

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 12th DAY OF FEBRUARY 2003

BEFORE

THE HON'BLE Mr. JUSTICE AJIT J GUNJAL

WRIT PETITION No.9277 OF 2006(KLR-REG)

S/W

WRIT PETITION No.13580 OF 2006(KLR-REG)

W.P.No.9277/2006

BETWEEN

- 1 K J THIPPANNA S/O THIMMAPPA
AGED 50 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 2 DURGAPPA
S/O ADI HANUMAPPA
49 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 3 RUDRAPPA
S/O HANUMANTHAPPA
AGED 45 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 4 RAMAPPA
S/O GIRIYAPPA
AGED 50 YEARS,
R/AT KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 5 KENCHAPPA
S/O GIRIYAPPA
AGED 52 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 6 BASAPPA
S/O SANNA HANUMAPPA



12
This Copy Contains...
and Court Fee Stamps of Rs. 36/-
if affixed. Cch

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AGED 40 YEARS.
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.

7 BAGAEMA
W/O LATE NAGARAJU
AGED 45 YEARS.
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.

... PETITIONERS

(By SH. KALIZZEMULLAH SHARIF, ADV.)

AND

1 THE STATE OF KARNATAKA
REP BY THE SECRETARY TO
THE GOVERNMENT OF KARNATAKA,
REVENUE DEPARTMENT,
VIDHAHA SOUDHA,
BANGALORE 560 001.

2 DEPUTY COMMISSIONER
DAVANAGERE DISTRICT,
DAVANAGERE.

3 ASSISTANT COMMISSIONER
DAVANAGERE SUB DIVISION,
DAVANAGERE.

4 THE COMMITTEE FOR REGULARISATION OF
FRACTURED-SECT OCCUPATION OF GOVT. LANDS,
DAVANAGERE TALUK, DAVANAGERE
PER. BY ITS SECRETARY, THE TAHSILDAR,
DAVANAGERE.

5 E D REDDAPPA
MAJOF
S/O BASAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANECCUDU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

6 MALLESHAPPA
MAJOF
S/O BASAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANECCUDU HOBLI,
DAVANAGERE TALUK AND DISTRICT.



7 THIPPESUDRASWAMY
MAJOR
S/O BASAVARAJAPPA
R/O KENCHAMMAHALLI VILLAGE
ANEKODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

8 K D DASAVARAJAPPA
MAJOR
S/O GURUSIDDAPPA
R/O KENCHAMMAHALLI VILLAGE
ANEKODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

9 K C MANJAPPA
MAJOR
S/O MANJAPPA
R/O KENCHAMMAHALLI VILLAGE
ANEKODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

10 H D MOTLA NAIKA
MAJOR
S/O DEVA NAIKA,
MATTIOSAHALLI TANDA,
ANEKODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

... RESPONDENTS

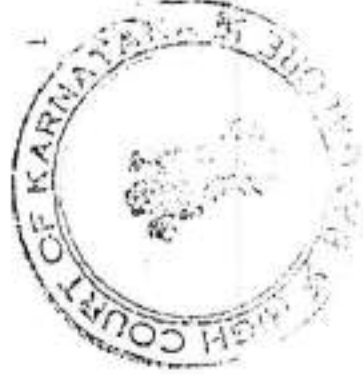
BY MS GURUDEVI GACHCHINMATH, ADV. FOR SRI
T.G.GACHCHINMATH, ADV. FOR R9 & R10; SRI
G CHACKRASHEKARAJAH, AGA FOR R1 TO R4; R5-R8 SD/-)

THIS W.P IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO
REVIEW THE IMPUGNED ORDER AT ANNEXURE D DT.
16.12.1997 PASSED BY THIS HONBLE COURT IN
W.P.No.29342/1993 AND REVERSE THE SAID ORDER, BY
ISSUING APPROPRIATE WRIT, ORDER OR DIRECTION.

W.P.No.13580/2006

BETWEEN

1 KENGAPPA
S/O RAMAPPA
AGED ABOUT 42 YRS,
OCC AGRICULTURIST
R/O KENCHAMMAHALLI,



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DAVANGERE TALUK
DAVANGERE DISTRICT

2 PANKRERAPPA
S/O DURGUGAPPA
AGED ABOUT 52 YRS
OCC AGRICULTURIST
R/O KENCHAMMANAHALLI,
DAVANGERE TALUK
DAVANGERE DISTRICT

3 RANGAPPA,
S/O HANUMAPPA
AGED ABOUT 67 YEARS
OCC AGRICULTURIST,
R/O KENCHAMMANAHALLI,
DAVANGERE TALUK
DAVANGERE DISTRICT

... PETITIONERS

BY SHRI SETHIVASA BABU, ADV.)

AND

THE STATE OF KARNATAKA
BY ITS SECRETARY TO GOVT
REVENUE DEPARTMENT
M S BUILDING
BANGALORE-1

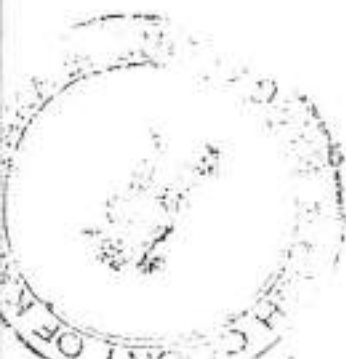
2 THE DEPUTY COMMISSIONER
DAVANGERE DISTRICT, DAVANGERE

3 THE ASSISTANT COMMISSIONER
DAVANGERE SUB DIVISION
DAVANGERE

4 THE COMMITTEE FOR REGULARISATION OF
UNAUTHORISED OCCUPATION OF GOVERNMENT
LANDS, DAVANGERE TQ, DAVANGERE
REP BY ITS SECRETARY AND TAHSILDAR,
DAVANGERE.

5 E G BASAVARAJAPPA
S/O CHANNAPPA
AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT.

E B BASAVARAJAPPA
S/O EASAPPA



AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT

7 KPNCHAPPA
S/O HAHUMAPPA
AGED ABOUT 67 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT

8 K M RUDRAPPA
S/O MALLAPPA
AGED ABOUT 59 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT

9 CHANDRAPPA
S/O RUDRAPPA
AGED ABOUT 52 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT

10 KRISHNA NAIKA
S/O HALLAPPA
AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT

11 SRI K. R. RUDRAPPA
AGE: MAJOR
S/O BASAPPA

12 SRI MALESHPAPPA
MAJOR, S/O BASAPPA

13 SRI THEPPERUDRASWAMY
MAJOR, S/O BASAVARAJAPPA

14 SRI K. R. BASAVARAJAPPA,
MAJOR, S/O GURUSIDDAPPA

15 SRI K. G. MANJAPPA
S/O HAHUJAPPA,
MAJOR.

16 SRI R. D. MOTLA NAIKA
MAJOR, S/O DEVA NAIKA,
RESIDENT OF HOSAHALLI TANDYA,
MEDIHUBI HOBLI, DAVANAGERE TALUK,
DAVANAGERE DISTRICT.



12a

(OLD CHITRADURGA DIST.)

RESPONDENTS 11 TO 16 ARE RESIDING AT
KENCHAMMANAHALLI VILLAGE,
ANECCORU HOBLI, DAVANAGERE TALUK,
DAVANAGERE DISTRICT
(OLD CHITRADURGA DIST.)

... RESPONDENTS

(BY SRI G. GACHCHINMATH FOR SRI G. GACHCHINMATH, ADV.
FOR R5, R6, R11 & R16; SRI G. CHANDRASHEKARAJAH, AGA
FOR R3 TO R4, R5, R7, R8, R9, R10, R12, R13, R14, R16 SD/-)

THIS W.P. IS FILED UNDER ARTICLES 226 AND 227
OF THE CONSTITUTION OF INDIA PRAYING TO CALL FOR
THE RELEVANT RECORDS AND REHEAR THE ORDER
PRODUCED AT ANNEXURE-G DT. 16.12.1997 PASSED BY
THIS HONBLE COURT IN W.P. NO. 29312/1993 AND
REVERSE THE SAID ORDER, ETC.

THESE W.P.s COMING ON FOR PRELIMINARY
HEARING IN 'B' GROUP THIS DAY. THE COURT MADE THE
FOLLOWING

ORDER

Both these writ petitions are disposed of by this
common order. Petitioners have sought for review of the
order passed by this Court on 16.12.1997 in
W.P. No. 29312/1993, a copy of which is produced at
Annexure-D. The grievance of the petitioners is that
they were not parties to the proceedings at all. Hence
the order passed by this Court at Annexure-D requires
to be reviewed.

2. The matter arises in the following manner:

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W.P.No. 24312/1993 was filed by some of the residents of the village seeking to prohibit the respondents from granting any portion of the gamal land bearing revision Sy.No 02 to the extent of 23 acres and 54 guntas situate in Kenchammanahalli village, Anegodu Hobli, Davanagere Tq., Chitradurga District to any person either by regularising the alleged wrongful possession or otherwise. This Court disposed of the writ petition accepting the contention of the residents of the village and prohibited the respondents from granting/regularizing any portion of land in Re.Sy.No.2 of Kenchammanahalli Village, Anegodu Hobli, Davanagere Taluk and further directed to reserve this land specifically for the purpose for which it is assigned. The grievance of the petitioners in both the writ petitions is that they are unauthorized occupants of Sy.No 2 and each of them is cultivating the land to an extent of 2 acres. Their grievance is that the directions issued by this Court in the aforesaid writ petition is detrimental to their interest, inasmuch as, this Court has prohibited the respondents from granting any land



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and further directed that the said land is required to be reserved for free pasturage.

3. Indeed, whether this Court under Article 226 of the Constitution of India can review the order passed by this Court in the earlier writ petition has been set at rest by the decision of the Apex Court in the case of **SHIVDEO SINGH AND OTHERS Vs. STATE OF PUNJAB AND OTHERS** reported in AIR 1963 SC 1909 observing that the inherent power of the High Courts to review its previous order under Article 226 of the Constitution of India cannot be curtailed. Hence there is no impediment for this Court to review the order of this Court in the earlier writ petition.

4. Mr. Kaleemullah Shariff, learned counsel for the petitioners as well as learned counsel appearing for the connected petition submit that the petitioners in both these writ petitions are unauthorized occupants and they have made necessary application before the competent authority for regularizing the unauthorized



occupation. They would further submit that the order passed by this Court in the earlier writ petition was without notice to them, inasmuch as, as on the date when the order was passed, they were in possession.

5. Mr. Gurudev Gachchinnath, learned counsel appearing for the respondents submits that a representative suit was filed against the petitioners for injunction on the ground that they are in possession of the land in question and the suit was dismissed. Hence a finding is recorded by the Civil Court that they are not in possession. He further submits that this Court in the earlier writ petition, having regard to the nature of the land for which it was reserved, was of the opinion that a prohibitory writ is required to be issued against the respondents from granting the land in question to any person. He further submits that a recommendation is also sent by the Tahsildar indicating that the petitioners are not in possession. Hence he submits that the question of reviewing the earlier order does not arise.



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5. Mr.G Chandrashekararaj, learned counsel appearing for the Government submits that the application filed by the petitioners in both the writ petitions is pending consideration before the Deputy Commissioner. He further submits that the report sent by the Tahsildar is also placed before the Deputy Commissioner for consideration. Hence he submits that the order passed in the earlier writ petition does not warrant interference.

7. I have been taken through the order passed by this Court and also the relevant records which are made available. It is not in dispute that Sy No.2 admeasuring 23 acres 34 guntas is classified as reserved for free pasturage. The question would be whether the petitioners in both the writ petitions are unauthorized occupants and their unauthorized occupancy is required to be regularized. Indeed, this Court, while disposing of the writ petition had observed that the land is reserved for free pasturage and the question of granting it to any other persons is impermissible. If it is

Ph

as, I am of the view that the said order passed by this Court in the earlier writ petition does not warrant interference, inasmuch as, on the undisputed facts, the said order was passed.

5 The next question would be whether the petitioners were in unauthorized occupation of several bits of land. Indeed, a representative suit was filed for injunction by the petitioners on the ground that they are in possession of Sy.No.2 measuring 23 acres 34 guntas. The said suit, on contest, was dismissed and it has attained finality. This is one fact which certainly should be considered by the Deputy Commissioner before considering the application of the petitioners for regularization of unauthorized occupation. Indeed, the report of the Tahsildar is also required to be taken note of by the Deputy Commissioner before he considers the application of the petitioners.

9. Consequently, I am of the view that before considering the applications of the petitioners for grant



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of land, the concerned authorities shall take into consideration,

(1) the order passed by this Court in

W.P.No.29312/93 on 16.12.1997

(2) the judgment and decree passed by the Civil

Court in O.S.No.434/89 and R.A.51/93

(3) report of Tahsildar sent to the Deputy

Commissioner regarding the nature and status

of the land.

The Deputy Commissioner shall consider the
applications of the petitioners for regularization after
notice to the residents of the village.

Further grounds disposed of accordingly.



Sd/-
Judge

TRUE COPY

(a) The date on which the application was filed

(b) The

(c) The

(d) The

(e) The

(f) The

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 12th DAY OF FEBRUARY 2008

BEFORE

THE HON'BLE Mr. JUSTICE AJIT J GUNJAL

WRIT PETITION No. 9277 OF 2006(KLR-REG)

C/W

WRIT PETITION No. 13580 OF 2006(KLR-REG)

W.P.No. 9277/2006

BETWEEN

- 1 K J THEPPANNA S/O THIMMAPPA
AGED 50 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 2 DURGAPPA
S/O ADI HANUMAPPA
49 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 3 RUDRAPPA
S/O HANUMANTHAPPA
AGED 43 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 4 KAMAPPA
S/O GIRIYAPPA
AGED 50 YEARS,
R/AT KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 5 KENCHAPPA
S/O GIRIYAPPA
AGED 32 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.
- 6 BASAPPA
S/O SAKHA HANUMAPPA

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AGED 40 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.

- 7 YAGAMMA
W/O LATE NAGARAJU
AGED 45 YEARS,
R/O KENCHAMMANAHALLI
DAVANAGERE TALUK AND DISTRICT.

... PETITIONERS

(By Sri KALEEMULLAH SHARIFF, ADV.)

AND

- 1 THE STATE OF KARNATAKA
REP. BY THE SECRETARY TO
THE GOVERNMENT OF KARNATAKA,
REVENUE DEPARTMENT,
VIDHANA SOUDHA,
BANGALORE 560 001
- 2 DEPUTY COMMISSIONER
DAVANAGERE DISTRICT,
DAVANAGERE.
- 3 ASSISTANT COMMISSIONER
DAVANAGERE SUB DIVISION,
DAVANAGERE.
- 4 THE COMMITTEE FOR REGULARISATION OF
UNAUTHORISED OCCUPATION OF GOVT. LANDS,
DAVANAGERE TALUK, DAVANAGERE
REP. BY ITS SECRETARY, THE TAHSILDAR,
DAVANAGERE.
- 5 K B SUDRAPPA
MAJOR
S/O BASAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANEGODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.
- 6 MALLESHAPPA
MAJOR
S/O BASAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANEGODU HOBLI,
DAVANAGERE TALUK AND DISTRICT.

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7 THIPPERUD RASWAMY
MAJOR

S/O BASAVARAJAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANEGODU HOBLI,
DAVANGERE TALUK AND DISTRICT.

8 K B BASAVARAJAPPA
MAJOR

S/O GURUSIDDAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANEGODU HOBLI,
DAVANGERE TALUK AND DISTRICT.

9 K G MANJAPPA
MAJOR

S/O MANJAPPA
R/O KENCHAMMANAHALLI VILLAGE
ANEGODU HOBLI,
DAVANGERE TALUK AND DISTRICT.

10 H D MOTLA NAIKA
MAJOR

S/O DEVA NAIKA,
R/AT HOSAHALLI TANDA,
ANEGODU HOBLI,
DAVANGERE TALUK AND DISTRICT.

... RESPONDENTS

(By Sri GURUDEVI GACHECHINMATH, ADV. FOR SRI
T.G.GACHECHINMATH, ADV. FOR R9 & R10; SRI
G.CHANDRASEEKARAH, AGA FOR R1 TO R4; R5-R8 SD/-)

THIS W.P IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO
REVIEW THE IMPUGNED ORDER AT ANNEXURE D DT.
15.12.1997 PASSED BY THIS HONBLE COURT IN
W.P.No.29312/1993 AND REVERSE THE SAID ORDER, BY
ISSUING APPROPRIATE WRIT, ORDER OR DIRECTION.

W.P.No.13580/2006

BETWEEN

1 NINGAPPA
S/O RAMAPPA
AGED ABOUT 42 YRS.
OCC AGRICULTURIST
R/O KENCHAMMANAHALLI.

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4

DAVANGERE TALUK
DAVANGERE DISTRICT

2 PAKKEERAPPA
S/O DURGUGAPPA
AGED ABOUT 52 YRS
OCC AGRICULTURIST
R/O KENCHAMMANAHALLI,
DAVANGERE TALUK
DAVANGERE DISTRICT

3 RANGAPPA,
S/O HANUMAPPA
AGED ABOUT 67 YEARS
OCC AGRICULTURIST,
R/O KENCHAMMANAHALLI,
DAVANGERE TALUK
DAVANGERE DISTRICT

... PETITIONERS

(By Sri L. SRINIVASA BABU, ADV.)

AND

1 THE STATE OF KARNATAKA
BY ITS SECRETARY TO GOVT
REVENUE DEPARTMENT
M S BUILDING
BANGALORE-1

2 THE DEPUTY COMMISSIONER
DAVANGERE DISTRICT, DAVANAGERE

3 THE ASSISTANT COMMISSIONER
DAVANGERE SUB DIVISION
DAVANGERE

4 THE COMMITTEE FOR REGULARISATION OF
UNAUTHORISED OCCUPATION OF GOVERNMENT
LANDS, DAVANGERE TQ, DAVANAGERE
REP. BY ITS SECRETARY AND TAHSILDAR,
DAVANAGERE.

5 K G BASAVARAJAPPA
S/O CHANNAPPA
AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANAGERE TQ AND DISTRICT.

6 K B BASAVARAJAPPA
S/O BASAPPA

AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT

- 7 KENCHAPPA
S/O HANUMAPPA
AGED ABOUT 67 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT
- 8 K M RUDRAPPA
S/O MALLAPPA
AGED ABOUT 59 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT
- 9 CHANDRAPPA
S/O RUDRAPPA
AGED ABOUT 52 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT
- 10 KRISHNA NAIKA
S/O HALLAPPA
AGED ABOUT 62 YRS
R/O KENCHAMMANAHALLI
DAVANGERE TQ AND DISTRICT
- 11 SRI K.B. RUDRAPPA
AGE: MAJOR
S/O BASAPPA
- 12 SRI MALLESHAPPA
MAJOR, S/O BASAPPA
- 13 SRI THIPPERUDRASWAMY
MAJOR, S/O BASAVARAJAPPA
- 14 SRI E.B. BASAVARAJAPPA,
MAJOR, S/O GURUSIDDAPPA
- 15 SRI K.G. MANJAPPA
S/O HANJAPPA,
MAJOR.
- 16 SRI H.D. MOTIA NAIKA
MAJOR, S/O DEVA NAIKA,
RESIDENT OF HOSAHALLI TANDYA,
ANEKODU HOBLI, DAVANAGERE TALUK,
DAVANAGERE DISTRICT.

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(OLD CHITRADURGA DIST.)

RESPONDENTS 11 TO 16 ARE RESIDING AT
KENCHAMMANAHALLI VILLAGE,
ANEKODU HOBLI, DAVANAGERE TALUK,
DAVANAGERE DISTRICT
(OLD CHITRADURGA DIST.)

... RESPONDENTS

(By Sri G I GACHCHINMATH FOR I G GACHCHINMATH, ADV.
FOR R5, R8, R11 & R16; SRI G.CHANDRASHEKHARIAH, AGA
FOR R1 TO R4; R6, R7, R9, R10, R12, R13, R14, R16 SE/-)

THIS W.P IS FILED UNDER ARTICLES 226 AND 227
OF THE CONSTITUTION OF INDIA PRAYING TO CALL FOR
THE RELEVANT RECORDS AND REHEAR THE ORDER
PRODUCED AT ANNEXURE-G DT.16.12.1997 PASSED BY
THIS HONBLE COURT IN W.P.NO.29312/1993 ADN
REVERSE THE SAID ORDER, ETC.

THESE W.Ps COMING ON FOR PRELIMINARY
HEARING IN 'B' GROUP THIS DAY, THE COURT MADE THE
FOLLOWING:

ORDER

Both these writ petitions are disposed of by this
common order. Petitioners have sought for review of the
order passed by this Court on 16.12.1997 in
W.P.No.29312/1993, a copy of which is produced at
Annexure-D. The grievance of the petitioners is that
they were not parties to the proceedings at all. Hence
the order passed by this Court at Annexure-D requires
to be reviewed.

2. The matter arises in the following manner:

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W.P.No.29312/1993 was filed by some of the residents of the village seeking to prohibit the respondents from granting any portion of the gomal land bearing revision Sy.No 02 to the extent of 23 acres and 34 guntas situate in Kenchammanahalli village, Anegodu Hobli, Davanagere Tq., Chitradurga District to any person either by regularising the alleged wrongful possession or otherwise. This Court disposed of the writ petition accepting the contention of the residents of the village and prohibited the respondents from granting/regularizing any portion of land in Re.Sy.No.2 of Kenchammanahalli Village, Anegodu Hobli, Davanagere Taluk and further directed to reserve this land specifically for the purpose for which it is assigned. The grievance of the petitioners in both the writ petitions is that they are unauthorized occupants of Sy.No 2 and each of them is cultivating the land to an extent of 2 acres. Their grievance is that the directions issued by this Court in the aforesaid writ petition is detrimental to their interest, inasmuch as, this Court has prohibited the respondents from granting any land

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and further directed that the said land is required to be reserved for free pasturage.

3. Indeed, whether this Court under Article 226 of the Constitution of India can review the order passed by this Court in the earlier writ petition has been set at rest by the decision of the Apex Court in the case of **SHIVDEO SINGH AND OTHERS Vs. STATE OF PUNJAB AND OTHERS** reported in AIR 1963 SC 1909 observing that the inherent power of the High Courts to review its previous order under Article 226 of the Constitution of India cannot be curtailed. Hence there is no impediment for this Court to review the order of this Court in the earlier writ petition.

4. Mr. Kaleemullah Shariff, learned counsel for the petitioners as well as learned counsel appearing for the connected petition submit that the petitioners in both these writ petitions are unauthorized occupants and they have made necessary application before the competent authority for regularizing the unauthorized



occupation. They would further submit that the order passed by this Court in the earlier writ petition was without notice to them, inasmuch as, as on the date when the order was passed, they were in possession.

5. Mr. Gurudev Gachchinmash, learned counsel appearing for the respondents submits that a representative suit was filed against the petitioners for injunction on the ground that they are in possession of the land in question and the suit was dismissed. Hence a finding is recorded by the Civil Court that they are not in possession. He further submits that this Court in the earlier writ petition, having regard to the nature of the land for which it was reserved, was of the opinion that a prohibitory writ is required to be issued against the respondents from granting the land in question to any person. He further submits that a recommendation is also sent by the Tahsildar indicating that the petitioners are not in possession. Hence he submits that the question of reviewing the earlier order does not arise.

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6. Mr.G.Chandrashekaradah, learned counsel appearing for the Government submits that the application filed by the petitioners in both the writ petitions is pending consideration before the Deputy Commissioner. He further submits that the report sent by the Tahsildar is also placed before the Deputy Commissioner for consideration. Hence he submits that the order passed in the earlier writ petition does not warrant interference.

7. I have been taken through the order passed by this Court and also the relevant records which are made available. It is not in dispute that Sy.No.2 admeasuring 23 acres 34 guntas is classified as reserved for free pasturage. The question would be whether the petitioners in both the writ petitions are unauthorized occupants and their unauthorized occupancy is required to be regularized. Indeed, this Court, while disposing of the writ petition had observed that the land is reserved for free pasturage and the question of granting it to any other persons is impermissible. If it is

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so, I am of the view that the said order passed by this Court in the earlier writ petition does not warrant interference, inasmuch as, on the undisputed facts, the said order was passed.

8. The next question would be whether the petitioners were in unauthorized occupation of several bits of land. Indeed, a representative suit was filed for injunction by the petitioners on the ground that they are in possession of Sy.No.2 measuring 23 acres 34 guntas. The said suit, on contest, was dismissed and it has attained finality. This is one fact which certainly should be considered by the Deputy Commissioner before considering the application of the petitioners for regularization of unauthorized occupation. Indeed, the report of the Tahsildar is also required to be taken note of by the Deputy Commissioner before he considers the application of the petitioners.

9. Consequently, I am of the view that before considering the applications of the petitioners for grant

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of land, the concerned authorities shall take into consideration,

- (1) the order passed by this Court in W.P.No.29312/93 on 16.12.1997
- (2) the judgment and decree passed by the Civil Court in O.S.No.434/89 and R.A 61/95
- (3) report of Tahsildar sent to the Deputy Commissioner regarding the nature and status of the land.

The Deputy Commissioner shall consider the applications of the petitioners for regularization after notice to the residents of the village.

Petition stands disposed of accordingly.

Sd/-
Judge

AI/-



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ, ದಾವಣಗೆರೆ ಜಿಲ್ಲೆ, ದಾವಣಗೆರೆ.

ನಂ.ಎಲ್.ಎನ್.ಡಿ/ಸಿಆರ್/110/2006-07

ವಾದಿಗಳು

ಡಬ್ಲ್ಯೂ.ಡಿ 9277/2006

1. ಶ್ರೀ ಕೆ.ಬಿ. ಶಿವಶಂಕರ್ ಬಿನ್ ಕಿಮ್ಮಪ್ಪ
2. ಶ್ರೀ ದುರ್ಗಪ್ಪ ಬಿನ್ ಆಡಿ ಹನುಮಪ್ಪ
3. ಶ್ರೀ ರುದ್ರಪ್ಪ ಬಿನ್ ಹನುಮಂತಪ್ಪ
4. ಶ್ರೀ ರಾಮಪ್ಪ ಬಿನ್ ಗಿರಿಯಪ್ಪ
5. ಶ್ರೀ ಕಂಚಪ್ಪ ಬಿನ್ ಗಿರಿಯಪ್ಪ
6. ಶ್ರೀ ಬಸಪ್ಪ ಬಿನ್ ಸಣ್ಣ ಹನುಮಪ್ಪ
7. ಶ್ರೀ ನಾಗಮ್ಮ ಕೋಂ ನಾಗರಾಜು ಎಲ್ಲರಿಗೂ ಕಂಚಮ್ಮನಪ್ಪಳಿ ನಿವಾಸಿಗಳು

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿಗಳು

1. ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ದಾವಣಗೆರೆ.
2. ತಹಶೀಲ್ದಾರ್ ಮತ್ತು ಕಾರ್ಯದರ್ಶಿ ದಾವಣಗೆರೆ ತಾಲ್ಲೂಕು ಬಗರ್ ಹುಕ್ಕಂ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿ, ದಾವಣಗೆರೆ.
3. ಶ್ರೀ ಬಿ.ಬಿ. ರುದ್ರಪ್ಪ ಬಿನ್ ಬಸಪ್ಪ ಕಂಚಮ್ಮನಪ್ಪಳಿ.
4. ಶ್ರೀ ಮಲ್ಲೇಶಪ್ಪ ಬಿನ್ ಬಸಪ್ಪ ಕಂಚಮ್ಮನಪ್ಪಳಿ.
5. ಶ್ರೀ ಶಿವೇಗ್ವಾಮಿ ಬಿನ್ ಬಸವರಾಜಪ್ಪ, ಕಂಚಮ್ಮನಪ್ಪಳಿ.
6. ಶ್ರೀ ಕೆ.ಬಿ. ಬಸವರಾಜಪ್ಪ ಬಿ ಗುರುಸಿದ್ಧಪ್ಪ, ಕಂಚಮ್ಮನಪ್ಪಳಿ.
7. ಶ್ರೀ ಕೆ.ಬಿ. ಮಂಜಪ್ಪ ಬಿನ್ ಮಂಜಪ್ಪ, ಕಂಚಮ್ಮನಪ್ಪಳಿ.
8. ಶ್ರೀ ಹೆಚ್.ಡಿ. ಮೊಕ್ಲನಾಯ್ಕ ಬಿನ್ ದೇವನಾಯ್ಕ, ಹೊಸಹಳ್ಳಿ ತಾಂಡ, ದಾವಣಗೆರೆ ತಾಲ್ಲೂಕು.

ಡಬ್ಲ್ಯೂ.ಡಿ ನಂ.13580/2006

1. ಶ್ರೀ ನಿಯಪ್ಪ ಬಿನ್ ರಾಮಪ್ಪ
2. ಶ್ರೀ ಪಕ್ಕೇರಪ್ಪ ಬಿನ್ ದುರ್ಗಪ್ಪ
3. ಶ್ರೀ ರಂಗಪ್ಪ ಬಿನ್ ಹನುಮಪ್ಪ ಎಲ್ಲರೂ ಕಂಚಮ್ಮನಪ್ಪಳಿ ನಿವಾಸಿಗಳು

1. ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ದಾವಣಗೆರೆ.
2. ತಹಶೀಲ್ದಾರ್ ಮತ್ತು ಕಾರ್ಯದರ್ಶಿ ದಾವಣಗೆರೆ ತಾಲ್ಲೂಕು ಬಗರ್ ಹುಕ್ಕಂ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿ, ದಾವಣಗೆರೆ.
3. ಶ್ರೀ ಕೆ.ಬಿ. ಬಸವರಾಜಪ್ಪ ಬಿನ್ ಚನ್ನಪ್ಪ
4. ಶ್ರೀ ಕೆ.ಬಿ. ಬಸವರಾಜಪ್ಪ ಬಿನ್ ಬಸಪ್ಪ
5. ಶ್ರೀ ಕಂಚಪ್ಪ ಬಿನ್ ಹನುಮಪ್ಪ
6. ಶ್ರೀ ಕೆ.ಎಂ. ರುದ್ರಪ್ಪ ಬಿನ್ ಮಲ್ಲಪ್ಪ
7. ಶ್ರೀ ಚಂದ್ರಪ್ಪ ಬಿನ್ ರುದ್ರಪ್ಪ
8. ಶ್ರೀ ಕೃಷ್ಣನಾಯಕ್ ಬಿನ್ ಬಸಪ್ಪ
9. ಶ್ರೀ ಕೆ.ಬಿ. ರುದ್ರಪ್ಪ ಬಿನ್ ಬಸಪ್ಪ
10. ಶ್ರೀ ಮಲ್ಲೇಶಪ್ಪ ಬಿನ್ ಬಸಪ್ಪ
11. ಶ್ರೀ ಶಿವೇಗ್ವಾಮಿ ಬಿನ್ ಬಸವರಾಜಪ್ಪ
12. ಶ್ರೀ ಕೆ.ಬಿ. ಬಸವರಾಜಪ್ಪ ಬಿನ್ ಗುರುಸಿದ್ಧಪ್ಪ
13. ಶ್ರೀ ಕೆ.ಬಿ. ಮಂಜಪ್ಪ ಬಿನ್ ಮಗರಾಜಪ್ಪ
14. ಶ್ರೀ ಮೊಕ್ಲನಾಯ್ಕ ಬಿನ್ ದೇವನಾಯ್ಕ ಎಲ್ಲರೂ ಕಂಚಮ್ಮನಪ್ಪಳಿ ನಿವಾಸಿಗಳು.

ದಿನಾಂಕ: -6-2016

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ಪ್ರಸ್ತಾವನೆ:-

ದಾವಣಗೆರೆ ತಾಲ್ಲೂಕು, ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ.2 ರ ಗೋಮಾಳ ಜಮೀನು ವಿವಾದ ಕುರಿತು ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಡಬ್ಲ್ಯೂ.ಪಿ ನಂ.9277/2006 (ಕೆ.ಎಲ್.ಆರ್.ಆರ್.ಇ.ಜಿ.) ಡಬ್ಲ್ಯೂ.ಪಿ.ನಂ.13580/2006 (ಕೆ.ಎಲ್.ಆರ್.ಆರ್.ಇ.ಜಿ.) ದಿನಾಂಕ:12-2-2008 ರ ಆದೇಶದಲ್ಲಿ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಡಬ್ಲ್ಯೂ.ಪಿ ನಂ.29312/93 ದಿನಾಂಕ:16-12-1997 ರಲ್ಲಿ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ನಿರ್ದೇಶನ ನೀಡಿರುವಂತೆ ಉಭಯ ಪಾರ್ಟಿಗಳಿಗೆ ನೋಟೀಸ್ ನೀಡಿ ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಕೈಗೆತ್ತಿಕೊಳ್ಳಲಾಯಿತು.

ದಿನಾಂಕ:25-8-2008 ರಿಂದ 14-2-2011 ರವರೆಗೆ ಆಗಿಂದಾಗ್ಗೆ ಉಭಯ ಪಾರ್ಟಿಗಳಿಗೆ ಸಾಕಷ್ಟು ಕಾಲಾವಕಾಶ ನೀಡಿ ವಿಚಾರಣೆ ಮಾಡಿದೆ. ವಾದಿಪರ ವಕೀಲರು ದಿನಾಂಕ:24-1-2011 ರಂದು ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗಿ ಲಿಖಿತವಾದ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಪ್ರತಿವಾದಿಗಳು ಸತತ ಗೈರು ಹಾಜರಾಗಿರುವುದರಿಂದ ದಿನಾಂಕ: 14-2-2011 ರಂದು ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ, ಪ್ರಕರಣವನ್ನು ಆದೇಶಕ್ಕೆ ಕಾಯ್ದಿರಿಸಿಕೊಳ್ಳಲಾಯಿತು.

ವಾದಿಗಳ ಪರ ವಕೀಲರು ತಮ್ಮ ಲಿಖಿತ ವಾದದಲ್ಲಿ ವಾದಿಗಳು ದಾವಣಗೆರೆ ತಾಲ್ಲೂಕು, ಆನಗೋಡು ಹೋಬಳಿ, ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ಗ್ರಾಮದ ಖಾಯಂ ವಾಸಿಗಳಾಗಿದ್ದು, ವಾದಿಗಳಿಗೆ ತಮ್ಮ ಮತ್ತು ಕುಟುಂಬ ಜೀವನ ನಿರ್ವಹಣೆ ಮಾಡಿಕೊಂಡು ಹೋಗಲಿಕ್ಕೆ ಸ್ವಂತವಾದ ವ್ಯವಸಾಯದ ಜಮೀನು ಇರುವುದಿಲ್ಲ. ಕೆಂಚಮ್ಮನಹಳ್ಳಿಗೆ ಸೇರಿದ ಸ.ನಂ.2 ರಲ್ಲಿ ಇರುವ 22-34 ಎಕರೆ ಜಮೀನಿನಲ್ಲಿ ತಲಾ 2-00 ಎಕರೆಯಂತೆ ಸಾಗುವಳಿ ತಂದಿರುತ್ತಾರೆ. ಈ ಜಮೀನು ಸರ್ಕಾರದ ಜಮೀನಾಗಿದ್ದು, ಪಟ್ಟಾದಲ್ಲಿ ಅದನ್ನು ಗೋಮಾಳ ಎಂದು ನಮೂದಾಗಿರುತ್ತದೆ. ನಮೂನೆ 50 ರಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ದಿನಾಂಕ:5-7-1993 ರಲ್ಲಿ ಅನಧಿಕೃತ ಸಾಗುವಳಿ ಮಾಡಿರುವಂತೆ ಸಕ್ರಮಗೊಳಿಸಲು ತೀರ್ಮಾನಿಸಿ ಅನಧಿಕೃತ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿ ಮುಂದೆ ಸಲ್ಲಿಸಲು ತೀರ್ಮಾನ ಆಗಿರುತ್ತದೆ. ಅಲ್ಲಿಂದಲೂ ಪ್ರತಿವರ್ಷವು ಬೆಳೆದುಕೊಂಡು ಬಂದಿದ್ದು, 3 ರಿಂದ 15 ನೇ ಪ್ರತಿವಾದಿಗಳು ಮತ್ತು 3 ರಿಂದ 8ನೇ ಪ್ರತಿವಾದಿಯವರು ವಿನಾಕಾರಣ ವಾದಿಯವರಿಗೆ ತೊಂದರೆ ಕೊಡುವ ಉದ್ದೇಶದಿಂದ ಇಲ್ಲಿಯವರೆಗೆ ಬೆಳೆದಿರುವ ಬೆಳೆಗೆ ತೊಂದರೆ ಕೊಡುತ್ತಾ ಬಂದಿರುತ್ತಾರೆ. ಸಮಿತಿಯಿಂದ ಮಂಜೂರಾಗಿರುವುದು ಗೊತ್ತಿದ್ದು, ವಿನಾಕಾರಣ ವಾದಿಯವರ ಮೇಲೆ ಸುಳ್ಳು ತಕರಾರುಗಳನ್ನು ಸಲ್ಲಿಸುತ್ತಾ ಬಂದಿರುತ್ತಾರೆ. ಪ್ರತಿ ವಾದಿಯವರು ಸ.ನಂ.2 ರ ಗೋಮಾಳ ಜಮೀನೊಂದು ಇದು ದನಕರುಗಳಿಗೆ ಬೇಕಾಗುತ್ತ ಎನ್ನುವ ಕಾರಣ ನೀಡಿ ಇಲ್ಲಿಯವರೆಗೆ ತೊಂದರೆ ಕೊಡುತ್ತಾ ಬಂದಿರುತ್ತಾರೆ. ದನಕರುಗಳಿಗೆ ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ.12 ರಲ್ಲಿ 14-27 ಎಕರೆ ಸ.ನಂ.29 ರಲ್ಲಿ 5-01 ಎಕರೆ ಬೇರೆ ಜಮೀನು ಇದ್ದು, ದನಕರುಗಳಿಗೆ ಬೇಕಾಗಿರುವ ಹುಲ್ಲುಗಾವಲಿನ ಪ್ರದೇಶವಾಗಿರುತ್ತದೆ. 1 ಕಿ.ಮೀ ದೂರ ಇರುವ ಹೊಸಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ.35 ರಲ್ಲಿ 37-03 ಎಕರೆ ಖರಾಬು ಜಮೀನು ಇರುತ್ತದೆ. ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ದನಕರುಗಳಿಗೆ 58-00 ಎಕರೆ ಜಮೀನು ಇರುತ್ತದೆ. ಕಾರಣ ಸದರಿ ಸ.ನಂ. 2ರಲ್ಲಿ ವಾದಿಗಳಿಗೆ ಮಂಜೂರು ಮಾಡುವುದರಿಂದ 3 ರಿಂದ 14ನೇ ಪ್ರತಿವಾದಿಗಳಿಗಾಗಲೀ ಸರ್ಕಾರಕ್ಕಾಗಿ ಆಗಲಿ ಯಾವುದೇ ರೀತಿಯ ತೊಂದರೆ ಆಗುವುದಿಲ್ಲ. ವಾದಿಗಳು ಪರಿಶಿಷ್ಟ ಜಾತಿ ಮತ್ತು ಪಂಗಡಕ್ಕೆ ಸೇರಿರುತ್ತಾರೆ. ಕರ್ನಾಟಕ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ, ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 9277/2006 ಮತ್ತು 13580/2006 ಮಾಡಿರುವ ಆದೇಶದಂತೆ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯವು ಮಾಡಿರುವಂತಹ ಆದೇಶವನ್ನು ತಳ್ಳಿ ಹಾಕಿ ದಿನಾಂಕ:5-7-1993 ರಲ್ಲಿ ಮಾಡಿರುವ ಆದೇಶವನ್ನು ಪರಿಗಣಿಸಿ

ಸ್ಥಾಯೀಯ ಆದೇಶ ಮಾಡಿರುವಂತೆ ವಾದಿಗಳಿಗೆ ತಲಾ 2-00 ಎಕರೆಯಂತೆ ಸಾಗುವಳಿಗೆ ಮಂಜೂರು ಮಾಡಲು ವಾದಿಪರ ವಕೀಲರು ಲಿಖಿತವಾದ ಮಂಡಿಸಿರುತ್ತಾರೆ.

ಪ್ರತಿವಾದಿಗಳು ಸತತವಾಗಿ ಗೈರು ಹಾಜರಾಗಿದ್ದು, ಯಾವುದೇ ಪಾದ ಮಂಡಿಸಿರುವುದಿಲ್ಲ. ಲಭ್ಯವಿರುವ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ಕೆಂಚಮ್ಮನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ.ನಂ.2 ಗೋಮಾಳ ಜಮೀನಾಗಿದ್ದು, ಈ ಜಮೀನನ್ನು ಮಂಜೂರು ಮಾಡಲು 11 ಜನರು ನಮೂನೆ-50 ರಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಅರ್ಜಿಗಳನ್ನು ದಿನಾಂಕ:5-7-1993 ರಂದು ಬಗರ್ ಹುಕ್ಕುಂ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿಯ ಮುಂದೆ ಮಂಡಿಸಿದ್ದು, ಸದರಿ ನಿದಂದು ಮಾಡಿದ ನಡವಳಿಯಲ್ಲಿ ಸದರಿ ಜಮೀನನ್ನು ಅರ್ಜಿದಾರರಿಗೆ ಸಕ್ರಮಗೊಳಿಸಲು ತೀರ್ಮಾನಿಸಿ ಆ ಬಗ್ಗೆ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ಪ್ರಸ್ತಾವನೆ ಸಲ್ಲಿಸುವಂತೆ ತೀರ್ಮಾನಿಸಿರುತ್ತಾರೆ. ನಮೂನೆ 50 ರ ಅರ್ಜಿಗಳನ್ನು ತೀರ್ಮಾನಿಸುವ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರ ಸಂಬಂಧಪಟ್ಟ ತಾಲ್ಲೂಕಿನ ಹುಕ್ಕುಂ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿ ಆಗಿದ್ದು, ಈ ವಿಚಾರದಲ್ಲಿ ಈ ಪ್ರಾಧಿಕಾರದ ಮಧ್ಯೆ ಪ್ರವೇಶಿಸುವ ಪ್ರಶ್ನೆ ಉದ್ಭವಿಸುವುದಿಲ್ಲ. ಹಾಗೂ ಬಗರ್ ಹುಕ್ಕುಂ ಸಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿಯು ಈ ಬಗ್ಗೆ ಸೂಕ್ತ ತೀರ್ಮಾನ ಕೈಗೊಳ್ಳಬೇಕಾಗಿದ್ದು, ಅದರಂತೆ ಪ್ರಸ್ತಾಪಿತ ಜಮೀನು ಗೋಮಾಳ ಜಮೀನು ಆಗಿರುವುದರಿಂದ ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂ.ಆರ್.ಡಿ/57/ಎಲ್.ಜಿ.ಪಿ/2008 ದಿನಾಂಕ: 20-8-2009 ರಲ್ಲಿ ಸರ್ಕಾರವು ನಿರ್ದೇಶಿಸಿರುವಂತೆ ತಹಶೀಲ್ದಾರರವರು ಪರಿಶೀಲಿಸಿ ಸಮಿತಿ ಮಂಡಿಸಿ ಸೂಕ್ತ ಕ್ರಮ ಮುಗಿಸುವುದು ಸೂಕ್ತವೆಂದು ತೀರ್ಮಾನಿಸಿ ಕಳಕಂದಂತೆ ಆದೇಶ ಮಾಡಲಾಗಿದೆ.

: ಆದೇಶ :

ಮೇಲ್ಕಂಡ ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ವಿವರಿಸಿರುವ ಕಾರಣಗಳು ಮತ್ತು ಅಂತಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಮೇಲ್ಕನವಿಯನ್ನು ಭಾಗಶಃ ಪುರಸ್ಕರಿಸಿದೆ. ಪ್ರಸ್ತಾಪಿತ ಜಮೀನು ಗೋಮಾಳ ಜಮೀನಾಗಿರುವುದರಿಂದ ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ ಆರ್.ಡಿ/57/ಎಲ್.ಜಿ.ಪಿ/2008 ದಿನಾಂಕ:20-8-2009 ರಲ್ಲಿ ಸರ್ಕಾರ ನಿರ್ದೇಶಿಸಿರುವಂತೆ ತಹಶೀಲ್ದಾರ್, ದಾವಣಗೆರೆ ಇವರು ಪರಿಶೀಲಿಸಿ, ಬಗರ್‌ಹುಕ್ಕುಂ ಸಮಿತಿ ಮುಂದೆ ಮಂಡಿಸಲು ಆಗತ್ಯ ಕ್ರಮವಹಿಸಲು ಸೂಚಿಸಿ ಆದೇಶಿಸಿದೆ.

(ಎಸ್.ಪಿ.ಆರ್.ಎಸ್.ಕುಮಾರ್)
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು,
ದಾವಣಗೆರೆ ಜಿಲ್ಲೆ.

1. ಹಾಗೂ: ಸಾಗ. 2. ಸೂಕ್ತ ಕ್ರಮವನ್ನು ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ಸೂಚಿಸಿದೆ.

2. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
3. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
4. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
5. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
6. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
7. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009
8. ಅರ್ಜಿ ಸಲ್ಲಿಸಿದವರು 15-8-2009

"ದೃಢೀಕೃತ ನಕಲು"

ಸ್ಥಳ: 25/8
ಜಿಲ್ಲೆದಾರ್ (ಎಡಿಎಂ)
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿ, ದಾವಣಗೆರೆ.

Translated copy of Annexure-G

IN THE COURT OF THE DEPUTY COMMISSIONER,

DAVANAGERE DISTRICT, DAVANAGERE

No.LND/CR/110/2006-07

Date: /06/2016

Petitioners:

V/s

Respondents:

WP.9277/2006

- 1.Sri.K.J.Thippann
a s/o.Thimmappa
- 2.Sri.Durgappa
s/o.Adi
Hanumappa
- 3.Sri.Rudrappa
s/o.Hanumanthapp
a
- 4.Sri.Ramappa
s/o.Giriyappa
- 5.Sri.Kenchappa
s/o.Giriyappa
- 6.Sri.Basappa
s/o.Sanna
Hanumappa
- 7.Sri.Nagamma
w/o.Nagaraju,
all are
residents of
Kenchammanahalli

- 1.Assistant
Commissioner,
Davanagere
- 2.Tahsildar and
Secretary,
Davanagere Taluk
Committee for
regularization of
unauthorized
cultivation,
Davanagere
- 3.Sri.B.D.Rudrappa
s/o.Basappa,
Kenchammanahalli
- 4.Sri.Mallesappa
s/o.Basappa,
Kenchammanahalli
- 5.Sri.Thippeswamy
s/o.Basavarajappa,
Kenchammanahalli
- 6.Sri.K.B.Basavarajap
pa B.Gurusiddappa,

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Kenchammanahalli

7. Sri.K.B.Manjappa

s/o.Manjappa,

Kenchammanahalli

8. Sri.H.D.Mothlanaika

, s/o.Deva Naika,

Hosahalli Thanda,

Davanagere taluk

WP.No.13580/2006

1. Sri.Ningappa
s/o.Ramappa
2. Sri.Fakeerappa
s/o.Durgappa
3. Sri.Rangappa
s/o.Hanumappa,
all are
residents of
Kenchammanahalli
i

1. Assistant
Commissioner,
Davanagere
2. Tahsildar and
Secretary,
Davanagere Taluk
Committee for
regularization of
unauthorized
cultivation,
Davanagere
3. Sri.K.C.Basavarajap
pa s/o.Channappa
4. Sri.K.B.Basavarajap
pa s/o.Basappa,
Kenchammanahalli
5. Sri.Kenchappa
s/o.Hanumappa
6. Sri.K.M.Rudrappa
s/o.Mallappa
7. Sri.Chandrappa
s/o.Rudrappa

8. Sri.Krishna Nai,
s/o.Basappa
9. Sri.K.B.Rudrappa,
s/o.Basappa
10. Sri.Mallesappa
s/o.Basappa
11. Sri.Thipperudraswa
my
s/o.Basavarajappa
12. Sri.K.B.Basavaraja
ppa
s/o.Gurusiddappa
13. Sri.K.G.Manjappa
s/o.Nagarajappa
14. Sri.H.D.Mothlanaik
a, s/o.Deva Naika,
Hosahalli Thanda,
Davanagere taluk

* * *

Preamble:

As directed by the Hon'ble High Court in the order dated 12/02/2008 in WP.No.9277/2006 (KLR-REG), WP.No.13580/2006 (KLR-REG) with regard to the disputed pasture land in Sy.No.2 of Kenchammanahalli village, Davanagere taluk and order dated 16/12/1997, notice is issued to both the parties and the case is taken up for hearing.

Heard the case by providing sufficient opportunity to both the parties from time to time from 25/08/2008 to 14/02/2011. Learned counsel for the petitioners filed written arguments on 24/01/2011. As the respondents remained absent continuously, verified the documents on 14/02/2011 and reserved for orders in the case.

The learned counsel for the petitioners has urged in their written arguments that, petitioners are permanent residents of the Kenchammanahalli village, Anagodu Hobli, Davanagere taluk and the petitioners do not own agricultural lands to eak'out their livelihood. They are cultivating 2-00 acres each in 22-34 acres in Sy.No.2 of Kenchammanahalli. This land is a government land and the same is shown as pasture land in the patta. That, application in Form 50 is submitted and on 05/07/1993, it is decided to regularize as per unauthorized cultivation. From there, it is cultivated every year and respondents No.3 to 15 and respondent Nos.3 to 8 have been disturbing the crop cultivated till date with an intention to

disturb the petitioners unnecessarily. They are aware about grant from the committee and deliberately they have been filing false objections against the petitioners. The respondents have been troubling unnecessarily claiming that, the land in Sy.No.2 is required for cattle. Other lands measuring 14-27 acres in Sy.No.12 and 5-01 acres in Sy.No.29 of Kenchammanahalli are available for cattle, which are the region without grassland required for the cattle. There is kharab land measuring 37-03 acres in Sy.No.35 of Hosahalli village situated at a distance of 1 Km. There is 58-00 acres of land for cattle at Kenchammanahalli. Hence, as land is granted to the petitioners in the said Sy.No.2, no hardship would be caused either to the respondents or the government in any manner. The petitioners belong to scheduled caste and scheduled 'tribe community. The learned counsel for the petitioners seek to grant 2-00 acres each to them for cultivation as per directions of the Hon'ble High Court in Writ Petition No.9277/2006 and 13580/2006 by

quashing the order of the Civil Court by considering the order dated 05/07/1993.

The respondents remained absent continuously and failed to address any arguments. Verified the records available. Land in Sy.No.2 of Kenchammanahalli village is a pasture land and 11 persons have submitted application in Form no.50 for grant of land in this survey number and the said applications are placed before the Committee for regularization of unauthorized cultivation on 05/07/1993 and in the proceedings of the said committee on the said date, it is decided to regularize the said land in favor of the petitioners and further decided to submit proposal to the Deputy Commissioner in this regard. The competent authority to decide Applications in Form No.50 is the Taluk Committee for regularization of unauthorized cultivation and the question of interference by this authority in this regard does not arise and the Committee for regularization of unauthorized cultivation has to take appropriate decision in this regard and

accordingly, as the proposed land is a government pasture land, deciding that, the Tahsildar shall examine, as per Government direction under circular No.RD/57/LGP/2008 dated 20/08/2009 and place it before the committee and conclude appropriate action, it is ordered as under:

ORDER

For the reasons and factors explained in the above preamble, appeal is allowed in part. As the proposed land is pasture land, it is ordered, directing the Tahsildar, Davanagere to examine as per government direction under Circular No.RD/57/LGP/2008 dated 20/08/2009 and initiate necessary action to place it before the Committee for Regularization of unauthorized cultivation.

Sd/-
(S.T.Anjan Kumar)
Deputy Commissioner,
Davanagere district.

3) ಯಾವುದೇ ಪ್ರಕರಣದಲ್ಲಿ ಗೋಮಾಳ ಆಮೀನಿನ ವಿಸ್ತೀರ್ಣ ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿರ್ಮಾಣವಳಿಗಳ ನಿಯಮ 97(1)ನಿಂದ ಉಂಟಾದ ಅಂಶಕ್ಕೆ ಅನ್ವಯಿಸುವ ಒತ್ತುವರಿ ಅಗತ್ಯವಿಲ್ಲವೆಂದು ಸಹ ಸಕ್ರಮಣೀಕರಣ ಯಾವುದೇ ಕ್ರಮವಿಲ್ಲವೆಂದು ಅಥವಾ ಬೇರೂರ ಹುಳುಂ ನಾಗುವಳಿ ಸಕ್ರಮೀಕರಣ ಸಮಿತಿಯ ಮುಂದೆ ಇರುವ ಕ್ರಮವಿಲ್ಲವೆಂದು ತಿಳಿಸುವಂತಿಲ್ಲವೆಂದು.

4) ಗೋಮಾಳ, ಗಾಯರಾಣ, ಹುಲ್ಲುಬಣ್ಣಿ ಆಮೀನುಗಳನ್ನು ಯಾವುದೇ ಕಾರಣದಿಂದ ಸಂಸ್ಥಾಪಿಸಿ, ಬಾಸಗಿ ವ್ಯಕ್ತಿಗಳಿಂದ ಅಥವಾ ಬಾಸಗಿ ಗಣಿಗಾರಿಕೆ ಉದ್ದೇಶಕ್ಕಾಗಿ ಅಥವಾ ಮೂಲಕರು ಮತ್ತು ಇತರ ಆಮೀನುಗಳು ಉಂಟಾದ ಆದ್ದು ಆಮೀನುಗಳು ಮೂಲಕರು ಮತ್ತು ಇತರ ಆಮೀನುಗಳು ಉಂಟಾದ ಆದ್ದು ಆಮೀನುಗಳನ್ನು ಸಕ್ರಮೀಕರಣಕ್ಕಾಗಿ ಯಾವುದೇ ಅರ್ಜಿ ಬಡ್ತಿ ಇಲ್ಲವಿಲ್ಲವೆಂದು ಉಂಟಾದ ಆಮೀನುಗಳನ್ನು ಗ್ರಾಮೀಣ ಸಮುದಾಯದ ಸಾಮಾನ್ಯತೆ ಉದ್ದೇಶಕ್ಕೆ ಮೀಸಲಿಡುವಂತಿಲ್ಲ.

ರಾಜ್ಯ ಉಕ್ಕ ನ್ಯಾಯಾಲಯವು ರಿಸರ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ:5882/97ಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ದಿನ 15.02.2008 ರಂದು ನೀಡಿದ ತೀರ್ಪಿನಲ್ಲಿ ಉಲ್ಲೇಖ (2)ರ ಸುತ್ತಿನಲ್ಲಿ ದಿನ 05.01.2007ರನ್ನು ರದ್ದುಪಡಿಸಿ, ಗೋಮಾಳ ಆಮೀನಿನಲ್ಲಿ ಕಲ್ಯಾಣಗಣಿಗಾರಿಕೆಗೆ ಗುತ್ತಿಗೆ ನೋಂದಣಿಯಾದ ಹಾಗೂ ಮೂಲಕರುತೆ ನೀಡಲು ಸಕ್ರಮಣೀಕರಣದ ಅರ್ಜಿಗಳನ್ನು ಪರಿಗಣಿಸಿ ಇಕ್ಕನ ಪರಿಗಣನೆ ನೀಡುವಂತೆ ನೀಡುವಂತೆ / ನೋಂದಣಿಯಾದ ಅರ್ಜಿಗಳ ಕುರಿತು ಸರ್ಕಾರದ ಗೋಮಾಳ ಆಮೀನಿನಲ್ಲಿ ಗಣಿಗಾರಿಕೆಗೆ ಮೂಲಕರುತೆ ನೀಡುವಂತೆ / ನೋಂದಣಿಯಾದ ಅರ್ಜಿಗಳ ಕುರಿತು ಸರ್ಕಾರದ ಸುತ್ತಿನಲ್ಲಿ ಸಂಖ್ಯೆ ಆರ್.ಡಿ 72 ಎಲ್.ಪಿ. 98, ದಿನ 24.02.2008ರಲ್ಲಿ ಪರಿಶೀಲನೆಯ ಕ್ರಮ ಕೈಗೊಂಡು ಇಕ್ಕನ ಪರಿಗಣನೆ ಉಲ್ಲೇಖ (3)ರ ಸುತ್ತಿನಲ್ಲಿ ಸೂಚಿಸಲಾಗಿತ್ತು.

ಈ ಸಲುವೆ ಪ್ರಾಥಮಿಕ ಆಯ್ಕೆಯು, ಮೈಸೂರು ವಿಭಾಗ, ಮೈಸೂರು ಇವರು ದಿನ 17.01.2009ರ ಪತ್ರದಲ್ಲಿ ಅನುಬಂಧಿ ಸಾರಗಟ್ಟಿಸಿ ಸಕ್ರಮ ಸಮಿತಿಯಲ್ಲಿ ಮೂಲಕರು ಪ್ರಕರಣಗಳಲ್ಲಿ ಗೋಮಾಳ ಆಮೀನುಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರಗಟ್ಟಿಸಿ ಬಿಟ್ಟು ನೀಡುವ ಬಗ್ಗೆ ಹಾಗೂ ಪ್ರಾಥಮಿಕ ಆಯ್ಕೆಯು, ಬಿರ್ಲಾಕರ ಮೈಸೂರು ವಿಭಾಗದ ಇವರು ದಿನ 06.02.2009ರ ಪತ್ರದಲ್ಲಿ ದಿನ 05.01.2007ರ ಸುತ್ತಿನಲ್ಲಿ ಬಗ್ಗೆ ಹಲವು ಪ್ರಜ್ಞಾಪರಣಗಳನ್ನು ನೀಡಲಿರುತ್ತದೆ. ಸರ್ಕಾರವು ಈ ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಿ, ಈ ಕೆಳಕಂಡ ಸೂಚನೆಗಳನ್ನು ನೀಡಿದೆ.

1) ಎಲ್ಲಾ ಅಧ್ಯಕ್ಷತೆಯಲ್ಲಿರುವ ಆಮೆ ಪ್ರದೇಶಗಳ ಗೋಮಾಳ, ಗಾಯರಾಣ, ಹುಲ್ಲುಬಣ್ಣಿ ಆಮೀನನ್ನು ಗುರುತಿಸಿ ಆ ಆಮೀನುಗಳ ವಿಸ್ತೀರ್ಣವು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿರ್ಮಾಣವಳಿಗಳ ನಿಯಮ 97(1)ರಲ್ಲಿ ನಿರ್ದಿಷ್ಟ ಪಡಿಸಿರುವ ವಿಸ್ತೀರ್ಣಕ್ಕಿಂತ ಕಡಿಮೆ ಆಗಿದ್ದರೆ ಎಂಬುದನ್ನು ಹಾಗೂ ಜಾಮೀನುಗಳ ಸಂಖ್ಯೆಗಳ ಅನುಸಾರ ಆ ಆಗಿದ್ದರೆ ಎಂಬುದನ್ನು ಹಾಗೂ ಜಾಮೀನುಗಳ ಸಂಖ್ಯೆಗಳ ಅನುಸಾರ ಆ ವಿಸ್ತೀರ್ಣವನ್ನು ಉಳಿಸಿಕೊಳ್ಳುವ ಅವಕಾಶ ಇರುವ ಎಂಬುದನ್ನು ಪರಿಶೀಲಿಸುವುದು.

2) ಗೋಮಾಳ, ಗಾಯರಾಣ, ಹುಲ್ಲುಬಣ್ಣಿ ಆಮೀನುಗಳ ವಿಸ್ತೀರ್ಣವು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿರ್ಮಾಣವಳಿಗಳ ನಿಯಮ 97(1)ನಿಂದ ನೀಡಿದ ಪ್ರಕರಣಗಳಲ್ಲಿ ಮಾತ್ರ ಆ ಆಮೀನಿನಲ್ಲಿ ಯಾರಾದರೂ ಅಕ್ರಮವಾಗಿ ಸಾಗುವಳಿ ಮಾಡಿಕೊಂಡು ಸ್ವಾಧೀನದಲ್ಲಿಟ್ಟು ಆಮೀನಿನಲ್ಲಿ ಆಮೀನನ್ನು ಪಡೆಯಲು ಅರ್ಹರಾಗಿದ್ದು, ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಇವು ಕಂಡು ಬಂದರೆ 94ಎ ಮತ್ತು 94ಬಿ ಲಾಯಲ್ಲಿ ನೀಡಿದ ಅವಧಿಯಲ್ಲಿ ಆಮೀನಿನ ಸಕ್ರಮೀಕರಣಕ್ಕಾಗಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದಲ್ಲಿ ಅವುಗಳನ್ನು ಸಕ್ರಮೀಕರಣ ಸೂತ್ರ ನಿರ್ಧಾರಕ್ಕಾಗಿ ಸರ್ಕಾರವು

Translated copy of Annexure-HGOVERNMENT OF KARNATAKA

No.RD 57 LGP 2008

Karnataka Government Secretariat,
Multi-storey building,
Bangalore, Date: 20/08/2009

CIRCULAR

Sub: Issuance of grant certificate to
the unauthorized cultivators in
pasture land - reg.

Ref: 1. RD 74 LGP 2005 dated
24/12/2005.
2. RF 83 LGP 2006 dated 05/01/2007
3. RD 57 LGP 2008 dated
27/11/2008.

* * *

In the circular at reference (1), it was directed not to submit any proposals to the Government relating to the pasture, gyaaraana, grasslands as per the judgment dated 22/09/2005 of the High Court of Karnataka in WP.No.14048/2005. Later, in the circular at reference (2), the following instructions were issued as per judgment dated 18/11/2006 of the High Court of Karnataka in WP.3813/05 and WP.No.21221/2005.

1. All the Deputy Commissioners shall identify the pasture, gayaraana, grassland in the State and examine as to whether the extent of the lands identified is less than the extent specified under rule 97(1) of the Karnataka Land Revenue Rules and as to whether there is necessity to maintain extent as per number of cattle.
2. Only in the cases wherein the extent of pasture, gayaraana and grasslands exceeds rule 97(1) of Karnataka Land Revenue Rules, if any person is under unauthorized cultivation in the said land and if he is eligible for grant of such land and if application is submitted for regularization within prescribed time under sections 94A, 94B and 94C of Karnataka Land Revenue Act, shall place it before the Committee for regularization of unauthorized cultivation constituted/ to be constituted by the Government for appropriate decision to regularize the same.
3. In any case, if the extent of the pasture land is less than the extent prescribed

under rule 97(1) Karnataka Land Revenue Rules, though it is encroached upon, no action for regularization of the same nor for placing it before the Committee for regularization of unauthorized cultivation shall be taken.

4. Pasture, gayarana and grasslands shall not be granted to private organizations, private persons or private mining purpose and if such lands are vacant and if any application for regularization is not pending, shall reserve such lands for public purpose of the rural community.

In the judgment dated 16/02/2008 passed by the Hon'ble High Court in WP.No.15882/2007, circular dated 05/01/2007 at reference (2) is quashed and issued directions to consider the applications submitted for renewal and grant of stone quarry lease in the pasture lands. As per the said judgment of the Hon'ble High Court, it was directed under circular at reference (3) deciding by initiating action as per the conditions under Government circular No.RD 72 LGP 98

1624

dated 24/02/1990 with regard to the application for grant/ renewal of mining in government pasture land.

In the meanwhile, the Regional Commissioner, Mysore division, Mysore in the letter dated 17/01/2009, sought several clarifications with regard to issuance of grant certificate in connection with pasture lands in the cases of grant in the Committee for regularization of unauthorized cultivation and under letter dated 06/02/2009 with regard to the circular dated 06/01/2007. On examining in this regard, Government has issued the following instructions.

1. All the Deputy Commissioners shall identify the pasture, gayaraana, grassland in the State and examine as to whether the extent of the lands identified is less than the extent specified under rule 97(1) of the Karnataka Land Revenue Rules and as to whether there is necessity to maintain extent as per number of cattle.

2. Only in the cases wherein the extent of pasture, gayaraana and grasslands exceeds rule 97(1) of Karnataka Land Revenue Rules, if any person is under unauthorized cultivation in the said land and if he is eligible for grant of such land and if application is submitted for regularization within prescribed time under sections 94A, 94B and 94C of Karnataka Land Revenue Act, shall place it before the Committee for regularization of unauthorized cultivation constituted/ to be constituted by the Government for appropriate decision to regularize the same.
3. In any case, if the extent of the pasture land is less than the extent prescribed under rule 97(1) Karnataka Land Revenue Rules, though it is encroached upon, no action for regularization of the same nor for placing it before the Committee for regularization of unauthorized cultivation shall be taken. Prior to placing it before the Regularization committee, it shall verify as to whether the said land is in

possession of the applicant or whether GPA, sale agreement etc. are executed in others favor and they are in possession and ascertain that, the same is possession of the applicant. In genuine cases of applications, though the committee has already recommended, preliminarily the said factor shall be ascertained and grant certificate shall be issued by paying the charges as per rules. In case if such land are in possession of any others other than the actual applicant, action shall be initiated to reject such applications /grants.

In any case, if the extent of the pasture land is less than the extent prescribed under rule 97(1) Karnataka Land Revenue Rules, though it is encroached upon, no action for regularization of the same nor for placing it before the Committee for regularization of unauthorized cultivation shall be taken. In such cases, even if the committee recommends, there is no scope to

issue grant certificate. Hence, action shall be initiated to cancel such grants.

4. With regard to the pasture lands within Metropolitan City Corporation / City Municipal Council limits, action shall be initiated as per amendment to rule 97 of Karnataka Land Revenue Rules, 1966 as per rule 97(5) made as per Government notification No.33 LGP 2007 dated 26/01/2006.

sd/-
(G.S.Narayanaswamy)
Secretary to Government,
Revenue Department.

To:

1. Regional Commissioner, Bangalore/ Belgaum/ Gulbarga/ Mysore division.
2. All the Deputy Commissioners
3. All the Assistant Commissioners.
4. All the Tahsildars, for appropriate action.

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

Appellant/s, Petitioner's
Caveator/s, Decree Holder
Complainant/s

No.

of 20

Vs.

Respondent/s
Judgement - Debtor/s
Opponent/s/ Accused,

I/We _____
_____ the _____
Nos. _____ in the above matter hereby appoint and retain
Sri/Smt. _____

to appear act and plead for me/us in the above matter and to conduct/prosecute and defend the same in all interlocutory or miscellaneous proceedings connected with the same or with any decree or orders passed therein appeals and or other proceedings arising there from and also in proceedings for review of judgement and for leave to appeal to Supreme Court and to obtain return of any documents filed therein or receive any money which may be payable to me/us.

2. I/We hereby authorise him/her/them on my/our behalf to enter into a compromise in the above matter, to execute any decree/order therein to appeal from any decree/order/therein and to appeal to act to plead in such appeal in any preferred by any other party from any decree/other/therein.

I/We further agree that, if I/We fail to pay the fees agreed upon or to give due instructions at all stages he/she/they is/are at liberty to retire from the case and recover all amounts due to him/her/them and retain all my/our monies till such dues are paid.

Executed by me/us this _____ day of _____ at _____

Signature/s

Phupama

Executant/s is/are personally known to me/us and he/she/has/they have signed before me/us.

Satisfied as to the identity of executant/s Signature/s
(Where the executant/s are illiterate, blind or unacquainted with the language of vakalath)

Certified, that the contents were explained to the executant/s in my/our presence in _____
language known to him/her/them who appear/s perfectly to understand the same and has/have signed in
the presence.

Accepted

Address for service

Name _____ Roll No. _____

Name _____ Roll No. _____

FAX : 080-22867522
TEL : 080-22862583

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

723-26/A4/WP/PIL/21-22

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಹುಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.12.2021

ಗೆ,
TO,

1. The Principal Secretary to Govt.,
Department of Revenue,
M.S. Building,
Bengaluru-560 001.

ಮಾನ್ಯರೇ,
SIR,

2. The Deputy Commissioner,
Davanagere District,
Davanagere.

3. The Assistant Commissioner,
Davanagere Sub-Division,
Davanagere.

4. The Tahsildar,
Davanagere Taluk,
Davanagere.

5. The Secretary,
Bagar Hukum Committee,
Davanagere District.

SUB: **W.P.No.15813/2021 (PIL)** on the file
of the High Court of Karnataka at
Bengaluru -Sri K.M. Revanasiddappa and
others [Vs] The Principal Secretary,
Department of Revenue, Bengaluru and
others.

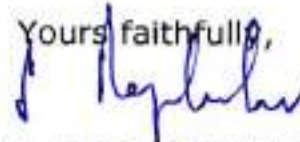
In the above Writ Petition, the Petitioner has sought for
quashing the impugned Order dated Nil-6/2016 bearing
No.LND/CR/110/2006-07, vide Annexure-G to the Writ Petition
and for such other reliefs.

The above matter was listed for hearing before the
Hon'ble High Court of Karnataka at C.H.No.01. The Hon'ble
Court has directed Respondent-State to file their Statement of
Objections if any within **ONE WEEK**. As such, it is appropriate

that a proper official may be deputed to meet the undersigned to furnish parawise remarks and also to furnish all relevant papers pertaining to subject matter of the present Writ Petition. The concerned official is required to meet the undersigned within **ONE WEEK**.

Kindly treat this matter as **MOST URGENT**.

Yours faithfully,



(**S. RAJASHEKAR**)
ADDL. GOVT. ADVOCATE



0/c

FAX : 080-22867522
TEL : 080-22862583

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಹುಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED 28.09.2021

ಗೆ,
TO,

1.The Principal Secretary to Government,
Revenue Department,
M.S.Building,
Bengaluru-560 001.

ಮಾನ್ಯರ,
SIR,

2.The Deputy Commissioner,
Davanagere District,
Davanagere.

3.The Assistant Commissioner,
Davanagere Sub Division,
Davanagere.

4.The Tahsildar,
Davanagere District,
Davanagere.

SUB: W.P.No.15813/2021 (KLR-RES-PIL) on the
file of the High Court of Karnataka, Bengaluru -
K.M.Revanasiddappa & others /VS/ The Principal
Secretary to Government, Revenue Department &
others.

REF: This office earlier letter dated 02-09-2021

In the above Writ Petition, the Petitioners have sought for a writ of certiorari for quashing the impugned order dated nil-06-2016 in No.LND/CR/110/2006-07 vide Annexure-G passed by the Respondent No.2 - Deputy Commissioner, Davanagere District and for such other reliefs.

The above Writ Petition (PIL) was listed before the Hon'ble Division Bench, the bench was headed by the Hon'ble Acting Justice on 27-09-2021. The Hon'ble Court has directed to take notice for Respondent Nos. 1 to 4 and granted interim order directing the Respondents to maintain status-quo in relation to the subject land.

I request you to kindly send detailed parawise remarks in English language meeting all the contentions raised in the Writ Petition along with supporting documents to enable me to prepare and file the Statement of Objections. The above matter is ordered to be listed before the Hon'ble Court on **27-11-2021**.

Please treat this matter as most urgent.

Yours faithfully,


(VIJAYAKUMAR A. PATIL)
ADDL. GOVT. ADVOCATE
MOB: 9448243006

VAP/2709/BG/2809
FAX-VAP-1 (1+4)

20/11

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

254-257/AG/WP/PIL/21-22

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್ ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

ಗೆ,
TO,

02.09.2021

ಮಾನ್ಯರೇ,
SIR,
1.The Principal Secretary to Government,
Revenue Department,
M.S.Building,
Bengaluru-560 001.

2.The Deputy Commissioner,
Davanagere District,
Davanagere.

3.The Assistant Commissioner,
Davanagere Sub Division,
Davanagere.

4.The Tahsildar,
Davanagere District,
Davanagere.

SUB: W.P.No.15813/2021 (PIL) on the file of the
High Court of Karnataka, Bengaluru -
K.M.Revanasiddappa & others /VS/ The Principal
Secretary to Government, Revenue Department &
others.

In the above Writ Petition, the Petitioners have sought for a
writ of certiorari for quashing the impugned order dated nil-06-
2016 in No.LND/CR/110/2006-07 vide Annexure-G passed by the
Respondent No.2 - Deputy Commissioner, Davanagere District
and for such other reliefs.

The above Writ Petition (PIL) was listed before the Hon'ble Division Bench in C.H.No.2 on 01-09-2021. The Hon'ble Court has directed to take notice for Respondent Nos. 1 to 4 and directed me to file Objections in the above matter.

I request you to kindly send detailed parawise remarks in English language along with supporting documents to enable me to prepare and file the Statement of Objections. The above matter is ordered to be listed before the Hon'ble Court on **23-10-2021**.

Please treat this matter as most urgent.

Yours faithfully,


(VIJAYAKUMAR A. PATIL)
ADDL. GOVT. ADVOCATE
MOB: 9448243006

VAP/0109/BO/0109
FAX-VAP-1 (1+4)

2/9